CHAPTER 15 Centre-State Relations

Federal division of powers: The Constitution of India, being federal in structure, divides all powers (legislative, executive and financial) between the Centre and the states. However, there is no division of judicial power as the Constitution has established an integrated judicial system to enforce both the Central laws as well as state laws.

Legislative | Executive | Financial | Judicial – not divided

↓

integrated judicial system enforces both Central laws + state laws

Harmony and Coordination: Though the Centre and the states are supreme in their respective fields, the maximum harmony and coordination between them is essential for the effective operation of the federal system. Hence, the Constitution contains elaborate provisions to regulate the various dimensions of the relations between the Centre and the states.

Three dimensions of relations: The Centre-state relations can be studied under three heads:

- Legislative relations.
- Administrative relations.
- Financial relations.

LEGISLATIVE RELATIONS

Constitutional basis (Arts. 245-255): Articles 245 to 255 in Part XI of the Constitution deal with the legislative relations between the Centre and the states. Besides these, there are some other articles dealing with the same subject.

Four aspects of legislative relations: Like any other Federal Constitution, the Indian Constitution also divides the legislative powers between the Centre and the states with respect to both the territory and the subjects of legislation. Further, the Constitution provides for the parliamentary legislation in the state field under five extraordinary situations as well as the centre's control over state legislation in certain cases. Thus, there are four aspects in the Centre-states legislative relations, viz.,

1.	2.	3.	4.
Territorial extent of Central and state legislation;	**Distribution of legislative subjects;**	**Parliamentary legislation in the state field; and**	**Centre's control over state legislation.**

Territorial Extent of Central and State Legislation

1. Territorial Extent of Central and State Legislation

Territorial jurisdiction: The Constitution defines the territorial limits of the legislative powers vested in the Centre and the states in the following way:

(i) **Pan-India jurisdiction of Parliament:** The Parliament can make laws for the whole or any part of the territory of India. The territory of India includes the states, the union territories, and any other area for the time being included in the territory of India.

(ii) **Doctrine of Territorial Nexus:** A state legislature can make laws for the whole or any part of the state. The laws made by a state legislature are not applicable outside the state, except when there is a sufficient nexus between the state and the object.

(iii) **Extra-territorial legislation:** The Parliament alone can make 'extra-territorial legislation'. Thus, the laws of the Parliament are also applicable to the Indian citizens and their property in any part of the world.

Parliament	State legislature
whole or any part of India states + UTs + other areas extra-territorial also ✔	whole or any part of the state not outside the state except sufficient nexus

Limits on plenary jurisdiction: However, the Constitution places certain restrictions on the plenary territorial jurisdiction of the Parliament. In other words, the laws of Parliament are not applicable in the following areas:

(i) **President's regulation-making power (UTs):** The President can make regulations for the peace, progress and good government of the Union Territories of the Andaman and Nicobar Islands, Lakshadweep, Dadra and Nagar Haveli and Daman and Diu and Ladakh. In the case of Puducherry also, the President can legislate by making regulations but only when the Assembly is suspended or dissolved. A regulation so made has the same force and effect as an act of Parliament. It may also repeal or amend any act of Parliament in relation to these union territories.

(ii) **Governor & Scheduled Areas (Fifth Schedule):** The governor is empowered to direct that an act of Parliament does not apply to a scheduled area in the state or apply with specified modifications and exceptions.

(iii) **Tribal Areas (Sixth Schedule):** The Governor of Assam may likewise direct that an act of Parliament does not apply to a tribal area (autonomous district) in the state or apply with specified modifications and exceptions. The President enjoys the same power with respect to tribal areas (autonomous districts) in Meghalaya, Tripura and Mizoram.

President	Governor	Governor of Assam / President
regulations for UTs A&N, Lakshadweep, DNH & DD, Ladakh Puducherry – only if Assembly suspended/dissolved	scheduled area act not to apply / apply with modifications	tribal areas Assam (Governor) Meghalaya, Tripura, Mizoram (President)

Distribution of Legislative Subjects

2. Distribution of Legislative Subjects

Three-fold distribution (Seventh Schedule): The Constitution provides for a three-fold distribution of legislative subjects between the Centre and the states, viz., List-I (the Union List), List-II (the State List) and List-III (the Concurrent List) in the Seventh Schedule:

List-I Union List	List-II State List	List-III Concurrent List
98 subjects originally 97 Parliament – exclusive	59 subjects originally 66 State – exclusive (normal times)	52 subjects originally 47 Both

(i) **Union List – exclusive power of Parliament:** The Parliament has exclusive powers to make laws with respect to any of the matters enumerated in the Union List. This list has at present 98 subjects (originally 97[1] subjects) like defence, banking, foreign affairs, currency, atomic energy, insurance, communication, inter-state trade and commerce, census, audit and so on.

(ii) **State List – exclusive in normal times:** The state legislature has "in normal circumstances" exclusive powers to make laws with respect to any of the matters enumerated in the State List. This has at present 59 subjects (originally 66[2] subjects) like public order, police, public health and sanitation, agriculture, prisons, local government, fisheries, markets, theaters, gambling and so on.

(iii) **Concurrent List – shared domain:** Both, the Parliament and state legislature can make laws with respect to any of the matters enumerated in the Concurrent List. This list has at present 52 subjects (originally 47[3] subjects) like criminal law and procedure, civil procedure, marriage and divorce, population control and family planning, electricity, labour welfare, economic and social planning, drugs, newspapers, books and printing press, and others. The 42nd Amendment Act of 1976 transferred five subjects to Concurrent List from State List, that is, (a) education, (b) forests, (c) weights and measures, (d) protection of wild animals and birds, and (e) administration of justice; constitution and organisation of all courts except the Supreme Court and the high courts.

State List → 42nd Amendment, 1976 → Concurrent List

education | forests | weights & measures | wild animals & birds | administration of justice

(iv) **Union Territories & acquired territories:** The Parliament has power to make laws with respect to any matter for any part of the territory of India not included in a state even though that matter is one which is enumerated in the State List. This provision has reference to the Union Territories or the Acquired Territories (if any).

(v) **GST – simultaneous power (101st Amdt):** The 101st Amendment Act of 2016 has made a special provision with respect to goods and services tax. Accordingly, the Parliament and the state legislature have power to make laws with respect to goods and services tax imposed by the Union or by the State. Further, the parliament has exclusive power to make laws with respect to goods and services tax where the supply of goods or services or both takes place in the course of inter-state trade or commerce.

(vi) **Residuary powers with Parliament:** The power to make laws with respect to residuary subjects (i.e., the matters which are not enumerated in any of the three lists) is vested in the Parliament. This residuary power of legislation includes the power to levy residuary taxes.

Residuary subjects → Parliament → incl. residuary taxes

1 Even now, the last entry is numbered as 97 but the total number of entries is 98. The entries numbered as 2A, 92A and 92B have been added and entries 33, 92 and 92C have been omitted.

2 Even now, the last entry is numbered as 66 but the total number of entries is 59. The entries numbered as 11, 19, 20, 29, 36, 52 and 55 have been omitted.

3 Even now, the last entry is numbered as 47 but the total number of entries is 52. The entries numbered as 11A, 17A, 17B, 20A and 33A have been added.

Scheme of Lists and Predominance

Rationale of three lists: From the above scheme, it is clear that the matters of national importance and the matters which require uniformity of legislation nationwide are included in the Union List. The matters of regional and local importance and the matters which permit diversity of interest are specified in the State List. The matters on which uniformity of legislation throughout the country is desirable but not essential are enumerated in the concurrent list. Thus, it permits diversity along with uniformity.

Union List	State List	Concurrent List
national importance	regional & local importance	uniformity desirable
uniformity nationwide	diversity of interest	but not essential

Comparative federalism – US, Australia, Canada: In US, only the powers of the Federal Government are enumerated in the Constitution and the residuary powers are left to the states. The Australian Constitution followed the American pattern of single enumeration of powers. In Canada, on the other hand, there is a double enumeration—Federal and Provincial, and the residuary powers are vested in the Centre.

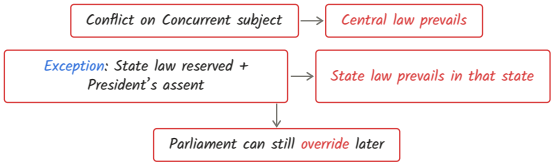
GoI Act 1935 & Canadian precedent: The Government of India Act of 1935 provided for a three-fold enumeration, viz., federal, provincial and concurrent. The present Constitution follows the scheme of this act but with one difference, that is, under this act, the residuary powers were given neither to the federal legislature nor to the provincial legislature but to the Governor-General of India. In this respect, India follows the Canadian precedent.

Country / Act	Enumeration	Residuary powers
USA	single (federal only)	states
Australia	single (American pattern)	states
Canada	double (federal + provincial)	Centre
GoI Act 1935	three-fold	Governor-General
India	three-fold (7th Schedule)	Parliament (Centre)

Hierarchy of lists: The Constitution expressly secures the predominance of the Union List over the State List and the Concurrent List and that of the Concurrent List over the State List. Thus, in case of overlapping between the Union List and the State List, the former should prevail. In case of overlapping between the Union List and the Concurrent List, it is again the former which should prevail. Where there is a conflict between the Concurrent List and the State List, it is the former that should prevail.

Union List > Concurrent List > State List

Doctrine of repugnancy (Art. 254): In case of a conflict between the Central law and the state law on a subject enumerated in the Concurrent List, the central law prevails over the state law. But, there is an exception. If the state law has been reserved for the consideration of the President and has received his/her assent, then the state law prevails in that state. But, it would still be competent for the Parliament to override such a law by subsequently making a law on the same matter.



Parliamentary Legislation in the State Field – I

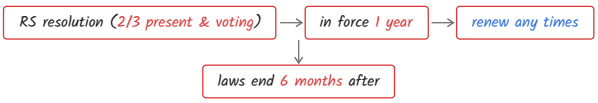
3. Parliamentary Legislation in the State Field

Flexibility in abnormal times: The above scheme of distribution of legislative powers between the Centre and the states is to be maintained in normal times. But, in abnormal times, the scheme of distribution is either modified or suspended. In other words, the Constitution empowers the Parliament to make laws on any matter enumerated in the State List under the following five extraordinary circumstances:

A. Rajya Sabha resolution | B. National Emergency | C. States' request | D. International agreements | E. President's Rule

A. When Rajya Sabha Passes a Resolution

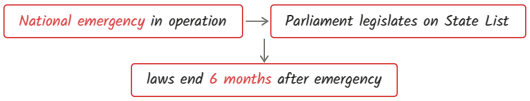
Rajya Sabha resolution (Art. 249): If the Rajya Sabha declares that it is necessary in the national interest that Parliament should make laws with respect to goods and services tax[3a] or a matter in the State List, then the Parliament becomes competent to make laws on that matter. Such a resolution must be supported by two-thirds of the members present and voting. The resolution remains in force for one year; it can be renewed any number of times but not exceeding one year at a time. The laws cease to have effect on the expiration of six months after the resolution has ceased to be in force.



Parliamentary law prevails: This provision does not restrict the power of a state legislature to make laws on the same matter. But, in case of inconsistency between a state law and a parliamentary law, the latter is to prevail.

B. During a National Emergency

National Emergency (Art. 250): The Parliament acquires the power to legislate with respect to goods and services tax[3b] or matters in the State List, while a proclamation of national emergency is in operation. The laws become inoperative on the expiration of six months after the emergency has ceased to operate.



Repugnancy – Parliament prevails: Here also, the power of a state legislature to make laws on the same matter is not restricted. But, in case of repugnancy between a state law and a parliamentary law, the latter is to prevail.

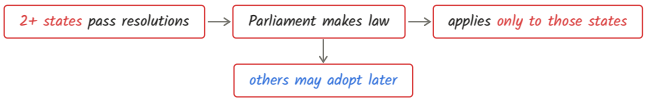
3a The provision for goods and services tax was added by the 101st Amendment Act of 2016.

3b Ibid.

Parliamentary Legislation in the State Field – II

C. When States Make a Request

Consent of two or more states (Art. 252): When the legislatures of two or more states pass resolutions requesting the Parliament to enact laws on a matter in the State List, then the Parliament can make laws for regulating that matter. A law so enacted applies only to those states which have passed the resolutions. However, any other state may adopt it afterwards by passing a resolution to that effect in its legislature. Such a law can be amended or repealed only by the Parliament and not by the legislatures of the concerned states.



Surrender of state power: The effect of passing a resolution under the above provision is that the Parliament becomes entitled to legislate with respect to a matter for which it has no power to make a law. On the other hand, the state legislature ceases to have the power to make a law with respect to that matter. The resolution operates as abdication or surrender of the power of the state legislature with respect to that matter and it is placed entirely in the hands of Parliament which alone can then legislate with respect to it.

Parliament	State legislature
gains power on that matter	loses power on that matter
alone can amend / repeal	abdication / surrender

Examples – Art. 252 laws: Some examples of laws passed under the above provision are Prize Competition Act, 1955; Wild Life (Protection) Act, 1972; Water (Prevention and Control of Pollution) Act, 1974; Urban Land (Ceiling and Regulation) Act, 1976; and Transplantation of Human Organs Act, 1994.

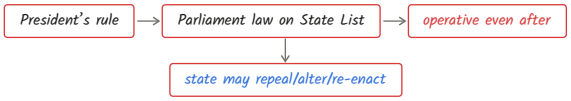
D. To Implement International Agreements

Treaty implementation (Art. 253): The Parliament can make laws on any matter in the State List for implementing the international treaties, agreements or conventions. This provision enables the Central government to fulfil its international obligations and commitments.

Examples – Art. 253 laws: Some examples of laws enacted under the above provision are United Nations (Privileges and Immunities) Act, 1947; Geneva Convention Act, 1960; Anti-Hijacking Act, 1982 and legislations relating to environment and TRIPS.

E. During President's Rule

President's Rule – law survives: When the President's rule is imposed in a state, the Parliament becomes empowered to make laws with respect to any matter in the State List in relation to that state. A law made so by the Parliament continues to be operative even after the president's rule. This means that the period for which such a law remains in force is not coterminous with the duration of the President's rule. But, such a law can be repealed or altered or re-enacted by the state legislature.



Centre's Control Over State Legislation

4. Centre's Control Over State Legislation

Central control over state legislation: Besides the Parliament's power to legislate directly on the state subjects under the exceptional situations, the Constitution empowers the Centre to exercise control over the state's legislative matters in the following ways:

(i) **Reservation of state bills (Arts. 200 & 201):** The Governor can reserve a bill passed by the state legislature for the consideration of the President. It must be noted here that the President enjoys absolute veto over such a bill (Articles 200 and 201).

(ii) **Previous sanction – trade bills (Art. 304):** A state bill imposing restrictions on the freedom of trade, commerce and intercourse with that state or within that state can be introduced in the legislature of the state only with the previous sanction of the President (Article 304).

(iii) **Financial emergency – reservation (Art. 360):** The Centre can direct the states to reserve money bills and other financial bills passed by the state legislature for the President's consideration during a financial emergency (Article 360).

(iv) **Ordinance only on instructions (Art. 213):** The Governor cannot make an ordinance without the instructions from the President in certain cases (Article 213).

Art. 200 & 201	Art. 304	Art. 360	Art. 213
reserved bill	trade restriction bill	money/financial bills	ordinance
absolute veto	previous sanction	financial emergency	President's instructions

Union supremacy in legislation: From the above, it is clear that the Constitution has assigned a position of superiority to the Centre in the legislative sphere. In this context, the Sarkaria Commission on Centre– State Relations (1983–88) observed:

> **Sarkaria – rule of federal supremacy:** "The rule of federal supremacy is a technique to avoid absurdity, resolve conflict and ensure harmony between the Union and state laws. If this principle of union supremacy is excluded, it is not difficult to imagine its deleterious results. There will be every possibility of our two-tier political system being stultified by interference, strife, legal chaos and confusion caused by a host of conflicting laws, much to the bewilderment of the common citizen. Integrated legislative policy and uniformity on basic issues of common Union–state concern will be stymied. The federal principle of unity in diversity will be very much a casualty. This rule of federal supremacy, therefore, is indispensable for the successful functioning of the federal system".[4]

federal supremacy → avoids absurdity / conflict → harmony → unity in diversity

4 Report of the Commission on centre-state Relations, Part I (Government of India, 1988) pp. 28–29.

Administrative Relations – I

ADMINISTRATIVE RELATIONS

Constitutional basis (Arts. 256–263): Articles 256 to 263 in Part XI of the Constitution deal with the administrative relations between the Centre and the states. In addition, there are various other articles pertaining to the same matter.

1. Distribution of Executive Powers

Executive follows legislative domain: The executive power has been divided between the Centre and the states on the lines of the distribution of legislative powers, except in few cases.

Thus, the executive power of the Centre extends to the whole of India:

(i) **Union executive – Union List:** to the matters on which the Parliament has exclusive power of legislation (i.e., the subjects enumerated in the Union List); and

(ii) **Union executive – treaties:** to the exercise of rights, authority and jurisdiction conferred on it by any treaty or agreement.

Similarly, the executive power of a state extends to its territory in respect of matters on which the state legislature has exclusive power of legislation (i.e., the subjects enumerated in the State List).

Concurrent subjects – executed by states: In respect of matters on which both the Parliament and the state legislatures have power of legislation (i.e., the subjects enumerated in the Concurrent List), the executive power rests with the states except when a Constitutional provision or a parliamentary law specifically confers it on the Centre. Therefore, a law on a concurrent subject, though enacted by the Parliament, is to be executed by the states except when the Constitution or the Parliament has directed otherwise.[5]

Union List	State List	Concurrent List
executive power → Centre + treaties / agreements	executive power → State	executive power → States unless Constitution / Parliament says Centre

2. Obligation of States and the Centre

Duty to comply & not impede (Arts. 256–257): The Constitution has placed two restrictions on the executive power of the states in order to give ample scope to the Centre for exercising its executive power in an unrestricted manner. Thus, the executive power of every state is to be exercised in such a way (a) as to ensure compliance with the laws made by the Parliament and any existing law which apply in the state; and (b) as not to impede or prejudice the exercise of executive power of the Centre in the state. While the former lays down a general obligation upon the state, the latter imposes a specific obligation on the state not to hamper the executive power of the Centre.

(a) general obligation	(b) specific obligation
comply with laws of Parliament + existing laws	not impede / prejudice Centre's executive power

Coercive sanction (Art. 365): In both the cases, the executive power of the Centre extends to giving of such directions to the state as are necessary for the purpose. The sanction behind these directions of the Centre is coercive in nature. Thus, Article 365 says that where any state has failed to comply with (or to give effect to) any directions given by the Centre, it will be lawful for the President to hold that a situation has arisen in which the government of the state cannot be carried on in accordance with the provisions of the Constitution. It means that, in such a situation, the President's rule can be imposed in the state under Article 356.

Centre gives directions → State fails to comply → Art. 365

↓

President's rule (Art. 356)

3. Centre's Directions to the States

Centre's directions to states: In addition to the above two cases, the Centre is empowered to give directions to the states with regard to the exercise of their executive power in the following matters:

(i) **Communications of national/military importance:** the construction and maintenance of means of communication (declared to be of national or military importance) by the state;

(ii) **Protection of railways:** the measures to be taken for the protection of the railways within the state;

(iii) **Mother-tongue instruction – linguistic minorities:** the provision of adequate facilities for instruction in the mother-tongue at the primary stage of education to children belonging to linguistic minority groups in the state; and

(iv) **Welfare of Scheduled Tribes:** the drawing up and execution of the specified schemes for the welfare of the Scheduled Tribes in the state.

Art. 365 applies to all directions: The coercive sanction behind the Central directions under Article 365 (mentioned above) is also applicable in these cases.

5 For example, under the Essential Commodities Act, made by the Parliament on a concurrent subject, the executive power is vested in the Centre.

Administrative Relations – II

4. Mutual Delegation of Functions

Rigidity vs delegation: The distribution of legislative powers between the Centre and the states is rigid. Consequently, the Centre cannot delegate its legislative powers to the states and a single state cannot request the Parliament to make a law on a state subject. The distribution of executive power in general follows the distribution of legislative powers. But, such a rigid division in the executive sphere may lead to occasional conflicts between the two. Hence, the Constitution provides for inter-government delegation of executive functions in order to mitigate rigidity and avoid a situation of deadlock.

Consensual delegation (Arts. 258 & 258A): Accordingly, the President may, with the consent of the state government, entrust to that government any of the executive functions of the Centre. Conversely, the governor of a state may, with the consent of the Central government, entrust to that government any of the executive functions of the state.[6] This mutual delegation of administrative functions may be conditional or unconditional.

Centre ⇄ State
(President entrusts (with state's consent); Governor entrusts (with Centre's consent))

Statutory delegation by Parliament: The Constitution also makes a provision for the entrustment of the executive functions of the Centre to a state without the consent of that state. But, in this case, the delegation is by the Parliament and not by the president. Thus, a law made by the Parliament on a subject of the Union List can confer powers and impose duties on a state, or authorise the conferring of powers and imposition of duties by the Centre upon a state (irrespective of the consent of the state concerned). Notably, the same thing cannot be done by the state legislature.

Agreement vs legislation: From the above, it is clear that the mutual delegation of functions between the Centre and the state can take place either under an agreement or by a legislation. While the Centre can use both the methods, a state can use only the first method.

By agreement	By legislation
Centre ✔	Centre (Parliament) ✔
State ✔	State ✘

5. Cooperation Between the Centre and States

Cooperative mechanisms: The Constitution contains the following provisions to secure cooperation and coordination between the Centre and the states:

(i) **Inter-state river water disputes (Art. 262):** The Parliament can provide for the adjudication of any dispute or complaint with respect to the use, distribution and control of waters of any inter-state river and river valley.

(ii) **Inter-State Council (Art. 263):** The President can establish (under Article 263) an Inter-State Council to investigate and discuss subject of common interest between the Centre and the states. Such a council was set up in 1990.

(iii) **Full faith and credit clause (Art. 261):** Full faith and credit is to be given throughout the territory of India to public acts, records and judicial proceedings of the Centre and every state.

(iv) **Inter-state trade authority (Art. 307):** The Parliament can appoint an appropriate authority to carry out the purposes of the constitutional provisions relating to the interstate freedom of trade, commerce and intercourse. But, no such authority has been appointed so far.

river water disputes	Inter-State Council Art. 263 · 1990	full faith & credit	trade authority not appointed

6 This provision (the power of the states to entrust functions to the Centre) was added by the 7th Constitutional Amendment Act of 1956. Before that, only the Centre had the power.

All-India Services

6. All-India Services

All-India Services: Like in any other federation, the Centre and the states also have their separate public services called as the Central Services and the State Services respectively. In addition, there are All-India Services—IAS, IPS and IFoS. The members of these services occupy top positions (or key posts) under both the Centre and the states and serve them by turns. But, they are recruited and trained by the Centre.



Joint control – ultimate & immediate: These services are controlled jointly by the Centre and the states. The ultimate control lies with the Central government while the immediate control vests with the state governments.

Ultimate control	Immediate control
Central government	State governments

Evolution – ICS to IAS, IFoS, Art. 312: In 1947, Indian Civil Service (ICS) was replaced by IAS and the Indian Police (IP) was replaced by IPS and were recognised by the Constitution as All-India Services. In 1966, the Indian Forest Service (IFoS) was created as the third All-India Service. Article 312 of the Constitution authorises the Parliament to create new All-India Services on the basis of a Rajya Sabha resolution to that effect.

ICS → IAS (1947) → IP → IPS (1947) → IFoS (1966)

↓

new: Art. 312 + RS resolution

Single unified cadre: Each of these three All-India Services, irrespective of their division among different states, form a single service with common rights and status and uniform scales of pay throughout the country.

Justification of AIS: Though the All-India Services violate the principle of federalism under the Constitution by restricting the autonomy and patronage of the states, they are supported on the ground that

(i) **High standard of administration:** they help in maintaining high standard of administration in the Centre as well as in the states;

(ii) **Administrative uniformity:** they help to ensure uniformity of the administrative system throughout the country; and

(iii) **Liaison & coordination:** they facilitate liaison, cooperation, coordination and joint action on the issues of common interest between the Centre and the states.



Ambedkar on AIS: While justifying the institution of all-India services in the Constituent Assembly, Dr. B.R. Ambedkar observed that:

> **Strategic posts – dual service with exception:** "The dual polity which is inherent in a federal system is followed in all federations by a dual service. In all federations, there is a Federal Civil Service and a State Civil Service. The Indian federation, though a dual polity, will have a dual service, but with one exception. It is recognised that in every country there are certain posts in its administrative set up which might be called strategic from the point of view of maintaining the standard of administration. There can be no doubt that the standard of administration depends upon the calibre of the civil servants who are appointed to the strategic posts. The Constitution provides that without depriving the states of their rights to form their own civil services, there shall be an all-India service, recruited on an all-India basis with common qualifications, with uniform scale of pay and members of which alone could be appointed to those strategic posts throughout the Union".[7]

7 Constituent Assembly Debates, Volume VII, pp. 41-42.

Administrative Relations – III

7. Public Service Commissions

Public Service Commissions: In the field of public service commissions, the Centre-state relations are as follows:

(i) **SPSC – removal by President:** The Chairman and members of a state public service commission, though appointed by the governor of the state, can be removed only by the President.

(ii) **JSPSC – created by Parliament:** The Parliament can establish a Joint State Public Service Commission (JSPSC) for two or more states on the request of the state legislatures concerned. The chairman and members of the JSPSC are appointed by the President.

(iii) **UPSC serving states:** The Union Public Service Commission (UPSC) can serve the needs of a state on the request of the state governor and with the approval of the President.

(iv) **Joint recruitment:** The UPSC assists the states (when requested by two or more states) in framing and operating schemes of joint recruitment for any services for which candidates possessing special qualifications are required.

SPSC	JSPSC	UPSC
appointed: Governor removed: President	created: Parliament appointed: President	serves a state Governor's request + President's approval

8. Integrated Judicial System

Integrated judicial system: Though India has a dual polity, there is no dual system of administration of justice. The Constitution, on the other hand, established an integrated judicial system with the Supreme Court at the top and the state high courts below it. This single system of courts enforces both the Central laws as well as the state laws. This is done to eliminate diversities in the remedial procedure.

Supreme Court → High Courts → Central + state laws

Appointment of HC judges: The judges of a state high court are appointed by the President in consultation with the Chief Justice of India and the governor of the state. They can also be transferred and removed by the President.

Common High Court: The Parliament can establish a common high court for two or more states. For example, Maharashtra and Goa or Punjab and Haryana have a common high court.

9. Relations During Emergencies

(i) **National Emergency (Art. 352):** During the operation of a national emergency (under Article 352), the Centre becomes entitled to give executive directions to a state on 'any' matter. Thus, the state governments are brought under the complete control of the Centre, though they are not suspended.

(ii) **President's Rule (Art. 356):** When the President's Rule is imposed in a state (under Article 356), the President can assume to himself/herself the functions of the state government and powers vested in the Governor or any other executive authority in the state.

(iii) **Financial Emergency (Art. 360):** During the operation of a financial emergency (under Article 360), the Centre can direct the states to observe canons of financial propriety and can give other necessary directions including the reduction of salaries of persons serving in the state.

Art. 352	Art. 356	Art. 360
directions on any matter state govt not suspended	President assumes state functions	financial propriety cut salaries

Administrative Relations – IV

10. Other Provisions

Other control provisions: The Constitution contains the following other provisions which enable the Centre to exercise control over the state administration:

(i) **Duty of the Union (Art. 355):** Article 355 imposes two duties on the Centre: (a) to protect every state against external aggression and internal disturbance; and (b) to ensure that the government of every state is carried on in accordance with the provisions of the Constitution.

(ii) **Governor as agent of the Centre:** The governor of a state is appointed by the President. He/she holds office during the pleasure of the President. In addition to the Constitutional head of the state, the governor acts as an agent of the Centre in the state. He/she submits periodical reports to the Centre about the administrative affairs of the state.

(iii) **State Election Commissioner:** The state election commissioner, though appointed by the governor of the state, can be removed only by the President.

Art. 355 – 2 duties | Governor – agent of Centre | SEC – removed by President

11. Extra-Constitutional Devices

Extra-constitutional devices: In addition to the above-mentioned constitutional devices, there are extra-constitutional devices to promote cooperation and coordination between the Centre and the states. These include a number of advisory bodies and conferences held at the Central level.



Non-constitutional advisory bodies: The non-constitutional advisory bodies include the NITI Ayog (which succeeded the planning commission), the National Integration Council, the Central Council of Health and Family Welfare, the Central Council of Local Government, the Zonal Councils, the North-Eastern Council, the Central Council of Indian Medicine, the Central Council of Homoeopathy, the Transport Development Council, the University Grants Commission and so on.

Centre-state conferences: The important conferences held either annually or otherwise to facilitate Centre-state consultation on a wide range of matters are as follows:

(i) The governors' conference (presided over by the President).
(ii) The chief ministers' conference (presided over by the prime minister).
(iii) The chief secretaries' conference (presided over by the cabinet secretary).
(iv) The conference of inspector-general of police.
(v) The chief justices' conference (presided over by the chief justice of India).
(vi) The conference of vice-chancellors.
(vii) The home ministers' conference (presided over by the Central home minister).
(viii) The law ministers' conference (presided over by the Central law minister).

Conference	Presided over by
Governors	President
Chief ministers	Prime minister
Chief secretaries	Cabinet secretary
Chief justices	Chief justice of India
Home ministers	Central home minister
Law ministers	Central law minister

Financial Relations – Allocation of Taxing Powers

FINANCIAL RELATIONS

Constitutional basis (Arts. 268–293): Articles 268 to 293 in Part XII of the Constitution deal with Centre-state financial relations. Besides these, there are other provisions dealing with the same subject. These together can be studied under the following heads:

I. Allocation of Taxing Powers

Separation of taxing powers: The Constitution divides the taxing powers between the Centre and the states in the following way:

- The Parliament has exclusive power to levy taxes on subjects enumerated in the Union List (which are 13 in number[8]).
- The state legislature has exclusive power to levy taxes on subjects enumerated in the State List (which are 18 in number[9]).
- There are no tax entries in the Concurrent List. In other words, the concurrent jurisdiction is not available with respect to tax legislation. But, the 101st Amendment Act of 2016 has made an exception by making a special provision with respect to goods and services tax. This Amendment has conferred concurrent power upon the Parliament and State Legislatures to make laws governing goods and services tax[10].
- The residuary power of taxation (that is, the power to impose taxes not enumerated in any of the three lists) is vested in the Parliament. Under this provision, the Parliament has imposed gift tax, wealth tax and expenditure tax.

Union List	State List	Concurrent List	Residuary
13 tax entries	18 tax entries	no tax entries except GST (101st Amdt)	Parliament
Parliament	State legislature		gift, wealth, expenditure tax

Levy vs appropriation: The Constitution also draws a distinction between the power to levy and collect a tax and the power to appropriate the proceeds of the tax so levied and collected. For example, the income-tax is levied and collected by the Centre but its proceeds are distributed between the Centre and the states.

Income tax: levied & collected by Centre → proceeds shared Centre + states

Restrictions on state taxation: Further, the Constitution has placed the following restrictions on the taxing powers of the states:

(i) **Profession tax ceiling (Art. 276):** A state legislature can impose taxes on professions, trades, callings and employments. But, the total amount of such taxes payable by any person should not exceed ₹2,500 per annum.[11]

(ii) **Place of supply (Art. 286):** A state legislature is prohibited from imposing a tax on the supply of goods or services or both in the following two cases: (a) where such supply takes place outside the state; and (b) where such supply takes place in the course of import or export. Further, the Parliament is empowered to formulate the principles for determining when a supply of goods or services or both takes place outside the state, or in the course of import or export[12].

(iii) **Electricity tax exemption (Art. 287):** A state legislature can impose tax on the consumption or sale of electricity. But, no tax can be imposed on the consumption or sale of electricity which is (a) consumed by the Centre or sold to the Centre; or (b) consumed in the construction, maintenance or operation of any railway by the Centre or by the concerned railway company or sold to the Centre or the railway company for the same purpose.

(iv) **Inter-state river authority (Art. 288):** A state legislature can impose a tax in respect of any water or electricity stored, generated, consumed, distributed or sold by any authority established by Parliament for regulating or developing any inter-state river or river valley. But, such a law, to be effective, should be reserved for the president's consideration and receive his/her assent.

Profession tax	Supply tax	Electricity	Inter-state river
max ₹2,500/year	✘ outside state ✘ import/export	✘ Centre / railways	reserve for President

8 Entries—82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92A, 92B and 96.

9 Entries—45, 46, 47, 48, 49, 50, 51, 53, 54, 56, 57, 58, 59, 60, 61, 62, 63 and 66.

10 In this regard, the 101st Amendment Act of 2016 inserted Article 246-A in the Constitution.

11 Originally, this limit was only ₹250 per annum. The 60th Amendment Act of 1988 raised it to ₹2,500 per annum.

12 These provisions are contained in Article 286, as amended by the 101st Amendment Act of 2016.

Distribution of Tax Revenues – 80th and 101st Amendments

2. Distribution of Tax Revenues

Restructuring of fiscal federalism: The 80th Amendment Act of 2000 and the 101st Amendment Act of 2016 have introduced major changes in the scheme of the distribution of tax revenues between the centre and the states.

Alternative Scheme of Devolution (80th Amdt): The 80th Amendment was enacted to give effect to the recommendations of the 10th Finance Commission. The Commission recommended that out of the total income obtained from certain central taxes and duties, 29% should go to the states. This is known as the 'Alternative Scheme of Devolution' and came into effect retrospectively from April 1, 1996. This amendment has brought several central taxes and duties like Corporation Tax and Customs Duties at par with Income Tax (taxes on income other than agricultural income) as far as their constitutionally mandated sharing with the states is concerned.[13]

10th Finance Commission → 29% to states → Alternative Scheme of Devolution
↓
from 1 April 1996

GST regime (101st Amdt): The 101st Amendment has paved the way for the introduction of a new tax regime (i.e., goods and services tax – GST) in the country. Accordingly, the Amendment conferred concurrent taxing powers upon the Parliament and the State Legislatures to make laws for levying GST on every transaction of supply of goods or services or both. The GST replaced a number of indirect taxes levied by the Union and the State Governments and is intended to remove the cascading effect of taxes and provide for a common national market for goods and services.

The Amendment provided for subsuming of various central indirect taxes and levies such as

(i) Central Excise Duty,
(ii) Additional Excise Duties,
(iii) Excise Duty levied under the Medicinal and Toilet Preparations (Excise Duties) Act, 1955,
(iv) Service Tax,
(v) Additional Customs Duty commonly known as Countervailing Duty,
(vi) Special Additional Duty of Customs, and
(vii) Central Surcharges and Cesses

so far as they related to the supply of goods and services.

Similarly, the Amendment provided for subsuming of

(i) State Value Added Tax / Sales Tax,
(ii) Entertainment Tax (other than the tax levied by the local bodies),
(iii) Central Sales Tax (levied by the Centre and collected by the States),
(iv) Octroi and Entry Tax,
(v) Purchase Tax,
(vi) Luxury Tax,
(vii) Taxes on lottery, betting and gambling, and
(viii) State Surcharges and Cesses

in so far as they related to the supply of goods and services.

Further, the Amendment deleted Article 268-A as well as Entry 92-C in the Union List, both were dealing with service tax. They were added earlier by the 88th Amendment Act of 2003. The service tax was levied by the Centre but collected and appropriated by both the Centre and the States.

Central taxes subsumed (7)	State taxes subsumed (8)
Central Excise Duty	State VAT / Sales Tax
Additional Excise Duties	Entertainment Tax
Medicinal & Toilet Prep. excise	Central Sales Tax
Service Tax	Octroi & Entry Tax
Countervailing Duty	Purchase Tax
Special Addl. Duty of Customs	Luxury Tax
Central surcharges & cesses	Lottery, betting, gambling
	State surcharges & cesses

88th Amdt 2003: Art. 268-A + Entry 92-C → 101st Amdt 2016: deleted

Present scheme of tax sharing: After the above two amendments (i.e., 80th Amendment and 101st Amendment), the present position with respect to the distribution of tax revenues between the centre and the states is as follows:

A. Art. 268 | B. Art. 269 | C. Art. 269-A | D. Art. 270 | E. Art. 271 | F. State taxes

13 This amendment deleted Article 272 (Taxes which are levied and collected by the Centre and may be distributed between the Centre and the states).

Distribution of Tax Revenues – Articles 268 to 271

A. Taxes Levied by the Centre but Collected and Appropriated by the States (Article 268):

Stamp duties (Art. 268): This category includes the stamp duties on bills of exchange, cheques, promissory notes, policies of insurance, transfer of shares and others.

Outside Consolidated Fund of India: The proceeds of these duties levied within any state do not form a part of the Consolidated Fund of India, but are assigned to that state.

levied: **Centre** → collected: **State** → appropriated: **State**

B. Taxes Levied and Collected by the Centre but Assigned to the States (Article 269):

Taxes assigned to states (Art. 269): The following taxes fall under this category:

(i) **Inter-state sale tax:** Taxes on the sale or purchase of goods (other than newspapers) in the course of inter-state trade or commerce.
(ii) **Consignment tax:** Taxes on the consignment of goods in the course of inter-state trade or commerce.

Net proceeds assigned: The net proceeds of these taxes do not form a part of the Consolidated Fund of India. They are assigned to the concerned states in accordance with the principles laid down by the Parliament.

levied: **Centre** → collected: **Centre** → assigned: **States**

C. Levy and Collection of Goods and Services Tax in Course of Inter-State Trade or Commerce (Article 269-A):

IGST (Art. 269-A): The Goods and Services Tax (GST) on supplies in the course of inter-state trade or commerce are levied and collected by the Centre. But, this tax is divided between the Centre and the States in the manner provided by Parliament on the recommendations of the GST Council. Further, the Parliament is also authorized to formulate the principles for determining the place of supply, and when a supply of goods or services or both takes place in the course of inter-state trade or commerce.

inter-state GST (IGST) → levied & collected: **Centre** → divided: **Centre + States**
↓
as per GST Council

D. Taxes Levied and Collected by the Centre but Distributed between the Centre and the States (Article 270):

Divisible pool (Art. 270): This category includes all taxes and duties referred to in the Union List except the following:

(i) **Exclusion – Arts. 268, 269, 269-A:** Duties and taxes referred to in Articles 268, 269 and 269-A (mentioned above);
(ii) **Exclusion – surcharges:** Surcharge on taxes and duties referred to in Article 271 (mentioned below); and
(iii) **Exclusion – cesses:** Any cess levied for specific purposes.

Finance Commission formula: The manner of distribution of the net proceeds of these taxes and duties is prescribed by the President on the recommendation of the Finance Commission.

all Union List taxes → minus 268, 269, 269-A, surcharge, cess
↓
shared as per **Finance Commission**

E. Surcharge on Certain Taxes and Duties for Purposes of the Centre (Article 271):

Surcharges – Centre only (Art. 271): The Parliament can at any time levy the surcharges on taxes and duties referred to in Articles 269 and 270 (mentioned above). The proceeds of such surcharges go to the Centre exclusively. In other words, the states have no share in these surcharges.

GST outside surcharge: However, the Goods and Services Tax (GST) is exempted from this surcharge. In other words, this surcharge can not be imposed on the GST.

Surcharge (Art. 271) → **Centre only** → not on GST

State Taxes and Non-tax Revenues

F. Taxes Levied and Collected and Retained by the States:

Exclusive state taxes (18): These are the taxes belonging to the states exclusively. They are enumerated in the state list and are 18 in number. These are[14]:

(i) land revenue;
(ii) taxes on agricultural income;
(iii) duties in respect of succession to agricultural land;
(iv) estate duty in respect of agricultural land;
(v) taxes on lands and buildings;
(vi) taxes on mineral rights;
(vii) Duties of excise on alcoholic liquors for human consumption; opium, Indian hemp and other narcotic drugs and narcotics, but not including medicinal and toilet preparations containing alcohol or narcotics;
(viii) taxes on the consumption or sale or electricity;
(ix) taxes on the sale of petroleum crude, high speed diesel, motor spirit (commonly known as petrol), natural gas, aviation turbine fuel and alcoholic liquor for human consumption, but not including sale in the course of inter-state trade or commerce or sale in the course of international trade or commerce of such goods;
(x) taxes on goods and passengers carried by road or inland waterways;
(xi) taxes on vehicles;
(xii) taxes on animals and boats;
(xiii) tolls;
(xiv) taxes on professions, trades, callings and employments;
(xv) capitation taxes;
(xvi) taxes on entertainments and amusements to the extent levied and collected by a Panchayat or a Municipality or a Regional Council or a District Council;
(xvii) stamp duty on documents (except those specified in the Union List); and
(xviii) fees on the matters enumerated in the State List (except court fees).

levied: **State** → collected: **State** → retained: **State**

3. Distribution of Non-tax Revenues

A. The Centre

Non-tax revenue – Centre: The receipts from the following form the major sources of non-tax revenues of the Centre:

(i) posts and telegraphs;
(ii) railways;
(iii) banking;
(iv) broadcasting
(v) coinage and currency;
(vi) central public sector enterprises;
(vii) escheat and lapse; and
(viii) others.

B. The States

Non-tax revenue – States: The receipts from the following form the major sources of non-tax revenues of the states:

(i) irrigation;
(ii) forests;
(iii) fisheries;
(iv) state public sector enterprises;
(v) escheat and lapse; and
(vi) others.

Centre – non-tax	States – non-tax
posts & telegraphs	irrigation
railways	forests
banking	fisheries
broadcasting	state PSEs
coinage & currency	escheat & lapse
central PSEs	others
escheat & lapse	
others	

[14] Entry 52 (taxes on the entry of goods into a local area for consumption, use or sale therein) and entry 55 (taxes on advertisements other than advertisements published in the newspapers and advertisements broadcast by radio or television) were omitted by the 101st Amendment Act of 2016.

Grants-in-Aid to the States

4. Grants-in-Aid to the States

Grants-in-aid: Besides sharing of taxes between the Centre and the states, the Constitution provides for grants-in-aid to the states from the Central resources. There are two types of grants-in-aid, viz, statutory grants and discretionary grants:

A. Statutory (Art. 275) | B. Discretionary (Art. 282) | C. Other (temporary)

A. Statutory Grants

Statutory grants (Art. 275): Article 275 empowers the Parliament to make grants to the states which are in need of financial assistance and not to every state. Also, different sums may be fixed for different states. These sums are charged on the Consolidated Fund of India every year.

Specific grants – STs & Scheduled Areas: Apart from this general provision, the Constitution also provides for specific grants for promoting the welfare of the scheduled tribes in a state or for raising the level of administration of the scheduled areas in a state including the State of Assam.

Finance Commission route: The statutory grants under Article 275 (both general and specific) are given to the states on the recommendation of the Finance Commission.

General	Specific
states in need	welfare of STs
different sums	scheduled areas (incl. Assam)

→ both on recommendation of Finance Commission · charged on Consolidated Fund of India

B. Discretionary Grants

Discretionary grants (Art. 282): Article 282 empowers both the Centre and the states to make any grants for any public purpose, even if it is not within their respective legislative competence. Under this provision, the Centre makes grants to the states.

> **Purpose of discretionary grants:** "These grants are also known as discretionary grants, the reason being that the Centre is under no obligation to give these grants and the matter lies within its discretion. These grants have a two-fold purpose: to help the state financially to fulfil plan targets; and to give some leverage to the Centre to influence and coordinate state action to effectuate the national plan."[15]

fulfil plan targets | leverage to Centre

C. Other Grants

Jute grants (Art. 273): The Constitution also provided for a third type of grants-in-aid, but for a temporary period. Thus, a provision was made for grants in lieu of export duties on jute and jute products to the States of Assam, Bihar, Orissa and west Bengal. These grants were to be given for a period of ten years from the commencement of the Constitution. These sums were charged on the Consolidated Fund of India and were made to the states on the recommendation of the Finance Commission.

[15] M.P. Jain: Indian Constitutional Law, Wadhwa, Fourth Edition, pp. 342–43.

GST Council and Finance Commission

5. Goods and Services Tax Council

Need for GST Council: The smooth and efficient administration of the goods and services tax (GST) requires a co-operation and co-ordination between the Centre and the States. In order to facilitate this consultation process, the 101st Amendment Act of 2016 provided for the establishment of a Goods and Services Tax Council or the GST Council.

GST Council (Art. 279-A): Article 279-A empowered the President to constitute a GST Council by an order[16]. The Council is a joint forum of the Centre and the States. It is required to make recommendations to the Centre and the States on the following matters:

(a) **Taxes to be subsumed:** The taxes, cesses and surcharges levied by the Centre, the States and the local bodies that would get merged in GST.
(b) **GST coverage & exemptions:** The goods and services that may be subjected to GST or exempted from GST.
(c) **Model GST laws & place of supply:** Model GST Laws, principles of levy, apportionment of GST levied on supplies in the course of inter-state trade or commerce and the principles that govern the place of supply.
(d) **Threshold exemption:** The threshold limit of turnover below which goods and services may be exempted from GST.
(e) **GST rates & bands:** The rates including floor rates with bands of GST.
(f) **Disaster cess / special rate:** Any special rate or rates for a specified period to raise additional resources during any natural calamity or disaster.

101st Amdt 2016 → Art. 279-A → President's order → GST Council
↓ joint forum

6. Finance Commission

Finance Commission (Art. 280): Article 280 provides for a Finance Commission as a quasi-judicial body. It is constituted by the President every fifth year or even earlier. It is required to make recommendations to the President on the following matters:

- The distribution of the net proceeds of taxes to be shared between the Centre and the states, and the allocation between the states, the respective shares of such proceeds.
- The principles which should govern the grants-in-aid to the states by the Centre (i.e., out of the Consolidated Fund of India).
- The measures needed to augment the Consolidated fund of a state to supplement the resources of the panchayats and the municipalities in the state on the basis of the recommendations made by the State Finance Commission.[17]
- Any other matter referred to it by the President in the interests of sound finance.

Jute grants till 1960: Till 1960, the Commission also suggested the amounts paid to the States of Assam, Bihar, Orissa and West Bengal in lieu of assignment of any share of the net proceeds in each year of export duty on jute and jute products.

Balancing wheel of fiscal federalism: The Constitution envisages the Finance Commission as the **balancing wheel of fiscal federalism** in India.

Finance Commission → balancing wheel of fiscal federalism

[16] Article 279-A(1) says that the President shall, within sixty days from the commencement of the Constitution (One Hundred and First Amendment) Act, 2016, by order, constitute a Council to be called the Goods and Services Tax Council.

[17] This function was added by the 73rd and 74th Amendment Acts of 1992 which have granted constitutional status on the panchayats and the municipalities respectively.

Protection of States' Interest and Borrowing

7. Protection of the States' Interest

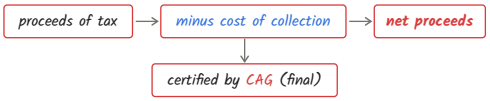
President's prior recommendation (Art. 274): To protect the interest of states in the financial matters, the Constitution lays down that the following bills can be introduced in the Parliament only on the recommendation of the President:

- A bill which imposes or varies any tax or duty in which states are interested;
- A bill which varies the meaning of the expression 'agricultural income' as defined for the purposes of the enactments relating to Indian income tax;
- A bill which affects the principles on which moneys are or may be distributable to states; and
- A bill which imposes any surcharge on any specified tax or duty for the purpose of the Centre.

↓ all 4 bills → only with President's recommendation

Tax in which states are interested: The expression "tax or duty in which states are interested" means: (a) a tax or duty the whole or part of the net proceeds whereof are assigned to any state; or (b) a tax or duty by reference to the net proceeds whereof sums are for the time being payable, out of the Consolidated Fund of India to any state.

Net proceeds – CAG certified: The phrase 'net proceeds' means the proceeds of a tax or a duty minus the cost of collection. The net proceeds of a tax or a duty in any area is to be ascertained and certified by the Comptroller and Auditor-General of India. His/her certificate is final.



8. Borrowing by the Centre and the States

Borrowing powers (Arts. 292–293): The Constitution makes the following provisions with regard to the borrowing powers of the Centre and the states:

- The Central government can borrow either within India or outside upon the security of the Consolidated Fund of India or can give guarantees, but both within the limits fixed by the Parliament. So far, no such law has been enacted by the Parliament.
- Similarly, a state government can borrow within India (and not abroad) upon the security of the Consolidated Fund of the State or can give guarantees, but both within the limits fixed by the legislature of that state.
- The Central government can make loans to any state or give guarantees in respect of loans raised by any state. Any sums required for the purpose of making such loans are to be charged on the Consolidated Fund of India.
- A state cannot raise any loan without the consent of the Centre, if there is still outstanding any part of a loan made to the state by the Centre or in respect of which a guarantee has been given by the Centre.

Centre	State
India + abroad	only within India
security: CFI	security: CF of State
limits: Parliament (no law yet)	limits: state legislature
	Centre's consent if loan outstanding

Inter-Governmental Tax Immunities and Emergencies

9. Inter-Governmental Tax Immunities

Immunity from mutual taxation: Like any other federal Constitution, the Indian Constitution also contain the rule of 'immunity from mutual taxation' and makes the following provisions in this regard:

A. Exemption of Central Property from State Taxation

Central property exempt (Art. 285): The property of Centre is exempted from all taxes imposed by a state or any authority within a state like municipalities, district boards, panchayats and so on. But, the Parliament is empowered to remove this ban. The word 'property' includes lands, buildings, chattels, shares, debts, everything that has a money value, and every kind of property—movable or immovable and tangible or intangible. Further, the property may be used for sovereign (like armed forces) or commercial purposes.

Central PSUs taxable: The corporations or the companies created by the Central government are not immune from state taxation or local taxation. The reason is that a corporation or a company is a separate legal entity.

B. Exemption of State Property or Income from Central Taxation

State property & income exempt (Art. 289): The property and income of a state is exempted from Central taxation. Such income may be derived from sovereign functions or commercial functions. But the Centre can tax the commercial operations of a state if Parliament so provides. However, the Parliament can declare any particular trade or business as incidental to the ordinary functions of the government and it would then not be taxable.

Local bodies & state PSUs taxable: Notably, the property and income of local authorities situated within a state are not exempted from the Central taxation. Similarly, the property or income of corporations and companies owned by a state can be taxed by the Centre.

Sea Customs case (1963): The Supreme Court, in an advisory opinion[18] (1963), held that the immunity granted to a state in respect of Central taxation does not extend to the duties of customs or duties of excise. In other words, the Centre can impose customs duty on goods imported or exported by a state, or an excise duty on goods produced or manufactured by a state.

Central property	State property / income
✔ exempt from state taxes	✔ exempt from Central taxes
Parliament can remove ban	✘ commercial ops (if Parliament provides)
✘ Central corporations / companies	✘ local authorities, state companies
	✘ customs & excise (1963)

10. Effects of Emergencies

Fiscal effect of emergencies: The Centre-state financial relations in normal times (described above) undergo changes during emergencies. These are as follows:

A. National Emergency

National Emergency – revenue modified: While the proclamation of national emergency (under Article 352) is in operation, the President can modify the constitutional distribution of revenues between the Centre and the states. This means that the President can either reduce or cancel the transfer of finances (both tax sharing and grants-in-aid) from the Centre to the states. Such modification continues till the end of the financial year in which the emergency ceases to operate.

B. Financial Emergency

Financial Emergency – directions: While the proclamation of financial emergency (under Article 360) is in operation, the Centre can give directions to the states:

(i) **Financial propriety:** to observe the specified canons of financial propriety;
(ii) **Salary cuts:** to reduce the salaries and allowances of all class of persons serving in the state; and
(iii) **Reservation of money bills:** to reserve all money bills and other financial bills for the consideration of the President.

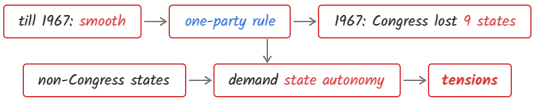
Art. 352	Art. 360
reduce / cancel transfers till end of financial year	financial propriety · salary cut reserve money bills

18 In Re. Sea Customs Act (1963).

Trends in Centre-State Relations

TRENDS IN CENTRE-STATE RELATIONS

1967 – end of one-party dominance: Till 1967, the centre-state relations by and large were smooth due to one-party rule at the Centre and in most of the states. In 1967 elections, the Congress party was defeated in nine states and its position at the Centre became weak. This changed political scenario heralded a new era in the Centre-state relations. The non-Congress Governments in the states opposed the increasing centralisation and intervention of the Central government. They raised the issue of state autonomy and demanded more powers and financial resources to the states. This caused tensions and conflicts in Centre-state relations.



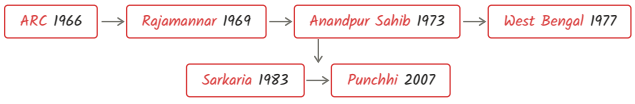
Tension Areas in Centre-State Relations

Tension areas: The issues which created tensions and conflicts between the Centre and states are:

(1) Mode of appointment and dismissal of governor;
(2) Discriminatory and partisan role of governors;
(3) Imposition of President's Rule for partisan interests;
(4) Deployment of Central forces in the states to maintain law and order;
(5) Reservation of state bills for the consideration of the President;
(6) Discrimination in financial allocations to the states;
(7) Role of Planning Commission in approving state projects; (till its replacement by the NITI Aayog in 2015);
(8) Management of All-India Services (IAS, IPS, and IFoS);
(9) Use of electronic media for political purposes;
(10) Appointment of enquiry commissions against the chief ministers;
(11) Sharing of finances (between Centre and states);
(12) Encroachment by the Centre on the State List;
(13) Implementation of the Centrally sponsored schemes by the states; and
(14) Modus operandi of the central agencies like CBI, ED and so on.

Governor	Emergency / forces	Legislative	Financial	Administrative
(1) (2)	(3) (4)	(5) (12)	(6) (7) (11) (13)	(8) (9) (10) (14)

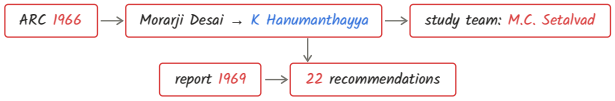
Reform efforts since 1960s: The issues in Centre-State relations have been under consideration since the mid 1960s. In this direction, the following developments have taken place:



Administrative Reforms Commission and Rajamannar Committee

Administrative Reforms Commission

First ARC (1966): The Central government appointed a six-member First Administrative Reforms Commission (ARC) of India in 1966 under the chairmanship of Morarji Desai (followed by K Hanumanthayya). Its terms of references included, among others, the examination of Centre-State relations. In order to examine thoroughly the various issues in Centre-state relations, the ARC constituted a study team under M.C. Setalvad. On the basis of the report of this study team, the ARC finalised its own report and submitted it to the Central government in 1969. It made 22 recommendations for improving the Centre-state relations. The important recommendations are:



- Establishment of an Inter-State Council under Article 263 of the Constitution.
- Appointment of persons having long experience in public life and administration and nonpartisan attitude as governors.
- Delegation of powers to the maximum extent to the states.
- Transferring of more financial resources to the states to reduce their dependency upon the Centre.
- Deployment of Central armed forces in the states either on their request or otherwise.

Recommendations ignored: No action was taken by the Central government on the recommendations of the ARC.

Rajamannar Committee

Rajamannar Committee (1969): In 1969, the Tamil Nadu Government (DMK) appointed a three-member committee under the chairmanship of Dr. P.V. Rajamannar to examine the entire question of Centre-state relations and to suggest amendments to the Constitution so as to secure utmost autonomy to the states.[19] The committee submitted its report to the Tamil Nadu Government in 1971.

Causes of unitary trends: The Committee identified the reasons for the prevailing unitary trends (tendencies of centralisation) in the country.

They include:

(i) **Centre's special powers:** certain provisions in the Constitution which confer special powers on the Centre;
(ii) **One-party rule:** one-party rule both at the Centre and in the states;
(iii) **Fiscal dependence of states:** inadequacy of states' fiscal resources and consequent dependence on the Centre for financial assistance; and
(iv) **Central planning:** the institution of Central planning and the role of the Planning Commission.



Rajamannar recommendations: The important recommendations of the committee are as follows:

(i) **Inter-State Council:** An Inter-State Council should be set up immediately;
(ii) **Permanent Finance Commission:** Finance Commission should be made a permanent body;
(iii) **Disband Planning Commission:** Planning Commission should be disbanded and its place should be taken by a statutory body;
(iv) **Omit Arts. 356, 357, 365:** Articles 356, 357 and 365 (dealing with President's Rule) should be totally omitted;
(v) **End Governor's pleasure:** The provision that the state ministry holds office during the pleasure of the governor should be omitted;
(vi) **Transfer subjects to State List:** Certain subjects of the Union List and the Concurrent List should be transferred to the State List;
(vii) **Residuary powers to states:** the residuary powers should be allocated to the states; and
(viii) **Abolish AIS:** All-India services (IAS, IPS and IFoS) should be abolished.

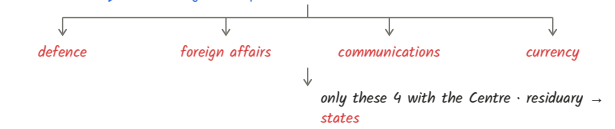
Rajamannar ignored: The Central government completely ignored the recommendations of the Rajamannar Committee.

19 The other two members of the committee were Dr. Lakshmanswamy Mudaliar and P.C. Chandra Reddy.

Anandpur Sahib Resolution and West Bengal Memorandum

Anandpur Sahib Resolution

Anandpur Sahib Resolution (1973): In 1973, the Akali Dal adopted a resolution containing both political and religious demands in a meeting held at Anandpur Sahib in Punjab. The resolution, generally known as Anandpur Sahib Resolution, demanded that the Centre's jurisdiction should be restricted only to defence, foreign affairs, communications, and currency and the entire residuary powers should be vested in the states. It stated that the Constitution should be made federal in the real sense and should ensure equal authority and representation to all the states at the Centre.

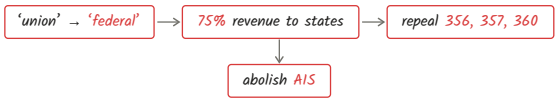


West Bengal Memorandum

West Bengal Memorandum (1977): In 1977, the West Bengal Government (led by the Communists) published a memorandum on Centre-state relations and sent it to the Central government.

The memorandum inter alia suggested the following:

(i) **'Federal' for 'Union':** The word 'union' in the Constitution should be replaced by the word 'federal';
(ii) **Limited Central jurisdiction:** The jurisdiction of the Centre should be confined to defence, foreign affairs, currency, communications and economic co-ordination;
(iii) **Residuary to states:** All other subjects including the residuary should be vested in the states;
(iv) **Repeal Arts. 356, 357, 360:** Articles 356 and 357 (President's Rule) and 360 (financial emergency) should be repealed;
(v) **States' consent for reorganisation:** State's consent should be made obligatory for formation of new states or reorganisation of existing states;
(vi) **75% revenue to states:** Of the total revenue raised by the Centre from all sources, 75 per cent should be allocated to the states;
(vii) **Equal powers to Rajya Sabha:** Rajya Sabha should have equal powers with that of the Lok Sabha; and
(viii) **Abolish AIS:** There should be only Central and state services and the All-India Services should be abolished.



Memorandum rejected: The Central government did not accept the demands made in the memorandum.

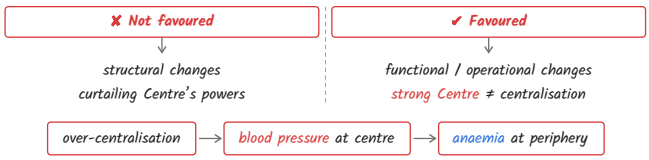
Body	Year	By	Fate
ARC	1966–69	Central govt	no action
Rajamannar Committee	1969–71	Tamil Nadu (DMK)	completely ignored
Anandpur Sahib Resolution	1973	Akali Dal	—
West Bengal Memorandum	1977	West Bengal govt	not accepted

Sarkaria Commission

Sarkaria Commission

Sarkaria Commission (1983–88): In 1983, the Central government appointed a three-member Commission on Centre-state relations under the chairmanship of R.S. Sarkaria, a retired judge of the Supreme Court.[20] The commission was asked to examine and review the working of existing arrangements between the Centre and states in all spheres and recommend appropriate changes and measures. It submitted it's report in 1988.

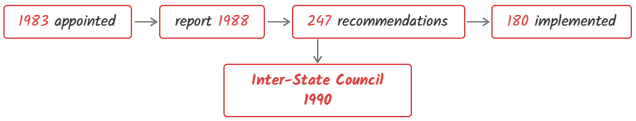
Functional, not structural, change: The Commission did not favour structural changes and regarded the existing constitutional arrangements and principles relating to the institutions basically sound. But, it emphasised on the need for changes in the functional or operational aspects. It observed that federalism is more a functional arrangement for co-operative action than a static institutional concept. It outrightly rejected the demand for curtailing the powers of the Centre and stated that a strong Centre is essential to safeguard the national unity and integrity which is being threatened by the fissiparous tendencies in the body politic. However, it did not equate strong Centre with centralisation of powers. It observed that over-centralisation leads to blood pressure at the centre and anaemia at the periphery.



247 recommendations: The Commission made 247 recommendations to improve Centre-state relations. The important recommendations are mentioned below:

1. **Inter-Governmental Council (Art. 263):** A permanent Inter-State Council called the Inter-Governmental Council should be set up under Article 263.
2. **Art. 356 as last resort:** Article 356 (President's Rule) should be used very sparingly, in extreme cases as a last resort when all the available alternatives fail.
3. **Strengthen AIS:** The institution of All-India Services should be further strengthened and more of such services should be created.
4. **Residuary powers – taxation vs others:** The residuary powers of taxation should continue to remain with the Parliament, while the other residuary powers should be placed in the Concurrent List.
5. **Reasons for withholding assent:** When the President withholds his/her assent to the state bills, the reasons should be communicated to the state government.
6. **NDC to NEDC:** The National Development Council (NDC) should be renamed and reconstituted as the National Economic and Development Council (NEDC).
7. **Revive Zonal Councils:** The zonal councils should be constituted afresh and reactivated to promote the spirit of federalism.
8. **Deployment of armed forces:** The Centre should have powers to deploy its armed forces, even without the consent of states. However, it is desirable that the states should be consulted.
9. **Consultation on Concurrent List:** The Centre should consult the states before making a law on a subject of the Concurrent List.
10. **CM consultation on Governor:** The procedure of consulting the chief minister in the appointment of the state governor should be prescribed in the Constitution itself.
11. **Corporation tax sharing:** The net proceeds of the corporation tax may be made permissibly shareable with the states.
12. **No dismissal of majority ministry:** The governor cannot dismiss the council of ministers so long as it commands a majority in the assembly.
13. **Fixed tenure of Governor:** The governor's term of five years in a state should not be disturbed except for some extremely compelling reasons.
14. **Commission of enquiry:** No commission of enquiry should be set up against a state minister unless a demand is made by the Parliament.
15. **Surcharge on income tax:** The surcharge on income tax should not be levied by the Centre except for a specific purpose and for a strictly limited period.
16. **FC-Planning Commission balance:** The present division of functions between the Finance Commission and the Planning Commission is reasonable and should continue.
17. **Three-language formula:** Steps should be taken to uniformly implement the three language formula in its true spirit.
18. **Decentralised broadcasting:** No autonomy for radio and television but decentralisation in their operations.
19. **Status quo on Rajya Sabha:** No change in the role of Rajya Sabha and Centre's power to reorganise the states.
20. **Linguistic minorities commissioner:** The commissioner for linguistic minorities should be activated.

Implementation – ISC 1990: The Central government has implemented 180 (out of 247) recommendations of the Sarkaria Commission. The most important is the establishment of the Inter-State Council in 1990.



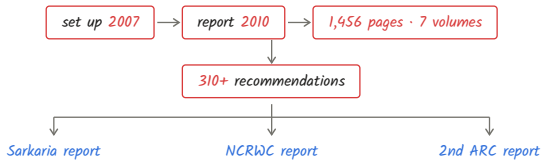
20 B. Sivaraman and S.R. Sen were two other members of the Commission.

Punchhi Commission – I

Punchhi Commission

Punchhi Commission (2007): The Second commission on Centre-State Relations was set-up by the Government of India in 2007 under the Chairmanship of Madan Mohan Punchhi, former Chief Justice of India.[21] It was required to look into the issues of Centre-State relations keeping in view the sea-changes that have taken place in the polity and economy of India since the Sarkaria Commission had last looked at the issue of Centre-State relations over two decades ago.

Report (2010): The Commission submitted its report to the government in 2010. In finalising the 1,456 page report, in seven volumes, the Commission took extensive help from the Sarkaria Commission report, the National Commission to Review the Working of the Constitution (NCRWC) report and the Second Administrative Reforms Commission report. However, in a number of areas, the Commission report differed from the Sarkaria Commission recommendations.



Cooperative federalism: After examining at length the issues raised in its Terms of Reference and the related aspects in all their hues and shades, the Commission came to the conclusion that '**cooperative federalism**' will be the key for sustaining India's unity, integrity and social and economic development in future. The principles of cooperative federalism thus may have to act as a practical guide for Indian polity and governance.

310+ recommendations: In all, the Commission made over 310 recommendations, touching upon several significant areas in the working of Centre-state relations. The important recommendations are mentioned below:

1. **Prior consensus on Concurrent laws:** To facilitate effective implementation of the laws on List III subjects, it is necessary that some broad agreement is reached between the Union and states before introducing legislation in Parliament on matters in the Concurrent List.
2. **Restraint on parliamentary supremacy:** The Union should be extremely restrained in asserting Parliamentary supremacy in matters assigned to the states. Greater flexibility to states in relation to subjects in the State List and "transferred items" in the Concurrent List is the key for better Centre-state relations.
3. **Minimal occupation of Concurrent field:** The Union should occupy only that many of subjects in concurrent or overlapping jurisdiction which are absolutely necessary to achieve uniformity of policy in demonstrable national interest.
4. **ISC as auditor:** There should be a continuing auditing role for the Inter-state Council in the management of matters in concurrent or overlapping jurisdiction.
5. **Time limit for President's assent:** The period of six months prescribed in Article 201 for State Legislature to act when the bill is returned by the President can be made applicable for the President also to decide on assenting or withholding assent to a state bill reserved for consideration of the President.
6. **Treaty-making law (Entry 14):** Parliament should make a law on the subject of Entry 14 of List I (treaty making and implementing it through Parliamentary legislation) to streamline the procedures involved. The exercise of the power obviously cannot be absolute or unchartered in view of the federal structure of legislative and executive powers.
7. **Treaty costs in FC ToR:** Financial obligations and its implications on state finances arising out of treaties and agreements should be a permanent term of reference to the Finance Commissions constituted from time to time.

21 The other four Members of the Commission were Dhirendra Singh (Former Secretary to the Government of India), Vinod Kumar Duggal (Former Secretary to the Government of India), Prof. N.R. Madhava Menon (Former Director, National Judicial Academy, Bhopal and National Law School of India, Bangalore) and Dr. Amaresh Bagchi (Emeritus Professor, National Institute of Public Finance and Policy, New Delhi). With the passing away of Dr. Bagchi in February 2008, Vijay Shanker (Former Director, Central Bureau of Investigation, Government of India) was appointed in his place as a Member of the Commission in October 2008.

Punchhi Commission – II (Governors)

8. **Criteria for Governor:** While selecting Governors, the Central Government should adopt the following strict guidelines as recommended in the Sarkaria Commission report and follow its mandate in letter and spirit:
   - (i) **Eminence:** He/she should be eminent in some walk of life
   - (ii) **Outsider:** He/she should be a person from outside the state
   - (iii) **Detached figure:** He/she should be a detached figure and not too intimately connected with the local politics of the state
   - (iv) **Non-political:** He/she should be a person who has not taken too great a part in politics generally and particularly in the recent past

eminent | outsider | detached | not too political

9. **Fixed five-year tenure:** Governors should be given a fixed tenure of five years and their removal should not be at the sweet will of the Government at the Centre.
10. **Impeachment of Governor:** The procedure laid down for impeachment of President, mutatis mutandis can be made applicable for impeachment of Governors as well.
11. **Limited discretion (Art. 163):** Article 163 does not give the Governor a general discretionary power to act against or without the advice of his/her Council of Ministers. In fact, the area for the exercise of discretion is limited and even in this limited area, his/her choice of action should not be arbitrary or fanciful. It must be a choice dictated by reason, activated by good faith and tempered by caution.
12. **Six-month limit on assent:** In respect of bills passed by the Legislative Assembly of a state, the Governor should take the decision within six months whether to grant assent or to reserve it for consideration of the President.
13. **Hung assembly guidelines:** On the question of Governor's role in appointment of Chief Minister in the case of an hung assembly, it is necessary to lay down certain clear guidelines to be followed as Constitutional conventions. These guidelines may be as follows:
    - (i) **Widest support:** The party or combination of parties which commands the widest support in the Legislative Assembly should be called upon to form the Government.
    - (ii) **Pre-poll alliance as one party:** If there is a pre-poll alliance or coalition, it should be treated as one political party and if such coalition obtains a majority, the leader of such coalition shall be called by the Governor to form the Government.
    - (iii) **Order of preference:** In case no party or pre-poll coalition has a clear majority, the Governor should select the Chief Minister in the order of preference indicated here.
      - (a) **Pre-poll alliance:** The group of parties which had pre-poll alliance commanding the largest number
      - (b) **Largest single party:** The largest single party staking a claim to form the government with the support of others
      - (c) **Post-poll coalition:** A post-electoral coalition with all partners joining the government
      - (d) **Post-poll alliance with outside support:** A post-electoral alliance with some parties joining the government and the remaining including independents supporting the government from outside

(a) pre-poll alliance → (b) largest single party → (c) post-poll coalition (all join)
↓
(d) post-poll alliance (some outside)

14. **Floor test:** On the question of dismissal of a Chief Minister, the Governor should invariably insist on the Chief Minister proving his/her majority on the floor of the House for which he/she should prescribe a time limit.
15. **Sanction for prosecution:** The Governor should have the right to sanction for prosecution of a state minister against the advice of the Council of Ministers, if the Cabinet decision appears to the Governor to be motivated by bias in the face of overwhelming material.
16. **No Chancellor role:** The convention of Governors acting as Chancellors of Universities and holding other statutory positions should be done away with. His/her role should be confined to the Constitutional provisions only.

Punchhi Commission – III (Emergency and Coordination)

17. **Art. 356 as last resort:** When an external aggression or internal disturbance paralyses the state administration creating a situation of a potential break down of the Constitutional machinery of the state, all alternative courses available to the Union for discharging its paramount responsibility under Article 355 should be exhausted to contain the situation and the exercise of the power under Article 356 should be limited strictly to rectifying a "failure of the Constitutional machinery in the state".
18. **Bommai guidelines:** On the question of invoking Article 356 in case of failure of Constitutional machinery in states, suitable amendments are required to incorporate the guidelines set forth in the landmark judgement of the Supreme Court in S.R. Bommai case[22] (1994). This would remove possible misgivings in this regard on the part of states and help in smoothening Centre-state relations.
19. **Localised emergency:** Given the strict parameters now set for invoking the emergency provisions under Articles 352 and 356 to be used only as a measure of "last resort", and the duty of the Union to protect states under Article 355, it is necessary to provide a Constitutional or legal framework to deal with situations which require Central intervention but do not warrant invoking the extreme steps under Articles 352 and 356. Providing the framework for "**localised emergency**" would ensure that the state government can continue to function and the Assembly would not have to be dissolved while providing a mechanism to let the Central Government respond to the issue specifically and locally. The imposition of local emergency is fully justified under the mandate of Article 355 read with Entry 2A of List I and Entry 1 of List II of the Seventh Schedule.

crisis in a state → Art. 355 alternatives first → **localised emergency**
↓
Art. 356 only last resort

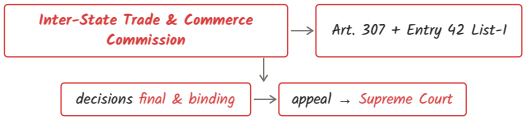
20. **Strong Inter-State Council:** Suitable amendments to Article 263 are required to make the Inter-State Council a credible, powerful and fair mechanism for management of inter-state and Centre-state differences.
21. **Zonal Councils – twice a year:** The Zonal Councils should meet at least twice a year with an agenda proposed by states concerned to maximise co-ordination and promote harmonisation of policies and action having inter-state ramification. The Secretariat of a strengthened Inter-State Council can function as the Secretariat of the Zonal Councils as well.
22. **Institutional coordination forums:** The Empowered Committee of Finance Ministers of States proved to be a successful experiment in inter-state co-ordination on fiscal matters. There is need to institutionalise similar models in other sectors as well. A forum of Chief Ministers, Chaired by one of the Chief Minister by rotation can be similarly thought about particularly to co-ordinate policies of sectors like energy, food, education, environment and health.
23. **New AIS:** New all-India services in sectors like health, education, engineering and judiciary should be created.
24. **Rajya Sabha as federal chamber:** Factors inhibiting the composition and functioning of the Second Chamber as a representative forum of states should be removed or modified even if it requires amendment of the Constitutional provisions. In fact, Rajya Sabha offers immense potential to negotiate acceptable solutions to the friction points which emerge between Centre and states in fiscal, legislative and administrative relations.
25. **Equal representation in Rajya Sabha:** A balance of power between states inter se is desirable and this is possible by equality of representation in the Rajya Sabha. This requires amendment of the relevant provisions to give equality of seats to states in the Rajya Sabha, irrespective of their population size.
26. **Devolution to local bodies:** The scope of devolution of powers to local bodies to act as institutions of self-government should be constitutionally defined through appropriate amendments.
27. **Cost sharing:** All future Central legislations involving states' involvement should provide for cost sharing as in the case of the RTE Act. Existing Central legislations where the states are entrusted with the responsibility of implementation should be suitably amended providing for sharing of costs by the Central Government.
28. **Royalty revision:** The royalty rates on major minerals should be revised at least every three years without any delay. States should be properly compensated for any delay in the revision of royalty beyond three years.

Inter-State Council	Zonal Councils	CM forum	RS equality
Art. 263 amend	2×/year	by rotation	equal seats

22 S.R. Bommai vs. Union of India (1994).

Punchhi Commission – IV (Finance and Planning)

29. **Abolish profession tax ceiling:** The current ceiling on profession tax should be completely done away with by a Constitutional amendment.
30. **Revenue from Art. 268 taxes:** The scope for raising more revenue from the taxes mentioned in article 268 should be examined afresh. This issue may be either referred to the next Finance Commission or an expert committee be appointed to look into the matter.
31. **Fiscal accountability:** To bring greater accountability, all fiscal legislations should provide for an annual assessment by an independent body and the reports of these bodies should be laid in both Houses of Parliament/state legislature.
32. **Even-handed ToR:** Considerations specified in the Terms of Reference (ToR) of the Finance Commission should be even handed as between the Centre and the states. There should be an effective mechanism to involve the states in the finalisation of the ToR of the Finance Commissions.
33. **Review cesses & surcharges:** The Central Government should review all the existing cesses and surcharges with a view to bringing down their share in the gross tax revenue.
34. **Plan vs non-plan expenditure:** Because of the close linkages between the plan and non-plan expenditure, an expert committee may be appointed to look into the issue of distinction between the plan and non-plan expenditure.
35. **FC–Plan synchronisation:** There should be much better coordination between the Finance Commission and the Planning Commission. The synchronisation of the periods covered by the Finance Commission and the Five-Year Plan will considerably improve such coordination.
36. **Permanent FC secretariat:** The Finance Commission division in the Ministry of Finance should be converted into a full-fledged department, serving as the permanent secretariat for the Finance Commissions.
37. **Planning Commission as coordinator:** The Planning Commission has a crucial role in the current situation. But its role should be that of coordination rather that of micro managing sectoral plans of the Central ministries and the states.
38. **Inter-State Trade & Commerce Commission:** Steps should be taken for the setting up of an Inter-State Trade and Commerce Commission under Article 307 read with Entry 42 of List-I. This Commission should be vested with both advisory and executive roles with decision making powers. As a Constitutional body, the decisions of the Commission should be final and binding on all states as well as the Union of India. Any party aggrieved with the decision of the Commission may prefer an appeal to the Supreme Court.



Status of implementation: The recommendations contained in the Report of the Punchhi Commission have been considered by the Standing Committee of the Inter-State Council in its meetings held in 2017 and 2018. The recommendations of the Commission along with the recommendations of the Standing Committee thereon, have been circulated to the state governments for comments[23].

Punchhi report → ISC Standing Committee (2017, 2018) → circulated to states

23 Annual Report 2021-22, Ministry of Home Affairs, Government of India, p. 246.

Articles at a Glance – Legislative and Administrative

Table 15.1 Articles Related to Centre-State Legislative Relations at a Glance

Article No.	Subject Matter
245.	Extent of laws made by Parliament and by the legislatures of states
246.	Subject-matter of laws made by Parliament and by the legislatures of states
246A.	Special provision with respect to goods and services tax
247.	Power of Parliament to provide for the establishment of certain additional courts
248.	Residuary powers of legislation
249.	Power of Parliament to legislate with respect to a matter in the state list in the national interest
250.	Power of Parliament to legislate with respect to any matter in the state list if a Proclamation of Emergency is in operation
251.	Inconsistency between laws made by Parliament under articles 249 and 250 and laws made by the legislatures of states
252.	Power of Parliament to legislate for two or more states by consent and adoption of such legislation by any other state
253.	Legislation for giving effect to international agreements
254.	Inconsistency between laws made by Parliament and laws made by the legislatures of states
255.	Requirements as to recommendations and previous sanctions to be regarded as matters of procedure only

Table 15.2 Articles Related to Centre-State Administrative Relations at a Glance

Article No.	Subject Matter
256.	Obligation of states and the Union
257.	Control of the Union over states in certain cases
257A.	Assistance to states by deployment of armed forces or other forces of the Union (Repealed)
258.	Power of the Union to confer powers, etc., on states in certain cases
258A.	Power of the states to entrust functions to the Union
259.	Armed Forces in states in Part B of the First Schedule (Repealed)
260.	Jurisdiction of the Union in relation to territories outside India
261.	Public acts, records and judicial proceedings
262.	Adjudication of disputes relating to waters of inter-state rivers or river valleys
263.	Provisions with respect to an inter-state Council

Articles at a Glance – Financial Relations

Table 15.3 Articles Related to Centre-State Financial Relations at a Glance

Article No.	Subject Matter
	Distribution of Revenues between the Union and the States
268.	Duties levied by the Union but collected and appropriated by the states
268A.	Service tax levied by the Union and collected and appropriated by the Union and the states (Repealed)
269.	Taxes levied and collected by the Union but assigned to the states
269A.	Levy and collection of goods and services tax in course of inter-state trade or commerce
270.	Taxes levied and distributed between the Union and the states
271.	Surcharge on certain duties and taxes for purposes of the Union
272.	Taxes which are levied and collected by the Union and may be distributed between the Union and the states (Repealed)
273.	Grants in lieu of export duty on jute and jute products
274.	Prior recommendation of the President required to bills affecting taxation in which states are interested
275.	Grants from the Union to certain states
276.	Taxes on professions, trades, callings and employments
277.	Savings
278.	Agreement with states in Part B of the First Schedule with regard to certain financial matters (Repealed)
279.	Calculation of "net proceeds", etc.
279A.	Goods and Services Tax Council
280.	Finance Commission
281.	Recommendations of the Finance Commission
	Miscellaneous Financial Provisions
282.	Expenditure defrayable by the Union or a state out of its revenues
283.	Custody, etc., of Consolidated Funds, Contingency Funds and moneys credited to the public accounts
284.	Custody of suitors' deposits and other moneys received by public servants and courts
285.	Exemption of property of the Union from state taxation
286.	Restrictions as to imposition of tax on the sale or purchase of goods
287.	Exemption from taxes on electricity
288.	Exemption from taxation by states in respect of water or electricity in certain cases
289.	Exemption of property and income of a state from Union taxation
290.	Adjustment in respect of certain expenses and pensions
290A.	Annual payment to certain Devaswom Funds
291.	Privy purse sums of Rulers (Repealed)
	Borrowing
292.	Borrowing by the Government of India
293.	Borrowing by States

CHAPTER 26 Supreme Court

Integrated judicial system: Unlike the American Constitution, the Indian Constitution has established an integrated judicial system with the Supreme Court at the top and the high courts below it. Under a high court (and below the state level), there is a hierarchy of subordinate courts, that is, district courts and other lower courts. This single system of courts, adopted from the Government of India Act of 1935, enforces both Central laws as well as the state laws. In USA, on the other hand, the federal laws are enforced by the federal judiciary and the state laws are enforced by the state judiciary. There is thus a double system of courts in USA—one for the centre and the other for the states. To sum up, India, although a federal country like the USA, has a unified judiciary and one system of fundamental law and justice.

Supreme Court → **High Courts** → **District courts** → **Lower courts**

India – single system	USA – double system
one hierarchy of courts	federal courts → federal laws
enforces Central + state laws from GoI Act 1935	state courts → state laws

Successor of Federal Court & Privy Council: The Supreme Court of India was inaugurated on January 28, 1950. It succeeded the Federal Court of India, established under the Government of India Act of 1935. However, the jurisdiction of the Supreme Court is greater than that of its predecessor. This is because, the Supreme Court has replaced the British Privy Council as the highest court of appeal.[1]

Federal Court (1935) → **Supreme Court – 28 Jan 1950** → replaced Privy Council

Constitutional basis (Arts. 124–147): Articles 124 to 147 in Part V of the Constitution deal with the organisation, independence, jurisdiction, powers, procedures and so on of the Supreme Court. The Parliament is also authorised to regulate them.

1 Before 1950, the British Privy Council had the jurisdiction to hear appeals from India.

Composition and Appointment

COMPOSITION AND APPOINTMENT

Strength – 34 judges: At present, the Supreme Court consists of thirty-four judges (one chief justice and thirty three other judges). Originally, the strength of the Supreme Court was fixed at eight (one chief justice and seven other judges). The Parliament has increased this number of other judges progressively to ten in 1956, to thirteen in 1960, to seventeen in 1977, to twenty-five in 1986, to thirty in 2008 and to thirty-three in 2019.

1950: 7 → 1956: 10 → 1960: 13 → 1977: 17 → 1986: 25 → 2008: 30 → 2019: 33

other judges (excluding CJI) · today 33 + CJI = 34

Acts on strength: The various Acts relating to the composition of the Supreme Court are summarised in Table 26.2.

Appointment of Judges

Appointment by President: The judges of the Supreme Court are appointed by the President. The chief justice is appointed by the President after consultation with such judges of the Supreme Court and high courts as he/she deems necessary. The other judges are appointed by President after consultation with the chief justice and such other judges of the Supreme Court and the high courts as he/she deems necessary. The consultation with the chief justice is obligatory in the case of appointment of a judge other than Chief justice.

Controversy over Consultation

Judges cases – meaning of 'consultation': The Supreme Court has given different interpretation of the word 'consultation' in the above provision. In the First Judges case[1a] (1981), the Court held that consultation does not mean concurrence and it only implies exchange of views. But, in the Second Judges case[1b] (1993), the Court reversed its earlier ruling and changed the meaning of the word consultation to concurrence. Hence, it ruled that the advice tendered by the Chief Justice of India is binding on the President in the matters of appointment of the judges of the Supreme Court. But, the Chief Justice would tender his/her advice on the matter after consulting two of his/her seniormost colleagues. Similarly, in the Third Judges case[2] (1998), the Court opined that the consultation process to be adopted by the Chief justice of India requires 'consultation of plurality judges'. The sole opinion of the chief justice of India does not constitute the consultation process. He/she should consult a collegium of four seniormost judges of the Supreme Court and even if two judges give an adverse opinion, he/she should not send the recommendation to the government. The court held that the recommendation made by the chief justice of India without complying with the norms and requirements of the consultation process are not binding on the government.

1st Judges (1981): consultation ≠ concurrence → **2nd Judges (1993):** concurrence · CJI + 2

3rd Judges (1998): collegium CJI + 4 → **4th Judges (2015):** NJAC struck down

NJAC and Fourth Judges case: The 99th Constitutional Amendment Act of 2014 and the National Judicial Appointments Commission Act of 2014 have replaced the collegium system of appointing judges to the Supreme Court and High Courts with a new body called the National Judicial Appointments Commission (NJAC). However, in 2015, the Supreme Court has declared both the 99th Constitutional Amendment as well as the NJAC Act as unconstitutional and void. Consequently, the earlier collegium system became operative again. This verdict was delivered by the Supreme Court in the Fourth Judges case[2a] (2015). The court opined that the new system (i.e., NJAC) would affect the independence of the judiciary.

Appointment of Chief Justice

Seniority convention for CJI: From 1950 to 1973, the practice has been to appoint the seniormost judge of the Supreme Court as the chief justice of India. This established convention was violated in 1973 when A.N. Ray was appointed as the Chief Justice of India by superseding three senior judges.[3] Again in 1977, M.U. Beg was appointed as the chief justice of India by superseding the then senior-most judge.[4] This discretion of the government was curtailed by the Supreme Court in the Second Judges case (1993), in which the Supreme Court ruled that the seniormost judge of the Supreme Court should alone be appointed to the office of the chief justice of India.

1950–73: seniority → 1973: A.N. Ray (3 superseded) → 1977: M.U. Beg (1 superseded) → 1993: **seniority binding**

1a S.P. Gupta vs. Union of India (1981).

1b Supreme Court Advocates-on-Record Association vs. Union of India (1993).

2 In Re-Presidential Reference (1998). The President sought the Supreme Court's opinion (under Article 143) on certain doubts over the Consultation process to be adopted by the chief justice of India as stipulated in the 1993 case.

2a Supreme Court Advocates-on-Record Association vs. Union of India (2015).

3 A.N. Ray was fourth in seniority. The three superseded judges were J.M. Shelat, K.S. Hegde and A.N. Grover. All the three judges resigned from the Supreme Court. They were superseded due to their judgement in Kesavananda Bharati case (1973), which was not favourable to the Government.

4 He was H.R. Khanna and he too resigned. His dissenting judgement upholding the right to life even during emergency in the ADM Jabalpur vs. Shivkant Shukla case (1976) was not appreciated by the Government.

Qualifications, Oath and Salaries

QUALIFICATIONS, OATH AND SALARIES

Qualifications of Judges

Eligibility of SC judge: A person to be appointed as a judge of the Supreme Court should have the following qualifications:

1. **Citizenship:** He/she should be a citizen of India.
2. **Judicial / legal experience:** (a) He/she should have been a judge of a High Court (or high courts in succession) for five years; or (b) He/she should have been an advocate of a High Court (or High Courts in succession) for ten years; or (c) He/she should be a distinguished jurist in the opinion of the President.

HC judge – 5 years · HC advocate – 10 years · distinguished jurist

No minimum age: From the above, it is clear that the Constitution has not prescribed a minimum age for appointment as a judge of the Supreme Court.

Oath or Affirmation

Oath before President: A person appointed as a judge of the Supreme Court, before entering upon his/her Office, has to make and subscribe an oath or affirmation before the President, or some person appointed by him/her for this purpose. In his/her oath, a judge of the Supreme Court swears:

1. **Allegiance to Constitution:** to bear true faith and allegiance to the Constitution of India;
2. **Sovereignty and integrity:** to uphold the sovereignty and integrity of India;
3. **Impartial duty:** to duly and faithfully and to the best of his/her ability, knowledge and judgement perform the duties of the Office without fear or favour, affection or ill-will; and
4. **Uphold Constitution and laws:** to uphold the Constitution and the laws.

Salaries and Allowances

Salaries fixed by Parliament: The salaries, allowances, privileges, leave and pension of the judges of the Supreme Court are determined from time to time by the Parliament. They cannot be varied to their disadvantage after their appointment except during a financial emergency. In 2018, the salary of the chief justice was increased from ₹1 lakh to ₹2.80 lakh per month and that of a judge from ₹90,000 to ₹2.50 lakh per month[5]. They are also paid sumptuary allowance and provided with free accommodation and other facilities like medical, car, telephone, etc.

Chief Justice	Judge
₹1 lakh → ₹2.80 lakh/month (2018)	₹90,000 → ₹2.50 lakh/month (2018)

Pension – 50%: The retired chief justice and judges are entitled to 50 per cent of their last drawn salary as monthly pension.

> 5 In 1950, their salaries were fixed at ₹5,000 per month and ₹4,000 per month respectively. In 1986, their salaries were raised to ₹10,000 per month and ₹9,000 per month respectively. In 1998, their salaries were raised to ₹33,000 per month and ₹30,000 per month respectively. In 2009, their salaries were raised to ₹1 lakh per month and ₹90,000 per month respectively.

Tenure and Removal

TENURE AND REMOVAL

Tenure of Judges

No fixed tenure: The Constitution has not fixed the tenure of a judge of the Supreme Court. However, it makes the following three provisions in this regard:

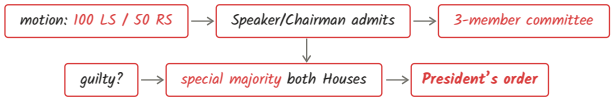
1. **Age 65:** He/she holds office until he/she attains the age of 65 years. Any question regarding his/her age is to be determined by such authority and in such manner as provided by Parliament.
2. **Resignation:** He/she can resign from his/her office by writing to the President.
3. **Removal:** He/she can be removed from his/her office by the President on the recommendation of the Parliament.

Removal of Judges

Removal by special majority: A judge of the Supreme Court can be removed from his/her Office by an order of the President. The President can issue the removal order only after an address by Parliament has been presented to him/her in the same session for such removal. The address must be supported by a special majority of each House of Parliament (ie, a majority of the total membership of that House and a majority of not less than two-thirds of the members of that House present and voting). The grounds of removal are two—proved misbehaviour or incapacity.

Judges Enquiry Act, 1968: The Judges Enquiry Act (1968) regulates the procedure relating to the removal of a judge of the Supreme Court by the process of impeachment[6]:

1. **Removal motion – 100 LS / 50 RS:** A removal motion signed by 100 members (in the case of Lok Sabha) or 50 members (in the case of Rajya Sabha) is to be given to the Speaker/Chairman.
2. **Admission of motion:** The Speaker/Chairman may admit the motion or refuse to admit it.
3. **Three-member inquiry committee:** If it is admitted, then the Speaker/Chairman is to constitute a three-member committee to investigate into the charges.
4. **Composition of committee:** The committee should consist of (a) the chief justice or a judge of the Supreme Court, (b) a chief justice of a high court, and (c) a distinguished jurist.
5. **Finding of guilt:** If the committee finds the judge to be guilty of misbehaviour or suffering from an incapacity, the House can take up the consideration of the motion.
6. **Special majority in both Houses:** After the motion is passed by each House of Parliament by special majority, an address is presented to the President for removal of the judge.
7. **President's removal order:** Finally, the President passes an order removing the judge.



No judge impeached – Ramaswami case: It is interesting to know that no judge of the Supreme Court has been impeached so far. The first case of impeachment is that of Justice V. Ramaswami of the Supreme Court (1991–1993). Though the enquiry Committee found him/her guilty of misbehaviour, he/she could not be removed as the impeachment motion was defeated in the Lok Sabha. The Congress Party abstained from voting.

> 6 The word 'impeachment' is not used in the constitution in relation to the removal of judges. However, it is used only in the case of the removal of the President.

Acting, Ad hoc and Retired Judges; Seat and Procedure

ACTING, ADHOC AND RETIRED JUDGES

Acting Chief Justice

Acting CJI: The President can appoint a judge of the Supreme Court as an acting Chief Justice of India when:

1. **Vacancy:** the office of Chief Justice of India is vacant; or
2. **Temporary absence:** the Chief Justice of India is temporarily absent; or
3. **Inability:** the Chief Justice of India is unable to perform the duties of his/her office.

Ad hoc Judge

Ad hoc judge – lack of quorum: When there is a lack of quorum of the permanent judges to hold or continue any session of the Supreme Court, the Chief Justice of India can appoint a judge of a High Court as an ad hoc judge of the Supreme Court for a temporary period. He/she can do so only after consultation with the chief justice of the High Court concerned and with the previous consent of the President. The judge so appointed should be qualified for appointment as a judge of the Supreme Court. It is the duty of the judge so appointed to attend the sittings of the Supreme Court, in priority to other duties of his/her office. While so attending, he/she enjoys all the jurisdiction, powers and privileges (and discharges the duties) of a judge of the Supreme Court.

Retired Judge

Retired judge on request: At any time, the chief justice of India can request a retired judge of the Supreme Court or a retired judge of a high court (who is duly qualified for appointment as a judge of the Supreme Court) to act as a judge of the Supreme Court for a temporary period. He/she can do so only with the previous consent of the President and also of the person to be so appointed. Such a judge is entitled to such allowances as the President may determine. He/she will also enjoy all the jurisdiction, powers and privileges of a judge of Supreme Court. But, he/she will not otherwise be deemed to be a judge of the Supreme Court.

Type	Appointed by	Condition / consent
Acting CJI	President	CJI post vacant / absent / unable
Ad hoc judge	CJI	lack of quorum · consult HC CJ · President's consent
Retired judge	CJI	President's consent + person's consent

SEAT AND PROCEDURE

Seat of Supreme Court

Seat – Delhi: The Constitution declares Delhi as the seat of the Supreme Court. But, it also authorises the chief justice of India to appoint other place or places as seat of the Supreme Court. He/she can take decision in this regard only with the approval of the President. This provision is only optional and not compulsory. This means that no court can give any direction either to the President or to the Chief Justice to appoint any other place as a seat of the Supreme Court.

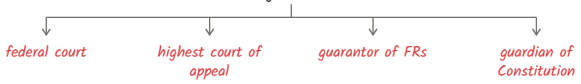
Procedure of the Court

Rules and benches: The Supreme Court can, with the approval of the President, make rules for regulating generally the practice and procedure of the Court. The Constitutional cases or references made by the President under Article 143 are decided by a Bench consisting of at least five judges. All other cases are decided by single judges and division benches. The judgements are delivered by the open court. All judgements are by majority vote but if differing, then judges can give dissenting judgements or opinions.

Independence of Supreme Court

INDEPENDENCE OF SUPREME COURT

Need for judicial independence: The Supreme Court has been assigned a very significant role in the Indian democratic political system. It is a federal court, the highest court of appeal, the guarantor of the fundamental rights of the citizens and guardian of the Constitution. Therefore, its independence becomes very essential for the effective discharge of the duties assigned to it. It should be free from the encroachments, pressures and interferences of the executive (council of ministers) and the Legislature (Parliament). It should be allowed to do justice without fear or favour.



Safeguards of independence: The Constitution has made the following provisions to safeguard and ensure the independent and impartial functioning of the Supreme Court:

1. **Mode of Appointment:** The judges of the Supreme Court are appointed by the President (which means the cabinet) in consultation with the members of the judiciary itself (ie, judges of the Supreme Court and the high courts). This provision curtails the absolute discretion of the executive as well as ensures that the judicial appointments are not based on any political or practical considerations.
2. **Security of Tenure:** The judges of the Supreme Court are provided with the Security of Tenure. They can be removed from office by the President only in the manner and on the grounds mentioned in the Constitution. This means that they do not hold their office during the pleasure of the President, though they are appointed by him/her. This is obvious from the fact that no judge of the Supreme Court has been removed (or impeached) so far.
3. **Fixed Service Conditions:** The salaries, allowances, privileges, leave and pension of the judges of the Supreme Court are determined from time to time by the Parliament. They cannot be changed to their disadvantage after their appointment except during a financial emergency. Thus, the conditions of service of the judges of the Supreme Court remain same during their term of Office.
4. **Expenses Charged on Consolidated Fund:** The salaries, allowances and pensions of the judges and the staff as well as all the administrative expenses of the Supreme Court are charged on the Consolidated Fund of India. Thus, they are non-votable by the Parliament (though they can be discussed by it).
5. **Conduct of Judges cannot be Discussed:** The Constitution prohibits any discussion in Parliament or in a State Legislature with respect to the conduct of the judges of the Supreme Court in the discharge of their duties, except when an impeachment motion is under consideration of the Parliament.
6. **Ban on Practice after Retirement:** The retired judges of the Supreme Court are prohibited from pleading or acting in any Court or before any authority within the territory of India. This ensures that they do not favour any one in the hope of future favour.
7. **Power to Punish for its Contempt:** The Supreme Court can punish any person for its contempt. Thus, its actions and decisions cannot be criticised and opposed by any body. This power is vested in the Supreme Court to maintain its authority, dignity and honour.
8. **Freedom to Appoint its Staff:** The Chief Justice of India can appoint officers and servants of the Supreme Court without any interference from the executive. He/she can also prescribe their conditions of service.
9. **Its Jurisdiction cannot be Curtailed:** The Parliament is not authorised to curtail the jurisdiction and powers of the Supreme Court. The Constitution has guaranteed to the Supreme Court, jurisdiction of various kinds. However, the Parliament can extend the same.

appointment with judiciary	tenure not at pleasure	service no adverse change	expenses charged on CFI	conduct no discussion
no practice after retirement	contempt power to punish	staff CJI appoints	jurisdiction cannot be curtailed	

Jurisdiction – Overview and Original Jurisdiction

JURISDICTION AND POWERS OF SUPREME COURT

Most powerful Supreme Court: The Constitution has conferred a very extensive jurisdiction and vast powers on the Supreme Court. It is not only a Federal Court like the American Supreme Court but also a final court of appeal like the British House of Lords (the Upper House of the British Parliament). It is also the final interpreter and guardian of the Constitution and guarantor of the fundamental rights of the citizens. Further, it has advisory and supervisory powers. Therefore, Alladi Krishnaswamy Ayyar, a member of the Drafting Committee of the Constituent Assembly, rightly remarked: "The Supreme Court of India has more powers than any other Supreme Court in any part of the world."
The jurisdiction and powers of the Supreme Court can be classified into the following:

1. Original Jurisdiction.
2. Writ Jurisdiction.
3. Appellate Jurisdiction.
4. Advisory Jurisdiction.
5. A Court of Record.
6. Power of Judicial Review.
7. Constitutional Interpretation
8. Other Powers.

Original	Writ	Appellate	Advisory
Court of Record	Judicial Review	Interpretation	Other

1. Original Jurisdiction

Federal disputes: As a federal court, the Supreme Court decides the disputes between different units of the Indian Federation. More elaborately, any dispute:

(a) **Centre vs state(s):** Between the Centre and one or more states; or
(b) **Centre & states vs states:** Between the Centre and any state or states on one side and one or more other states on the other side; or
(c) **Inter-state dispute:** Between two or more states.

Centre vs state(s) | Centre + state(s) vs state(s) | state vs state

Exclusive original jurisdiction: In the above federal disputes, the Supreme Court has exclusive original jurisdiction. Exclusive means, no other court can decide such disputes and original means, the power to hear such disputes in the first instance, not by way of appeal.

Legal right, not political: With regard to the exclusive original jurisdiction of the Supreme Court, two points should be noted. One, the dispute must involve a question (whether of law or fact) on which the existence or extent of a legal right depends. Thus, the questions of political nature are excluded from it. Two, any suit brought before the Supreme Court by a private citizen against the Centre or a state cannot be entertained under this.

Exclusions from original jurisdiction: Further, this jurisdiction of the Supreme Court does not extend to the following:

(a) **Pre-constitution treaties:** A dispute arising out of any treaty, agreement, covenant, engagement, sanad or other similar instrument which, having been entered into or executed before the commencement of the constitution, continues in operation after such commencement, or which provides that the said jurisdiction shall not extend to such a dispute.
(b) **River water disputes (Art. 262):** Inter-state river water disputes.[7]
(c) **Finance Commission matters:** Matters referred to the Finance Commission.
(d) **Expenses & pensions:** Adjustment of certain expenses and pensions between the Centre and the states.

First suit – West Bengal vs Centre (1961): In 1961, the first suit, under the original jurisdiction of the Supreme Court, was brought by West Bengal against the Centre. The State Government challenged the Constitutional validity of the Coal Bearing Areas (Acquisition and Development) Act, 1957, passed by the Parliament. However, the Supreme Court dismissed the suit by upholding the validity of the Act.

7 The Inter-State River Water Disputes Act of 1956 has excluded the original jurisdiction of the Supreme Court in disputes between states with respect to the use, distribution or control of the water of inter-state river or river valley.

Writ Jurisdiction

2. Writ Jurisdiction

Guarantor of Fundamental Rights: The Constitution has constituted the Supreme Court as the guarantor and defender of the fundamental rights of the citizens. The Supreme Court is empowered to issue writs including habeas corpus, mandamus, prohibition, quo warranto and certiorari for the enforcement of the fundamental rights of an aggrieved citizen. In this regard, the Supreme Court has original jurisdiction in the sense that an aggrieved citizen can directly go to the Supreme Court, not necessarily by way of appeal. However, the writ jurisdiction of the Supreme Court is not exclusive. The high courts are also empowered to issue writs for the enforcement of the Fundamental Rights. It means, when the Fundamental Rights of a citizen are violated, the aggrieved party has the option of moving either the high court or the Supreme Court directly.

habeas corpus | mandamus | prohibition | quo warranto | certiorari

Exclusive vs concurrent original jurisdiction: Therefore, the original jurisdiction of the Supreme Court with regard to federal disputes is different from its original jurisdiction with regard to disputes relating to fundamental rights. In the first case, it is exclusive and in the second case, it is concurrent with high courts jurisdiction. Moreover, the parties involved in the first case are units of the federation (Centre and states) while the dispute in the second case is between a citizen and the Government (Central or state).

Federal disputes	Fundamental Rights
exclusive Centre vs states	concurrent with HCs citizen vs Government

SC vs HC writ jurisdiction: There is also a difference between the writ jurisdiction of the Supreme Court and that of the high court. The Supreme Court can issue writs only for the enforcement of the Fundamental Rights and not for other purposes. The high court, on the other hand, can issue writs not only for the enforcement of the fundamental rights but also for other purposes. It means that the writ jurisdiction of the high court is wider than that of the Supreme Court. But, the Parliament can confer on the Supreme Court, the power to issue writs for other purposes also.

Supreme Court writs	High Court writs
only Fundamental Rights Parliament may widen	FRs + other purposes wider

Appellate Jurisdiction

3. Appellate Jurisdiction

Highest court of appeal: As mentioned earlier, the Supreme Court has not only succeeded the Federal Court of India but also replaced the British Privy Council as the highest court of appeal. The Supreme Court is primarily a court of appeal and hears appeals against the judgements of the High courts. It enjoys a wide appellate jurisdiction which can be classified under four heads:

(a) Appeals in constitutional matters.
(b) Appeals in civil matters.
(c) Appeals in criminal matters.
(d) Appeals by special leave.



(a) Constitutional Matters

HC certificate – constitutional question: In the constitutional cases, an appeal can be made to the Supreme Court against the judgement of a high court if the high court certifies that the case involves a substantial question of law that requires the interpretation of the Constitution. Based on the certificate, the party in the case can appeal to the Supreme Court on the ground that the question has been wrongly decided.

(b) Civil Matters

HC certificate – civil cases: In civil cases, an appeal lies to the Supreme Court from any judgement of a high court if the high court certifies—

(i) **Question of general importance:** that the case involves a substantial question of law of general importance; and
(ii) **Needs SC decision:** that the question needs to be decided by the Supreme Court.

30th Amendment – no monetary limit: Originally, only those civil cases that involved a sum of not less than ₹20,000 could be appealed before the Supreme Court. But this monetary limit was removed by the 30th Constitutional Amendment Act of 1972.

(c) Criminal Matters

Criminal appeals: The Supreme Court hears appeals against the judgement in a criminal proceeding of a high court if the high court—

(i) **Acquittal reversed – death sentence:** has on appeal reversed an order of acquittal of an accused person and sentenced him/her to death; or
(ii) **Case withdrawn – death sentence:** has taken before itself any case from any subordinate court and convicted the accused person and sentenced him/her to death; or
(iii) **Fit case certificate:** certifies that the case is a fit one for appeal to the Supreme Court.

Appeal as of right: In the first two cases, an appeal lies to the Supreme Court as a matter of right (ie, without any certificate of the high court). But if the high court has reversed the order of conviction and has ordered the acquittal of the accused, there is no right to appeal to the Supreme Court.

1970 enlargement: In 1970, the Parliament had enlarged the Criminal Appellate Jurisdiction of the Supreme Court. Accordingly, an appeal lies to the Supreme Court from the judgement of a high court if the high court:

(i) **Acquittal reversed – life/10 years:** has on appeal, reversed an order of acquittal of an accused person and sentenced him/her to imprisonment for life or for ten years; or
(ii) **Case withdrawn – life/10 years:** has taken before itself any case from any subordinate court and convicted the accused person and sentenced him/her to imprisonment for life or for ten years.

(d) Appeal by Special Leave

Special Leave Petition (Art. 136): The Supreme Court is authorised to grant in its discretion special leave to appeal from any judgement in any matter passed by any court or tribunal in the country (except military tribunal and court martial). This provision contains the four aspects as under:

(i) **Discretionary:** It is a discretionary power and hence, cannot be claimed as a matter of right.
(ii) **Final or interlocutory:** It can be granted in any judgement whether final or interlocutory.
(iii) **Any subject matter:** It may be related to any matter—constitutional, civil, criminal, income-tax, labour, revenue, advocates, etc.
(iv) **Any court or tribunal:** It can be granted against any court or tribunal and not necessarily against a high court (of course, except a military court).

Plenary jurisdiction – used sparingly: Thus, the scope of this provision is very wide and it vests the Supreme Court with a plenary jurisdiction to hear appeals. On the exercise of this power, the Supreme Court itself held that 'being an exceptional and overriding power, it has to be exercised sparingly and with caution and only in special extraordinary situations. Beyond that it is not possible to fetter the exercise of this power by any set formula or rule'.

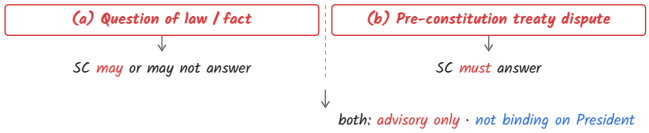
Advisory Jurisdiction

4. Advisory Jurisdiction

Article 143 – President's reference: The Constitution (Article 143) authorises the President to seek the opinion of the Supreme Court in the two categories of matters:

(a) **Question of public importance:** On any question of law or fact of public importance which has arisen or which is likely to arise.
(b) **Pre-constitution treaty disputes:** On any dispute arising out of any pre-constitution treaty, agreement, covenant, engagement, sanad or other similar instrument, which is excluded from the original jurisdiction of the Supreme Court.

Opinion not binding: In the first case, the Supreme Court may tender or may refuse to tender its opinion to the President. But, in the second case, the Supreme Court 'must' tender its opinion to the President. In both the cases, the opinion expressed by the Supreme Court is only advisory and not a judicial pronouncement. Hence, it is not binding on the President; he/she may follow or may not follow the opinion. However, it facilitates the government to have an authoritative legal opinion on a matter to be decided by it.



Fifteen references so far: So far, the President has made fifteen references to the Supreme Court under its advisory jurisdiction (also known as consultative jurisdiction). These are mentioned below in the chronological order.

1. Delhi Laws Act in 1951
2. Kerala Education Bill in 1958
3. Berubari Union in 1960
4. Sea Customs Act in 1963
5. Keshav Singh's case relating to the privileges of the Legislature in 1964
6. Presidential Election in 1974
7. Special Courts Bill in 1978
8. Jammu and Kashmir Resettlement Act in 1982
9. Cauvery Water Disputes Tribunal in 1992
10. Rama Janma Bhumi case in 1993
11. Consultation process to be adopted by the chief justice of India in 1998
12. Legislative competence of the Centre and States on the subject of natural gas and liquefied natural gas in 2001
13. The constitutional validity of the Election Commission's decision on deferring the Gujarat Assembly Elections in 2002
14. Punjab Termination of Agreements Act in 2004
15. 2G spectrum case verdict and the mandatory auctioning of natural resources across all sectors in 2012

Court of Record, Contempt and Judicial Review

5. A Court of Record

Two powers of a Court of Record: As a Court of Record, the Supreme Court has two powers:

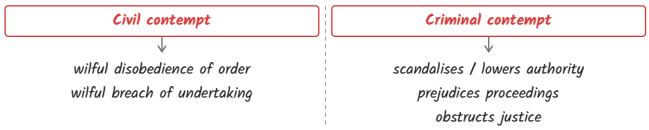
(a) **Records as precedents:** The judgements, proceedings and acts of the Supreme Court are recorded for perpetual memory and testimony. These records are admitted to be of evidentiary value and cannot be questioned when produced before any court. They are recognised as legal precedents and legal references.
(b) **Contempt power:** It has power to punish for contempt of itself. In 1991, the Supreme Court has ruled that it has power to punish for contempt not only of itself but also of high courts, subordinate courts and tribunals functioning in the entire country.

Contempt of Courts Act (1971)

Sanyal Committee → 1971 Act: In 1961, the government appointed a special committee under the chairmanship of H.N. Sanyal, the then Additional Solicitor General of India, to examine the law relating to the contempt of courts. This committee submitted its report in 1963. Based on the recommendations made by the committee, the Contempt of Courts Act, 1971 was enacted by the Parliament.



Civil vs criminal contempt: Under the Act, the contempt of court may be civil or criminal. The civil contempt means wilful disobedience to any judgement, order, writ or other process of a court or wilful breach of an undertaking given to a court. The criminal contempt, on the other hand, means the publication of any matter or doing an act which—(i) scandalises or lowers the authority of a court; or (ii) prejudices or interferes with the due course of a judicial proceeding; or (iii) interferes or obstructs the administration of justice in any other manner.



Not contempt: However, innocent publication and distribution of matter, fair and accurate report of judicial proceedings and fair criticism of judicial acts do not amount to contempt of court.

Punishment: Under the Act, a contempt of court is punishable with simple imprisonment for a term upto six months or with fine upto ₹2,000 or with both.

Limitation – one year: The Act also provides that no court shall initiate any proceedings of contempt after the expiry of one year from the date on which the contempt is alleged to have been committed.

Not for Nyaya Panchayats: Further, this Act is not applicable to contempt of Nyaya Panchayats or other village courts which have been established for the administration of justice.

6. Power of Judicial Review

Judicial review: Judicial review is the power of the Supreme Court to examine the constitutionality of legislative enactments and executive orders of both the Central and state governments. On examination, if they are found to be violative of the Constitution (ultra-vires), they can be declared as illegal, unconstitutional and invalid (null and void) by the Supreme Court. Consequently, they cannot be enforced by the Government.

law / executive order → examined by SC → ultra-vires? → **null and void**

Review, Interpretation and Other Powers

7. Review Jurisdiction

Review petition – 30 days: The Supreme Court has power to review any judgement pronounced or order made by it. A review petition has to be filed within thirty days from the date of the judgement or order sought to be reviewed. Also, the review petition should be submitted to the same judge or bench that delivered the judgement or order. Further, a review petition is allowed on the following grounds:

(i) Discovery of new and important matter or evidence.
(ii) Mistake or error apparent on the face of the record.
(iii) Any other sufficient reason.

Curative petition: The court may either dismiss the review petition or direct notice to the opposite party. However, even after the dismissal of the review petition, the court can still reconsider its final judgement or order by way of a curative petition on limited grounds like:

(i) Violation of the principles of natural justice.
(ii) To cure a gross miscarriage of justice.
(iii) To prevent abuse of the process of the court.
(iv) Bias of the judge.

judgement → review petition (30 days, same bench) → dismissed
↓
curative petition

8. Constitutional Interpretation

Ultimate interpreter: The Supreme Court is the ultimate interpreter of the Constitution. It can give final version to the spirit and content of the provisions of the constitution and the verbiage used in the constitution.

Doctrines of interpretation: While interpreting the constitution, the Supreme Court is guided by a number of doctrines. In other words, the Supreme Court applies various doctrines in interpreting the constitution. The important doctrines are mentioned below:

1. Doctrine of Severability
2. Doctrine of Waiver
3. Doctrine of Eclipse
4. Doctrine of Territorial Nexus
5. Doctrine of Pith and Substance
6. Doctrine of Colourable Legislation
7. Doctrine of Implied Powers
8. Doctrine of Incidental and Ancillary Powers
9. Doctrine of Precedent
10. Doctrine of Occupied Field
11. Doctrine of Prospective Overruling
12. Doctrine of Harmonious Construction
13. Doctrine of Liberal Interpretation

9. Other Powers

Other powers: Besides the above, the Supreme Court has numerous other powers:

(a) **Presidential election disputes:** It decides the disputes regarding the election of the President and the vice-President. In this regard, it has the original, exclusive and final authority.
(b) **PSC members' conduct:** It enquires into the conduct and behaviour of the chairman and members of the UPSC or SPSC or JSPSC on a reference made by the President. If it finds them guilty of misbehaviour, it can recommend to the President for their removal. The advice tendered by the Supreme Court in this regard is binding on the President.
(c) **Transfer of cases:** It is authorised to withdraw the cases pending before the high courts and dispose them by itself. It can also transfer a case or appeal pending before one high court to another high court.
(d) **Law binding on all courts (Art. 141):** Its law is binding on all courts in India. Its decree or order is enforceable throughout the country. All authorities (civil and judicial) in the country should act in aid of the Supreme Court.
(e) **Judicial superintendence:** It has power of judicial superintendence and control over all the courts and tribunals functioning in the entire territory of the country.

Enlargement of jurisdiction: The Supreme Court's jurisdiction and powers with respect to matters in the Union list can be enlarged by the Parliament. Further, its jurisdiction and powers with respect to other matters can be enlarged by a special agreement of the Centre and the states.

Indian and American Supreme Courts Compared

INDIAN AND AMERICAN SUPREME COURTS COMPARED

India vs USA: There are differences in the jurisdiction and powers of the Supreme Court of India and that of the Supreme Court of USA. These are summarised in Table 26.1.

Table 26.1 Comparing Indian and American Supreme Courts

Indian Supreme Court	American Supreme Court
1. Its original jurisdiction is confined to federal cases.	1. Its original jurisdiction covers not only federal cases but also cases relating to naval forces, maritime activities, ambassadors, etc.
2. Its appellate jurisdiction covers constitutional, civil and criminal cases.	2. Its appellate jurisdiction is confined to constitutional cases only.
3. It has a very wide discretion to grant special leave to appeal in any matter against the judgement of any court or tribunal (except military).	3. It has no such plenary power.
4. It has advisory jurisdiction.	4. It has no advisory jurisdiction.
5. Its scope of judicial review is limited.	5. Its scope of judicial review is very wide.
6. It defends rights of the citizen according to the 'procedure established by law'.	6. It defends rights of the citizen according to the 'due process of law'.
7. Its jurisdiction and powers can be enlarged by Parliament.	7. Its jurisdiction and powers are limited to that conferred by the Constitution.
8. It has power of judicial superintendence and control over state high courts due to integrated judicial system.	8. It has no such power due to double (or separated) judicial system.

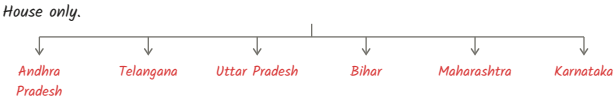
Please check the tables of this chapter once. If a table looks important, study it directly from Laxmikanth, or take a screenshot of it and add it to this page as needed.

CHAPTER 33 State Legislature

Constitutional basis (Arts. 168–212): The state legislature occupies a pre-eminent and central position in the political system of a state. Articles 168 to 212 in Part VI of the Constitution deal with the organisation, composition, duration, officers, procedures, privileges, powers and so on of the state legislature. Though these are similar to that of Parliament, there are some differences as well.

ORGANISATION OF STATE LEGISLATURE

Six bicameral states: There is no uniformity in the organisation of state legislatures. Most of the states have an unicameral system, while others have a bicameral system. At present, only six states have two Houses (bicameral). These are Andhra Pradesh, Telangana, Uttar Pradesh, Bihar, Maharashtra and Karnataka. The Jammu and Kashmir Legislative Council was abolished by the Jammu and Kashmir Reorganisation Act, 2019.[1] The Tamil Nadu Legislative Council Act, 2010 has not come into force. The Legislative Council in Andhra Pradesh was revived by the Andhra Pradesh Legislative Council Act, 2005. The 7th Amendment Act of 1956 provided for a Legislative Council in Madhya Pradesh. However, a notification to this effect has to be made by the President. So far, no such notification has been made. Hence, Madhya Pradesh continues to have one House only.



Unicameral vs bicameral: The twenty-two states have a unicameral system. Here, the state legislature consists of the governor and the legislative assembly. In the states having bicameral system, the state legislature consists of the governor, the legislative council and the legislative assembly. The legislative council (Vidhan Parishad) is the upper house (second chamber or house of elders), while the legislative assembly (Vidhan Sabha) is the lower house (first chamber or popular house).

Unicameral (22 states)	Bicameral (6 states)
Governor + Legislative Assembly	Governor + Legislative Council (upper) + Legislative Assembly (lower)

Creation / abolition of councils (Art. 169): The Constitution (Article 169) provides for the abolition or creation of legislative councils in states. Accordingly, the Parliament can abolish a legislative council (where it already exists) or create it (where it does not exist), if the legislative assembly of the concerned state passes a resolution to that effect. Such a specific resolution must be passed by the state assembly by a special majority, that is, a majority of the total membership of the assembly and a majority of not less than two-thirds of the members of the assembly present and voting. This Act of Parliament is not to be deemed as an amendment of the Constitution for the purposes of Article 368 and is passed like an ordinary piece of legislation (ie, by simple majority).

Assembly resolution (special majority) → Parliament law (simple majority)
↓
council created / abolished → not Art. 368 amendment

1 The erstwhile state of Jammu and Kashmir had adopted a bicameral legislature by its own state Constitution, which was separate from the Indian Constitution.

Second Chamber in States – Rationale and History

> **Constituent Assembly criticism:** "The idea of having a second chamber in the states was criticised in the Constituent Assembly on the ground that it was not representative of the people, that it delayed legislative process and that it was an expensive institution[2]."

Optional council – state's choice: Consequently the provision was made for the abolition or creation of a legislative council to enable a state to have a second chamber or not according to its own willingness and financial strength. For example, Andhra Pradesh got the legislative council created in 1957 and got the same abolished in 1985. The Legislative Council in Andhra Pradesh was again revived in 2007, after the enactment of the Andhra Pradesh Legislative Council Act, 2005. The legislative council of Tamil Nadu had been abolished in 1986 and that of Punjab and West Bengal in 1969.

AP: created 1957 → abolished 1985 → revived 2007

Tamil Nadu case: In 2010, the Legislative Assembly of Tamil Nadu passed a resolution for the revival of the Legislative Council in the state. Accordingly, the Parliament enacted the Tamil Nadu Legislative Council Act, 2010 which provided for the creation of Legislative Council in the state. However, before this Act was enforced, the Legislative Assembly of Tamil Nadu passed another resolution in 2011 seeking the abolition of the proposed Legislative Council.

TN abolished 1986 → 2010: revival resolution + Act → 2011: abolition resolution

Laws under Art. 169: The various laws made by the Parliament (under Article 169 of the constitution) for the abolition or creation of State Legislative Councils are mentioned in Table 33.4.

2 M.P. Jain, Indian Constitutional Law, Wadhwa Fourth edition, p. 159.

Composition of Legislative Assembly

COMPOSITION OF TWO HOUSES

Composition of Assembly

Strength: The legislative assembly consists of representatives directly elected by the people on the basis of universal adult franchise. Its maximum strength is fixed at 500 and minimum strength at 60. It means that its strength varies from 60 to 500 depending on the population size of the state. However, in case of Arunachal Pradesh, Sikkim and Goa, the minimum number is fixed at 30 and in case of Mizoram and Nagaland, it is 40 and 46 respectively. Further, some members of the legislative assemblies in Sikkim and Nagaland are also elected indirectly.

Max 500	Min 60	30 Arunachal, Sikkim, Goa	40 / 46 Mizoram / Nagaland

Table 33.2 reference: The strength of legislative assemblies is indicated in Table 33.2.

Nominated Member: Before 2020, the Governor nominated one member from the Anglo-Indian community[3] to the assembly, if the community was not adequately represented. Originally, this provision was to operate for ten years (i.e., upto 1960) only. Later, this duration has been extended continuously since then by ten years each time. The last extension upto 2020 was made by the 95th Amendment Act, 2009. But, the 104th Amendment Act, 2019, has not extended further the operation of this provision. In other words, the Amendment discontinued this provision of special representation of the Anglo-Indian community in the Assembly by nomination. Consequently, this provision ceased to have effect on the 25th January, 2020.

1950: 10 years → extended every 10 years → 95th Amdt → 2020
↓
104th Amdt: ended 25 Jan 2020

Territorial Constituencies: For the purpose of holding direct elections to the assembly, each state is divided into territorial constituencies. The demarcation of these constituencies is done in such a manner that the ratio between the population of each constituency and the number of seats allotted to it is the same throughout the state. In other words, the Constitution ensures that there is uniformity of representation between different constituencies in the state. The expression 'population' means, the population as ascertained at the last preceding census of which the relevant figures have been published.

Readjustment after each census: After each census, a readjustment is to be made in the (a) total number of seats in the assembly of each state and (b) the division of each state into territorial constituencies. The Parliament is empowered to determine the authority and the manner in which it is to be made. Accordingly, Parliament has enacted the Delimitation Commission Acts in 1952, 1962, 1972 and 2002 for this purpose.

Freeze till 2026: The 42nd Amendment Act of 1976 had frozen total number of seats in the assembly of each state and the division of such state into territorial constituencies till the year 2000 at the 1971 level. This ban on readjustment has been extended for another years (i.e., upto year 2026) by the 84th Amendment Act of 2001 with the same objective of encouraging population limiting measures.

Delimitation on 2001 census: The 84th Amendment Act of 2001 also empowered the government to undertake readjustment and rationalisation of territorial constituencies in a state on the basis of the population figures of 1991 census. Later, the 87th Amendment Act of 2003 provided for the delimitation of constituencies on the basis of 2001 census and not 1991 census. However, this can be done without altering the total number of seats in the assembly of each state.

42nd Amdt 1976: freeze at 1971 till 2000 → 84th Amdt 2001: till 2026 (1991 census)
↓
87th Amdt 2003: 2001 census

Reservation of seats for SCs and STs: The Constitution provided for the reservation of seats for scheduled castes and scheduled tribes in the assembly of each state on the basis of population ratios.[4]

Reservation till 2030: Originally, this reservation was to operate for ten years (i.e., up to 1960). But this duration has been extended continuously since then by 10 years each time. Now, under the 104th Amendment Act of 2019, this reservation is to last until 2030.

Reserved seats – Table 33.2: The seats reserved for SCs and STs in the legislative assemblies is indicated in Table 33.2.

3 An Anglo-Indian means a person whose father or any other male progenitor in the male line is or was of European descent, but who is domiciled within the territory of India and is or was born within such territory of parents habitually resident therein and not established there for temporary purposes only.

4 This means that the number of assembly seats reserved in a state for such castes and tribes is to bear the same proportion to the total number of seats in the assembly as the population of such castes and tribes in the concerned state bears to the total population of the state.

Composition of Council and Duration of Houses

Composition of Council

Strength: Unlike the members of the legislative assembly, the members of the legislative council are indirectly elected. The maximum strength of the council is fixed at one-third of the total strength of the assembly and the minimum strength is fixed at 40. It means that the size of the council depends on the size of the assembly of the concerned state. This is done to ensure the predominance of the directly elected House (assembly) in the legislative affairs of the state. Though the Constitution has fixed the maximum and the minimum limits, the actual strength of a Council is fixed by Parliament.

Max	Min	Actual
1/3 of Assembly	40	fixed by Parliament

Council strength – Table 33.2: The strength of legislature councils is indicated in Table 33.2.

Manner of Election: Of the total number of members of a legislative council:

1. **Local bodies – 1/3:** 1/3 are elected by the members of local bodies in the state like municipalities, district boards, etc.,
2. **Graduates – 1/12:** 1/12 are elected by graduates of three years standing and residing within the state,
3. **Teachers – 1/12:** 1/12 are elected by teachers of three years standing in the state, not lower in standard than secondary school,
4. **MLAs – 1/3:** 1/3 are elected by the members of the legislative assembly of the state from amongst persons who are not members of the assembly, and
5. **Governor's nominees – 1/6:** the remainder are nominated by the governor from amongst persons who have a special knowledge or practical experience of literature, science, art, cooperative movement and social service.

1/3	1/12	1/12	1/3	1/6
local bodies	graduates	teachers	MLAs	Governor nominees

5/6 elected, 1/6 nominated – STV: Thus, 5/6 of the total number of members of a legislative council are indirectly elected and 1/6 are nominated by the governor. The members are elected in accordance with the system of proportional representation by means of a single transferable vote.

Tentative scheme: This scheme of composition of a legislative council as laid down in the Constitution is tentative and not final. The Parliament is authorised to modify or replace the same. However, it has not enacted any such law so far.

DURATION OF TWO HOUSES

Duration of Assembly

Assembly – five years, dissolvable: Like the Lok Sabha, the legislative assembly is not a continuing chamber. Its normal term is five years from the date of its first meeting after the general elections. The expiration of the period of five years operates as automatic dissolution of the assembly. However, the governor is authorised to dissolve the assembly at any time (i.e., even before the completion of five years) to pave the way for fresh elections. Further, the term of the assembly can be extended during the period of national emergency by a law of Parliament for one year at a time (for any length of time). However, this extension cannot continue beyond a period of six months after the emergency has ceased to operate. This means that the assembly should be re-elected within six months after the revocation of emergency.

Duration of Council

Council – permanent body: Like the Rajya Sabha, the legislative council is a continuing chamber, that is, it is a permanent body and is not subject to dissolution. But, one-third of its members retire on the expiration of every second year. So, a member continues as such for six years. The vacant seats are filled up by fresh elections and nominations (by governor) at the beginning of every third year. The retiring members are also eligible for re-election and re-nomination any number of times.

Assembly	Council
not continuing	permanent
5 years	not dissolved
Governor can dissolve	1/3 retire every 2 years
+1 year in emergency	6-year term

Membership – Qualifications and Disqualifications

MEMBERSHIP OF STATE LEGISLATURE

1. Qualifications

Constitutional qualifications: The Constitution lays down the following qualifications for a person to be chosen a member of the state legislature.

1. **Citizenship:** He/she must be a citizen of India.
2. **Oath before ECI-authorised person:** He/she must make and subscribe to an oath or affirmation before the person authorised by the Election Commission for this purpose. In his/her oath or affirmation, he/she swears – 1. To bear true faith and allegiance to the Constitution of India 2. To uphold the sovereignty and integrity of India
3. **Age – 30 / 25:** He/she must be not less than 30 years of age in the case of the legislative council and not less than 25 years of age in the case of the legislative assembly.
4. **Other qualifications by Parliament:** He/she must possess other qualifications prescribed by Parliament.

RPA 1951 – additional qualifications: Accordingly, the Parliament has laid down the following additional qualifications in the Representation of People Act (1951):

1. **Council – elector + resident:** A person to be elected to the legislative council must be an elector for an assembly constituency in the concerned state and to be qualified for the governor's nomination, he/she must be a resident in the concerned state.
2. **Assembly – elector:** A person to be elected to the legislative assembly must be an elector for an assembly constituency in the concerned state.
3. **Reserved seats:** He/she must be a member of a scheduled caste or scheduled tribe if he/she wants to contest a seat reserved for them. However, a member of scheduled castes or scheduled tribes can also contest a seat not reserved for them.

2. Disqualifications

Constitutional disqualifications: Under the Constitution, a person shall be disqualified for being chosen as and for being a member of the legislative assembly or legislative council of a state:

1. **Office of profit:** if he/she holds any office of profit under the Union or state government (except that of a minister or any other office exempted by state legislature[5]),
2. **Unsound mind:** if he/she is of unsound mind and stands so declared by a court,
3. **Insolvency:** if he/she is an undischarged insolvent,
4. **Foreign allegiance:** if he/she is not a citizen of India or has voluntarily acquired the citizenship of a foreign state or is under any acknowledgement of allegiance to a foreign state, and
5. **Law of Parliament:** if he/she is so disqualified under any law made by Parliament.

RPA 1951 – additional disqualifications: Accordingly, the Parliament has prescribed a number of additional disqualifications in the Representation of People Act (1951). These are similar to those for Parliament. These are mentioned here:

1. **Electoral offences:** He/she must not have been found guilty of certain electoral offences or corrupt practices in the elections.
2. **Conviction – 2 years:** He/she must not have been convicted for any offence resulting in imprisonment for two or more years. But, the detention of a person under a preventive detention law is not a disqualification.
3. **Election expenses:** He/she must not have failed to lodge an account of his/her election expenses within the time.
4. **Government contracts:** He/she must not have any interest in government contracts, works or services.
5. **Government corporations – 25%:** He/she must not be a director or managing agent nor hold an office of profit in a corporation in which the government has at least 25 per cent share.
6. **Dismissal for corruption:** He/she must not have been dismissed from government service for corruption or disloyalty to the state.
7. **Enmity / bribery:** He/she must not have been convicted for promoting enmity between different groups or for the offence of bribery.
8. **Social crimes:** He/she must not have been punished for preaching and practicing social crimes such as untouchability, dowry and sati.

Governor decides – on ECI opinion: On the question whether a member has become subject to any of the above disqualifications, the governor's decision is final. However, he/she should obtain the opinion of the Election Commission and act accordingly.

disqualification question → opinion of Election Commission → Governor decides (final)

5 A minister in the union or state government is not considered as holding an office of profit. Also, the state legislature can declare that a particular office of profit will not disqualify its holder from its membership.

Defection, Oath and Vacation of Seats

Disqualification on Ground of Defection

Tenth Schedule: The Constitution also lays down that a person shall be disqualified for being a member of either House of state legislature if he/she is so disqualified on the ground of defection under the provisions of the Tenth Schedule.

Speaker/Chairman decides – Kihoto Hollohan: The question of disqualification under the Tenth Schedule is decided by the Chairman, in the case of legislative council and, Speaker, in the case of legislative assembly (and not by the governor). In Kihoto Hollohan case[6] (1992), the Supreme Court ruled that the decision of Chairman/Speaker in this regard is subject to judicial review.

General disqualification	Defection (Tenth Schedule)
↓	↓
decided by Governor on ECI opinion	decided by Speaker / Chairman judicial review – Kihoto (1992)

3. Oath or Affirmation

Oath before Governor: Every member of either House of state legislature, before taking his/her seat in the House, has to make and subscribe an oath or affirmation before the governor or some person appointed by him/her for this purpose.

Contents of oath: In this oath, a member of the state legislature swears:

1. to bear true faith and allegiance to the Constitution of India;
2. to uphold the sovereignty and integrity of India; and
3. to faithfully discharge the duty of his/her office.

No oath – no vote: Unless a member takes the oath, he/she cannot vote and participate in the proceedings of the House and does not become eligible to the privileges and immunities of the state legislature.

Penalty ₹500 per day: A person is liable to a penalty of ₹500 for each day he/she sits or votes as a member in a House:

1. **Without oath:** before taking and subscribing the prescribed oath or affirmation; or
2. **Knowingly unqualified:** when he/she knows that he/she is not qualified or that he/she is disqualified for its membership; or
3. **Prohibited by law:** when he/she knows that he/she is prohibited from sitting or voting in the House by virtue of any law made by the Parliament or the state legislature.

Salaries by state legislature: The members of a state legislature are entitled to receive such salaries and allowances as may from time to time be determined by the state legislature.

4. Vacation of Seats

Vacation of seats: In the following cases, a member of the state legislature vacates his/her seat:

1. **Double Membership:** A person cannot be a member of both Houses of state legislature at one and the same time. If a person is elected to both the Houses, his/her seat in one of the Houses falls vacant as per the provisions of a law made by the state legislature.
2. **Disqualification:** If a member of the state legislature becomes subject to any of the disqualifications, his/her seat becomes vacant.
3. **Resignation:** A member may resign from his/her seat by writing to the Chairman of legislative council or Speaker of legislative assembly, as the case may be. The seat falls vacant when the resignation is accepted[7].
4. **Absence:** A House of the state legislature can declare the seat of a member vacant if he/she absents himself/herself from all its meeting for a period of sixty days without its permission.
5. **Other Cases:** A member has to vacate his/her seat in the either House of state legislature, 1. if his/her election is declared void by the court, 2. if he/she is expelled by the House, 3. if he/she is elected to the office of president or office of vice-president, and 4. if he/she is appointed to the office of governor of a state.

double membership	disqualification	resignation	absence 60 days	other cases

6 Kihoto Hollohan vs. Zachillhu (1992).

7 However, the Chairman/Speaker need not accept the resignation if he/she is satisfied that it is not voluntary or genuine.

Presiding Officers – Speaker and Deputy Speaker

PRESIDING OFFICERS OF STATE LEGISLATURE

Four presiding officers: Each House of state legislature has its own presiding officer. There is a Speaker and a Deputy Speaker for the legislative assembly and a Chairman and a Deputy Chairman for the legislative council. A panel of chairman for the assembly and a panel of vice-chairman for the council is also appointed.

Assembly	Council
↓	↓
Speaker Deputy Speaker panel of chairman	Chairman Deputy Chairman panel of vice-chairman

Salaries charged on CFS: The salaries and allowances of the Speaker and the Deputy Speaker of the assembly and the Chairman and the Deputy Chairman of the council are fixed by the state legislature. They are charged on the Consolidated Fund of the State and thus are not subject to the annual vote of the state legislature.

Speaker of Assembly

Election of Speaker: The Speaker is elected by the assembly itself from amongst its members.

Vacation of Speaker's office: Usually, the Speaker remains in office during the life of the assembly. However, he/she vacates his/her office earlier in any of the following three cases:

1. if he/she ceases to be a member of the assembly;
2. if he/she resigns by writing to the deputy speaker; and
3. if he/she is removed by a resolution passed by a majority of all the then members of the assembly (i.e., an effective majority). Such a resolution can be moved only after giving 14 days advance notice.

Powers of Speaker: The Speaker has the following powers and duties:

1. **Order and decorum:** He/she maintains order and decorum in the assembly for conducting its business and regulating its proceedings. This is his/her primary responsibility and he/she has final power in this regard.
2. **Final interpreter:** He/she is the final interpreter of the provisions of (a) the Constitution of India, (b) the rules of procedure and conduct of business of assembly, and (c) the legislative precedents, within the assembly.
3. **Quorum:** He/she adjourns the assembly or suspends the meeting in the absence of a quorum.
4. **Casting vote:** He/she does not vote in the first instance. But, he/she can exercise a casting vote in the case of a tie.
5. **Secret sitting:** He/she can allow a 'secret' sitting of the House at the request of the leader of the House.
6. **Money Bill certification:** He/she decides whether a bill is a Money Bill or not and his/her decision on this question is final.
7. **Anti-defection authority:** He/she decides the questions of disqualification of a member of the assembly, arising on the ground of defection under the provisions of the Tenth Schedule.
8. **Committees:** He/she appoints the chairman of all the committees of the assembly and supervises their functioning. He/she is the chairman of the Business Advisory Committee, the Rules Committee and the General Purpose Committee.

Deputy Speaker of Assembly

Election of Deputy Speaker: Like the Speaker, the Deputy Speaker is also elected by the assembly itself from amongst its members. He/she is elected after the election of the Speaker has taken place.

Vacation of Deputy Speaker's office: Like the Speaker, the Deputy Speaker remains in office usually during the life of the assembly. However, he/she also vacates his/her office earlier in any of the following three cases:

1. if he/she ceases to be a member of the assembly;
2. if he/she resigns by writing to the speaker; and
3. if he/she is removed by a resolution passed by a majority of all the then members of the assembly (i.e., an effective majority). Such a resolution can be moved only after giving 14 days' advance notice.

Acts as Speaker: The Deputy Speaker performs the duties of the Speaker's office when it is vacant. He/she also acts as the Speaker when the latter is absent from the sitting of assembly. In both the cases, he/she has all the powers of the Speaker.

Panel of chairman: The Speaker nominates from amongst the members a panel of chairman. Any one of them can preside over the assembly in the absence of the Speaker or the Deputy Speaker. He/she has the same power as the speaker when so presiding. He/she holds office until a new panel of chairman is nominated.

Chairman, Deputy Chairman and Sessions

Chairman of Council

Election of Chairman: The Chairman is elected by the council itself from amongst its members.

Vacation of Chairman's office: The Chairman vacates his/her office in any of the following three cases:

1. if he/she ceases to be a member of the council;
2. if he/she resigns by writing to the deputy chairman; and
3. if he/she is removed by a resolution passed by a majority of all the then members of the council (i.e., an effective majority). Such a resolution can be moved only after giving 14 days advance notice.

Speaker's special power: As a presiding officer, the power and functions of the Chairman in the council are similar to those of the Speaker in the assembly. However, the Speaker has one special power which is not enjoyed by the Chairman. The Speaker decides whether a bill is a Money Bill or not and his/her decision on this question is final.

Deputy Chairman of Council

Election of Deputy Chairman: Like the Chairman, the Deputy Chairman is also elected by the council itself from amongst its members.

Vacation of Deputy Chairman's office: The deputy chairman vacates his/her office in any of the following three cases:

1. if he/she ceases to be a member of the council;
2. if he/she resigns by writing to the Chairman; and
3. if he/she is removed by a resolution passed by a majority of all the then members of the council (i.e., an effective majority). Such a resolution can be moved only after giving 14 days advance notice.

Acts as Chairman: The Deputy Chairman performs the duties of the Chairman's office when it is vacant. He/she also acts as the Chairman when the latter is absent from the sitting of the council. In both the cases, he/she has all the powers of the Chairman.

Panel of vice-chairman: The Chairman nominates from amongst the members a panel of vice-chairman. Any one of them can preside over the council in the absence of the Chairman or the Deputy Chairman. He/she has the same powers as the chairman when so presiding. He/she holds office until a new panel of vice-chairman is nominated.

Officer	Resigns to	Removal
Speaker	Deputy Speaker	effective majority · 14 days notice
Deputy Speaker	Speaker	effective majority · 14 days notice
Chairman	Deputy Chairman	effective majority · 14 days notice
Deputy Chairman	Chairman	effective majority · 14 days notice

SESSIONS OF STATE LEGISLATURE

Summoning

Summoning – six-month gap: The governor from time to time summons each House of state legislature to meet. The maximum gap between the two sessions of state legislature cannot be more than six months, ie, the state legislature should meet at least twice a year. A session of the state legislature consists of many sittings.

Adjournment

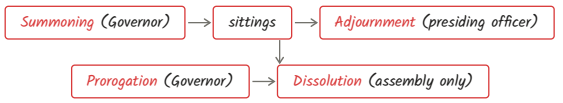
Adjournment: An adjournment suspends the work in a sitting for a specified time which may be hours, days or weeks.

Adjournment sine die: Adjournment sine die means terminating a sitting of the state legislature for an indefinite period. The power of the adjournment as well as adjournment sine die lies with the presiding officer of the House.

Prorogation

Prorogation by Governor: The presiding officer (Speaker or Chairman) declares the House adjourned sine die, when the business of the session is completed. Within the next few days, the governor issues a notification for prorogation of the session.

Prorogation ends session: However, the governor can also prorogue the House which is in session. Unlike an adjournment, a prorogation terminates a session of the House.

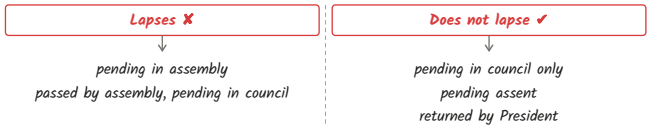


Dissolution

Dissolution ends the House: The legislative council, being a permanent house, is not subject to dissolution. Only the legislative assembly is subject to dissolution. Unlike a prorogation, a dissolution ends the very life of the existing House, and a new House is constituted after the general elections are held.

Lapsing of bills: The position with respect to lapsing of bills on the dissolution of the assembly is mentioned below:

1. **Pending in assembly – lapses:** A Bill pending in the assembly lapses (whether originating in the assembly or transmitted to it by the council).
2. **Passed by assembly, pending in council – lapses:** A Bill passed by the assembly but pending in the council lapses.
3. **Pending in council only – survives:** A Bill pending in the council but not passed by the assembly does not lapse.
4. **Pending assent – survives:** A Bill passed by the assembly (in a unicameral state) or passed by both the houses (in a bicameral state) but pending assent of the governor or the President does not lapse.
5. **Returned by President – survives:** A Bill passed by the assembly (in a unicameral state) or passed by both the Houses (in a bicameral state) but returned by the president for reconsideration of House (s) does not lapse.



Quorum, Voting, Language and Rights of Ministers

Quorum

Quorum – 10 or 1/10: Quorum is the minimum number of members required to be present in the House before it can transact any business. It is ten members or one-tenth of the total number of members of the House (including the presiding officer), whichever is greater. If there is no quorum during a meeting of the House, it is the duty of the presiding officer either to adjourn the House or to suspend the meeting until there is a quorum.

Voting in House

Simple majority & casting vote: All matters at any sitting of either House are decided by a majority of votes of the members present and voting excluding the presiding officer. Only a few matters which are specifically mentioned in the Constitution, require either effective majority or special majority, not simple majority. The presiding officer (i.e., Speaker in the case of assembly or chairman in the case of council or the person acting as such) does not vote in the first instance, but exercises a casting vote in the case of an equality of votes.

Language in State Legislature

Official language, Hindi or English: The Constitution has declared the official language(s) of the state or Hindi or English, to be the languages for transacting business in the state legislature. However, the presiding officer can permit a member to address the House in his/her mother-tongue.

English after 15 years: The state legislature is authorised to decide whether to continue or discontinue English as a floor language after the completion of fifteen years from the commencement of the Constitution (i.e., from 1965). In case of Himachal Pradesh, Manipur, Meghalaya and Tripura, this time limit is twenty-five years and that of Arunachal Pradesh, Goa and Mizoram, it is forty years.

15 years	25 years	40 years
general (1965)	HP, Manipur, Meghalaya, Tripura	Arunachal, Goa, Mizoram

Rights of Ministers and Advocate General

Right to speak, not vote: In addition to the members of a House, every minister and the advocate general of the state have the right to speak and take part in the proceedings of either House or any of its committees of which he/she is named a member, without being entitled to vote. There are two reasons underlying this constitutional provision:

1. **Non-member House:** A minister can participate in the proceedings of a House, of which he/she is not a member.
2. **Non-member minister:** A minister, who is not a member of either House, can participate in the proceedings of both the Houses[8].

8 A person can remain a minister for six months, without being a member of either house of the state legislature.

Legislative Procedure – Ordinary Bills

LEGISLATIVE PROCEDURE IN STATE LEGISLATURE

Ordinary Bills

Bill in the Originating House: An ordinary bill can originate in either House of the state legislature (in case of a bicameral legislature). Such a bill can be introduced either by a minister or by any other member. The bill passes through three stages in the originating House, viz,

1. First reading,
2. Second reading, and
3. Third reading.

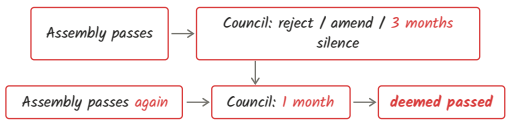
Passage by both Houses: After the bill is passed by the originating House, it is transmitted to the second House for consideration and passage. A bill is deemed to have been passed by the state legislature only when both the Houses have agreed to it, either with or without amendments. In case of a unicameral legislature, a bill passed by the legislative assembly is sent directly to the governor for his/her assent.

Bill in the Second House: In the second House also, the bill passes through all the three stages, that is, first reading, second reading and third reading.

Council's four options: When a bill is passed by the legislative assembly and transmitted to the legislative council, the latter has four alternatives before it:

1. it may pass the bill as sent by the assembly (i.e., without amendments);
2. it may pass the bill with amendments and return it to the assembly for reconsideration;
3. it may reject the bill altogether; and
4. it may not take any action and thus keep the bill pending.

Assembly overrides council – 3 + 1 months: If the council passes the bill without amendments or the assembly accepts the amendments suggested by the council, the bill is deemed to have been passed by both the Houses and the same is sent to the the governor for his/her assent. On the other hand, if the assembly rejects the amendments suggested by the council or the council rejects the bill altogether or the council does not take any action for three months, then the assembly may pass the bill again and transmit the same to the council. If the council rejects the bill again or passes the bill with amendments not acceptable to the assembly or does not pass the bill within one month, then the bill is deemed to have been passed by both the Houses in the form in which it was passed by the assembly for the second time.



Council only a delaying chamber: Therefore, the ultimate power of passing an ordinary bill is vested in the assembly. At the most, the council can detain or delay the bill for a period of four months—three months in the first instance and one month in the second instance. The Constitution does not provide for the mechanism of joint sitting of both the Houses to resolve the disagreement between the two Houses over a bill. On the other hand, there is a provision for joint sitting of the Lok Sabha and the Rajya Sabha to resolve a disagreement between the two over an ordinary bill. Moreover, when a bill, which has originated in the council and was sent to the assembly, is rejected by the assembly, the bill ends and becomes dead.

Council weaker than Rajya Sabha: Thus, the council has been given much lesser significance, position and authority than that of the Rajya Sabha at the Centre.

Assent of the Governor

Governor's four options: Every bill, after it is passed by the assembly or by both the Houses in case of a bicameral legislature, is presented to the governor for his/her assent. There are four alternatives before the governor:

1. he/she may give his/her assent to the bill;
2. he/she may withhold his/her assent to the bill;
3. he/she may return the bill for reconsideration of the House or Houses; and
4. he/she may reserve the bill for the consideration of the President.



Suspensive veto: If the governor gives his/her assent to the bill, the bill becomes an Act and is placed on the Statute Book. If the governor withholds his/her assent to the bill, the bill ends and does not become an Act. If the governor returns the bill for reconsideration and if the bill is passed by the House or both the Houses again, with or without amendments, and presented to the governor for his/her assent, the governor must give his/her assent to the bill. Thus, the governor enjoys only a suspensive veto. The position is same at the Central level also.

Assent of the President

President on reserved bills – six months: When a bill is reserved by the governor for the consideration of the President, the President may either give his/her assent to the bill or withhold his/her assent to the bill or return the bill for reconsideration of the House or Houses of the state legislature. When a bill is so returned, the House or Houses have to reconsider it within a period of six months. The bill is presented again to the presidential assent after it is passed by the House or Houses with or without amendments. It is not mentioned in the Constitution whether it is obligatory on the part of the president to give his/her assent to such a bill or not.

Money Bills and Bills Reserved for President

Money Bills

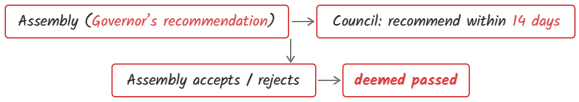
Special procedure: The Constitution lays down a special procedure for the passing of Money Bills in the state legislature. This is as follows:

Assembly only – Governor's recommendation: A Money Bill cannot be introduced in the legislative council. It can be introduced in the legislative assembly only and that too on the recommendation of the governor. Every such bill is considered to be a government bill and can be introduced only by a minister.

Council – 14 days, recommendations only: After a Money Bill is passed by the legislative assembly, it is transmitted to the legislative council for its consideration. The legislative council has restricted powers with regard to a Money Bill. It cannot reject or amend a Money Bill. It can only make recommendations and must return the bill to the legislative assembly within 14 days. The legislative assembly can either accept or reject all or any of the recommendations of the legislative council.

Deemed passed: If the legislative assembly accepts any recommendation, the bill is then deemed to have been passed by both the Houses in the modified form. If the legislative assembly does not accept any recommendation, the bill is then deemed to have been passed by both the Houses in the form originally passed by the legislative assembly without any change.

Delay of 14 days only: If the legislative council does not return the bill to the legislative assembly within 14 days, the bill is deemed to have been passed by both Houses at the expiry of the said period in the form originally passed by the legislative assembly. Thus, the legislative assembly has more powers than legislative council with regard to a money bill. At the most, the legislative council can detain or delay a money bill for a period of 14 days.



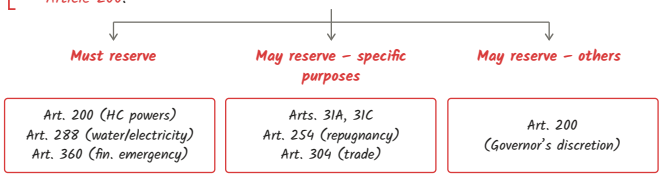
Governor cannot return money bill: Finally, when a Money Bill is presented to the governor, he/she may either give his/her assent, withhold his/her assent or reserve the bill for presidential assent but cannot return the bill for reconsideration of the state legislature. Normally, the governor gives his/her assent to a money bill as it is introduced in the state legislature with his/her prior permission.

President cannot return money bill: When a money bill is reserved for consideration of the President, the President may either give his/her assent to the bill or withhold his/her assent to the bill but cannot return the bill for reconsideration of the state legislature.

BILLS RESERVED FOR PRESIDENT'S CONSIDERATION

Sarkaria – three categories: The Sarkaria Commission on Centre-State Relations (1983–88) classified the State Bills reserved for President's consideration under the Constitution in the following three categories:

1. **Bills which must be reserved for President's consideration:** In this category, come Bills— 1. which so derogate from the powers of the High Court, as to endanger the position which that Court is under the Constitution designed to fill (Article 200); 2. which relate to imposition of taxes on water or electricity in certain cases, and attract the provisions of Article 288; and 3. which fall within Article 360, during a financial emergency.
2. **Bills which may be reserved for President's consideration and assent for specific purposes:** In this category, the following Bills come— 1. To secure immunity from operation of Articles 14 and 19. These are Bills for— 1. acquisition of estates, etc. (Article 31A); 2. giving effect to certain Directive Principles of State Policy (Article 31C). 2. A Bill relating to a subject enumerated in the Concurrent List, to ensure operation of its provisions despite their repugnancy to a Union law or an existing law, by securing President's assent in terms of Article 254. 3. A bill imposing restrictions on trade and commerce requiring prior Presidential sanction which was not obtained under Article 304.
3. **Residuary category:** Bills which may not specifically fall under any of the above categories, yet may be reserved by the Governor for President's consideration under Article 200.



Legislative Procedure Compared

LEGISLATIVE PROCEDURE COMPARED

Parliament vs State Legislature: A comparison of the legislature procedure in the Parliament and State Legislature is given in Table 33.1.

Table 33.1 Comparing Legislative Procedure in the Parliament and State Legislature

Parliament	State Legislature
A. With Regard to Ordinary Bills	
1. It can be introduced in either House of the Parliament.	1. It can be introduced in either House of the state legislature.
2. It can be introduced either by a minister or by a private member.	2. It can be introduced either by a minister or by private member.
3. It passes through first reading, second reading and third reading in the originating House.	3. It passes through first reading, second reading and third reading in the originating House.
4. It is deemed to have been passed by the Parliament only when both the Houses have agreed to it, either with or without amendments.	4. It is deemed to have been passed by the state legislature only when both the Houses have agreed to it, either with or without amendments.
5. A deadlock between the two Houses takes place when the second House, after receiving a bill passed by the first House, rejects the bill or proposes amendments that are not acceptable to the first House or does not pass the bill within six months.	5. A deadlock between the two Houses takes place when the legislative council, after receiving a bill passed by the legislative assembly, rejects the bill or proposes amendments that are not acceptable to the legislative assembly or does not pass the bill within three months.
6. The Constitution provides for the mechanism of joint sitting of two Houses of the Parliament to resolve a deadlock between them over the passage of a bill.	6. The Constitution does not provide for the mechanism of joint sitting of two Houses of the state legislature to resolve a deadlock between them over the passage of a bill.
7. The Lok Sabha cannot override the Rajya Sabha by passing the bill for the second time and vice versa. A joint sitting is the only way to resolve a deadlock between the two Houses.	7. The legislative assembly can override the legislative council by passing the bill for the second time and not vice versa. When a bill is passed by the assembly for the second time and transmitted to the legislative council, if the legislative council rejects the bill again, or proposes amendments that are not acceptable to the legislative assembly, or does not pass the bill within one month, then the bill is deemed to have been passed by both the Houses in the form in which it was passed by the legislative assembly for the second time.
8. The mechanism of joint sitting for resolving a deadlock applies to a bill whether originating in the Lok Sabha or the Rajya Sabha. If a joint sitting is not summoned by the president, the bill ends and becomes dead.	8. The mechanism of passing the bill for the second time to resolve a deadlock applies to a bill originating in the legislative assembly only. When a bill, which has originated in the legislative council and sent to the legislative assembly, is rejected by the latter, the bill ends and becomes dead.
B. With Regard to Money Bills	
1. It can be introduced only in the Lok Sabha and not in the Rajya Sabha.	1. It can be introduced only in the legislative assembly and not in the legislative council.
2. It can be introduced only on the recommendation of the president.	2. It can be introduced only on the recommendation of the governor.
3. It can be introduced only by a minister and not by a private member.	3. It can be introduced only by a minister and not by a private member.
4. It cannot be rejected or amended by the Rajya Sabha. It should be returned to the Lok Sabha within 14 days, either with or without recommendations.	4. It cannot be rejected or amended by the legislative council. It should be returned to the legislative assembly within 14 days, either with or without amendments.
5. The Lok Sabha can either accept or reject all or any of the recommendations of the Rajya Sabha.	5. The legislative assembly can either accept or reject all or any of the recommendations of the legislative council.
6. If the Lok Sabha accepts any recommendation, the bill is then deemed to have been passed by both the Houses in the modified form.	6. If the legislative assembly accepts any recommendation, the bill is then deemed to have been passed by both the Houses in the modified form.
7. If the Lok Sabha does not accept any recommendation, the bill is then deemed to have been passed by both the Houses in the form originally passed by the Lok Sabha without any change.	7. If the legislative assembly does not accept any recommendation, the bill is then deemed to have been passed by both the Houses in the form originally passed by the legislative assembly without any change.
8. If the Rajya Sabha does not return the bill to the Lok Sabha within 14 days, the bill is deemed to have been passed by both the Houses at the expiration of the said period in the form originally passed by the Lok Sabha.	8. If the legislative council does not return the bill to the legislative assembly within 14 days, the bill is deemed to have been passed by both the Houses at the expiration of the said period in the form originally passed by the legislative assembly.
9. The Constitution does not provide for the resolution of any deadlock between the two Houses. This is because, the will of the Lok Sabha is made to prevail over that of the Rajya Sabha, if the latter does not agree to the bill passed by the former.	9. The Constitution does not provide for the resolution of any deadlock between the two Houses. This is because, the will of the legislative assembly is made to prevail over that of legislative council, if the latter does not agree to the bill passed by the former.

Position of Legislative Council

POSITION OF LEGISLATIVE COUNCIL

Two angles: The constitutional position of the council (as compared with the assembly) can be studied from two angles:

A. Spheres where council is equal to assembly.
B. Spheres where council is unequal to assembly.

Equal with Assembly

Spheres of equality: In the following matters, the powers and status of the council are broadly equal to that of the assembly:

1. **Ordinary bills:** Introduction and passage of ordinary bills. However, in case of disagreement between the two Houses, the will of the assembly prevails over that of the council.
2. **Ordinances:** Approval of ordinances issued by the governor.
3. **Selection of ministers:** Selection of ministers including the chief minister. Under the Constitution the, ministers including the chief minister can be members of either House of the state legislature. However, irrespective of their membership, they are responsible only to the assembly.
4. **Reports of constitutional bodies:** Consideration of the reports of the constitutional bodies like State Finance Commission, state public service commission and Comptroller and Auditor General of India.
5. **SPSC jurisdiction:** Enlargement of the jurisdiction of the state public service commission.

Unequal with Assembly

Spheres of inequality: In the following matters, the powers and status of the council are unequal to that of the assembly:

1. **Money Bill – assembly only:** A Money Bill can be introduced only in the assembly and not in the council.
2. **No rejection of money bill:** The council cannot amend or reject a money bill. It should return the bill to the assembly within 14 days, either with recommendations or without recommendations.
3. **Assembly decides recommendations:** The assembly can either accept or reject all or any of the recommendation of the council. In both the cases, the money bill is deemed to have been passed by the two Houses.
4. **Speaker certifies money bill:** The final power to decide whether a particular bill is a money bill or not is vested in the Speaker of the assembly.
5. **Dilatory chamber:** The final power of passing an ordinary bill also lies with the assembly. At the most, the council can detain or delay the bill for the period of four months—three months in the first instance and one month in the second instance. In other words, the council is not even a revising body like the Rajya Sabha; it is only a dilatory chamber or an advisory body.
6. **Budget – no vote on grants:** The council can only discuss the budget but cannot vote on the demands for grants (which is the exclusive privilege of the assembly).
7. **No no-confidence motion:** The council cannot remove the council of ministers by passing a no-confidence motion. This is because, the council of ministers is collectively responsible only to the assembly. But, the council can discus and criticise the policies and activities of the Government.
8. **Council bills can die:** When an ordinary bill, which has originated in the council and was sent to the assembly, is rejected by the assembly, the bill ends and becomes dead.
9. **No role in Presidential / RS elections:** The council does not participate in the election of the president of India and representatives of the state in the Rajya Sabha.
10. **Constitutional amendments:** The council has no effective say in the ratification of a constitutional amendment bill. In this respect also, the will of the assembly prevails over that of the council[9].
11. **Existence depends on assembly:** Finally, the very existence of the council depends on the will of the assembly. The council can be abolished by the Parliament on the recommendation of the assembly.

Subordinate to assembly: From the above, it is clear that the position of the council vis-a-vis the assembly is much weaker than the position of the Rajya Sabha vis-a-vis the Lok Sabha. The Rajya Sabha has equal powers with the Lok Sabha in all spheres except financial matters and with regard to the control over the Government. On the other hand, the council is subordinate to the assembly in all respects. Thus, the predominance of the assembly over the council is fully established.

Rajya Sabha vs Lok Sabha	Council vs Assembly
↓	↓
equal except finance and control over Govt	subordinate in all respects

9 The position, in this regard, is very well analysed by J.C. Johari in the following way: 'The Constitution is not clear on this point whether a bill of constitutional amendment referred to the states for ratification by their legislatures shall include the Vidhan Parishad or not. In practice, it may be understood that the will of the Vidhan Sabha has to prevail. In case the Vidhan Parishad concurs with the view of the Vidhan Sabha, it is all right; in case it differs, the Vidhan Sabha may pass it again and thereby ignore the will of the Vidhan Parishad as it can do in case of a non-money bill'. (Indian Government and Politics, Vishal, Thirteenth Edition, 2001, p. 491).

Council vs Rajya Sabha – Reasons, Criticism and Utility

Why council is weaker than Rajya Sabha: Even though both the council and the Rajya Sabha are second chambers, the Constitution has given the council much lesser importance than the Rajya Sabha due to the following reasons:

1. **Federal character:** The Rajya Sabha consists of the representatives of the states and thus reflect the federal element of the polity. It maintains the federal equilibrium by protecting the interests of the states against the undue interference of the Centre. Therefore, it has to be an effective revising body and not just an advisory body or dilatory body like that of the council. On the other hand, the issue of federal significance does not arise in the case of a council.
2. **Heterogeneous composition:** The council is heterogeneously constituted. It represents different interests and consists of differently elected members and also include some nominated members. Its very composition makes its position weak and reduces its utility as an effective revising body. On the other hand, the Rajya Sabha is homogeneously constituted. It represents the states and union territories and consists of mainly elected members (only 12 out of 250 are nominated).
3. **Democratic principle – British model:** The position accorded to the council is in accordance with the principles of democracy. The council should yield to the assembly, which is a popular house. This pattern of relationship between the two Houses of the state legislature is adopted from the British model. In Britain, the House of Lords (Upper House) cannot oppose and obstruct the House of Commons (Lower House). The House of Lords is only a dilatory chamber—it can delay an ordinary bill for a maximum period of one year and a money bill for one month.



Criticism – 'white elephant': Keeping in view its weak, powerless and insignificant position and role, the critics have described the council as a 'secondary chamber', 'costly ornamental luxury', 'white elephant', etc. The critics have opined that the council has served as a refuge for those who are defeated in the assembly elections. It enabled the unpopular, rejected and ambitious politicians to occupy the post of a chief minister or a minister or a member of the state legislature.

'secondary chamber'	'costly ornamental luxury'	'white elephant'	refuge of defeated

Utility of council: Even though the council has been given less powers as compared with the assembly, its utility is supported on the following grounds:

1. **Check on hasty legislation:** It checks the hasty, defective, careless and ill-considered legislation made by the assembly by making provision for revision and thought.
2. **Representation of experts:** It facilitates representation of eminent professionals and experts who cannot face direct elections. The governor nominates one-sixth members of the council to provide representation to such people.

Privileges of State Legislature

PRIVILEGES OF STATE LEGISLATURE

Meaning of privileges: Privileges of a state legislature are a sum of special rights, immunities and exemptions enjoyed by the Houses of state legislature, their committees and their members. They are necessary in order to secure the independence and effectiveness of their actions. Without these privileges, the Houses can neither maintain their authority, dignity and honour nor can protect their members from any obstruction in the discharge of their legislative responsibilities.

Extended to AG and ministers: The Constitution has also extended the privileges of the state legislature to those persons who are entitled to speak and take part in the proceedings of a House of the state legislature or any of its committees. These include advocate-general of the state and state ministers.

Not to Governor: It must be clarified here that the privileges of the state legislature do not extend to the governor who is also an integral part of the state legislature.

Two categories: The privileges of a state legislature can be classified into two broad categories—those that are enjoyed by each House of the state legislature collectively, and those that are enjoyed by the members individually.



Collective Privileges

House privileges: The privileges belonging to each House of the state legislature collectively are:

1. **Publication:** It has the right to publish its reports, debates and proceedings and also the right to prohibit others from publishing the same[10].
2. **Secret sittings:** It can exclude strangers from its proceedings and hold secret sittings to discuss some important matters.
3. **Own procedure:** It can make rules to regulate its own procedure and the conduct of its business and to adjudicate upon such matters.
4. **Punish for contempt:** It can punish members as well as outsiders for breach of its privileges or its contempt by reprimand, admonition or imprisonment (also suspension or expulsion, in case of members).
5. **Information on arrest:** It has the right to receive immediate information of the arrest, detention, conviction, imprisonment and release of a member.
6. **Inquiries:** It can institute inquiries and order the attendance of witnesses and send for relevant papers and records.
7. **No court inquiry:** The courts are prohibited to inquire into the proceedings of a House or its Committees.
8. **No arrest in precincts:** No person (either a member or outsider) can be arrested, and no legal process (civil or criminal) can be served within the precincts of the House without the permission of the presiding officer.

Individual Privileges

Members' privileges: The privileges belonging to the members individually are:

1. **Freedom from arrest – civil cases:** They cannot be arrested during the session of the state legislature and 40 days before the beginning and 40 days after the end of such session. This privilege is available only in civil cases and not in criminal cases or preventive detention cases.
2. **Freedom of speech:** They have freedom of speech in the state legislature. No member is liable to any proceedings in any court for anything said or any vote given by him/her in the state legislature or its committees. This freedom is subject to the provisions of the Constitution and to the rules and standing orders regulating the procedure of the state legislature[11].
3. **Jury & witness exemption:** They are exempted from jury service. They can refuse to give evidence and appear as a witness in a case pending in a court when the state legislature is in session.

10 The 44th Amendment Act of 1978 restored the freedom of the press to publish true reports of state legislature without its prior permission. But, this is not applicable in the case of a secret sitting of the House.

11 Article 211 of the Constitution says that no discussion shall take place in the legislature of a state with respect to the conduct of any judge of the Supreme Court or of a high court in the discharge of his/her duties. Under the rules of a House(s) of the state legislature, use of unparliamentary language or unparliamentary conduct of a member is prohibited.

12 The Andhra Pradesh Reorganisation (Amendment) Act, 2015, increased the number of seats in the Legislative Council of Andhra Pradesh from 50 to 58.

13 Under the Jammu and Kashmir Reorganisation Act, 2019, the total number of seats fixed for the Legislative Assembly of the Union territory of Jammu and Kashmir is 107. But, 24 seats fall in the Pakistan-occupied-Kashmir (PoK). These seats are vacant and are not to be taken into account for reckoning the total membership of the Assembly.

Please check the tables of this chapter once. If a table looks important, study it directly from Laxmikanth, or take a screenshot of it and add it to this page as needed.

CHAPTER 39 Panchayati Raj

Rural local self-government: The term Panchayati Raj in India signifies the system of rural local self-government. It has been established in all the states of India by the Acts of the state legislatures to build democracy at the grass root level. It is entrusted with rural development. It was constitutionalised through the 73rd Constitutional Amendment Act of 1992.

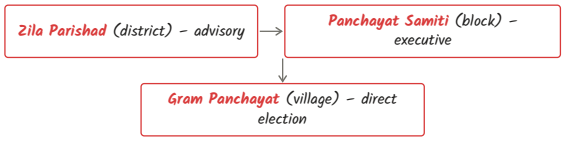
Local government – State List (Entry 5): In the scheme of division of powers between the Centre and the states in the Indian federal system, the item of 'local Government' is given to the states. Thus, the fifth entry of the State List of the Seventh Schedule to the Constitution of India deals with 'local government'.

Evolution of Panchayati Raj

Balwantrai Mehta Committee

Democratic decentralisation (1957): In January 1957, the Government of India appointed a committee to examine the working of the Community Development Programme (1952) and the National Extension Service (1953) and to suggest measures for their better working. The chairman of this committee was Balwantrai G Mehta. The committee submitted its report in November 1957 and recommended the establishment of the scheme of 'democratic decentralisation', which ultimately came to be known as Panchayati Raj. The specific recommendations made by it are:

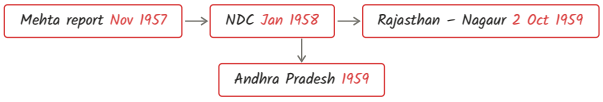
1. **Three-tier system:** Establishment of a three-tier panchayati raj system—gram panchayat at the village level, panchayat samiti at the block level and zila parishad at the district level. These tiers should be organically linked through a device of indirect elections.
2. **Direct + indirect elections:** The village panchayat should be constituted with directly elected representatives, whereas the panchayat samiti and zila parishad should be constituted with indirectly elected members.
3. **Planning & development:** All planning and development activities should be entrusted to these bodies.
4. **Samiti executive, parishad advisory:** The panchayat samiti should be the executive body while the zila parishad should be the advisory, coordinating and supervisory body.
5. **Collector as chairman:** The district collector should be the chairman of the zila parishad.
6. **Genuine transfer of power:** There should be a genuine transfer of power and responsibility to these democratic bodies.
7. **Adequate resources:** Adequate resources should be transferred to these bodies to enable them to discharge their functions and fulfil their responsibilities.
8. **Further devolution:** A system should be evolved to effect further devolution of authority in future.



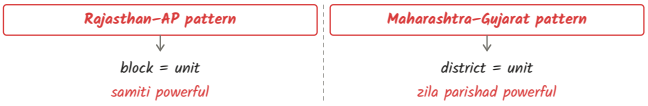
Adoption of Panchayati Raj and Study Teams

NDC acceptance (1958): These recommendations of the committee were accepted by the National Development Council in January 1958. The council did not insist on a single rigid pattern and left it to the states to evolve their own patterns suitable to local conditions. But the basic principles and broad fundamentals should be identical throughout the country.

Rajasthan first (1959): Rajasthan was the first state to establish Panchayati Raj. The scheme was inaugurated by the prime minister on October 2, 1959, in Nagaur district. Rajasthan was followed by Andhra Pradesh, which also adopted the system in 1959. Thereafter, most of the states adopted the system.



Variations among states: Though most of the states created Panchayati Raj institutions by the mid 1960s, there were differences from one state to another with regard to the number of tiers, relative position of samiti and parishad, their tenure, composition, functions, finances and so on. For example, Rajasthan adopted the three-tier system while Tamil Nadu adopted the two-tier system. West Bengal, on the other hand, adopted the four-tier system. Further, in the Rajasthan–Andhra Pradesh pattern, panchayat samiti was powerful as the block was the unit of planning and development, while in Maharashtra–Gujarat pattern, zila parishad was powerful as the district was the unit of planning and development. Some states also established nyaya panchayats, that is, judicial panchayats to try petty civil and criminal cases.



Study Teams and Committees

Study teams since 1960: Since 1960, many study teams, committees and working groups have been appointed to examine the various aspects of functioning of Panchayati Raj system. They are mentioned in Table 39.1.

Table 39.1 Study Teams and Committees on Panchayati Raj

Sl. No.	Year	Name of the study Team / Committee	Chairman
1.	1960	Committee on Rationalisation of Panchayat Statistics	V.R. Rao
2.	1961	Working Group on Panchayats and Cooperatives	S.D. Mishra
3.	1961	Study Team on Panchayati Raj Administration	V. Iswaran
4.	1962	Study Team on Nyaya Panchayats	G.R. Rajgopal
5.	1963	Study Team on the Position of Gram Sabha in Panchayati Raj Movement	R.R. Diwakar
6.	1963	Study Group on Budgeting and Accounting Procedure of Panchayati Raj Institutions	M. Rama Krishnayya
7.	1963	Study Team on Panchayati Raj Finances	K. Santhanam
8.	1965	Committee on Panchayati Raj Elections	K. Santhanam
9.	1965	Study Team on the Audit and Accounts of Panchayati Raj Bodies	R.K. Khanna
10.	1966	Committee on Panchayati Raj Training Centres	G. Ramachandran
11.	1969	Study Team on Involvement of Community Development Agency and Panchayati Raj Institutions in the Implementation of Basic Land Reform Measures	V. Ramanathan
12.	1972	Working Group for Formulation of Fifth Five Year Plan on Community Development and Panchayati Raj	N. Ramakrishnayya
13.	1976	Committee on Community Development and Panchayati Raj	Smt. Daya Choubey

Ashok Mehta Committee

Ashok Mehta Committee

Janata Government (1977): In December 1977, the Janata Government appointed a committee on panchayati raj institutions under the chairmanship of Ashok Mehta. It submitted its report in August 1978 and made 132 recommendations to revive and strengthen the declining panchayati raj system in the country. Its main recommendations were:

1. **Two-tier system:** The three-tier system of panchayati raj should be replaced by the two-tier system, that is, zila parishad at the district level, and below it, the mandal panchayat consisting of a group of villages with a total population of 15,000 to 20,000.
2. **District as first point:** A district should be the first point for decentralisation under popular supervision below the state level.
3. **Zila parishad executive:** Zila parishad should be the executive body and made responsible for planning at the district level.
4. **Political parties:** There should be an official participation of political parties at all levels of panchayat elections.
5. **Compulsory taxation:** The panchayati raj institutions should have compulsory powers of taxation to mobilise their own financial resources.
6. **Social audit:** There should be a regular social audit by a district level agency and by a committee of legislators to check whether the funds allotted for the vulnerable social and economic groups are actually spent on them.
7. **No supersession – elections in 6 months:** The state government should not supersede the panchayati raj institutions. In case of an imperative supersession, elections should be held within six months from the date of supersession.
8. **Separate nyaya panchayats:** The nyaya panchayats should be kept as separate bodies from that of development panchayats. They should be presided over by a qualified judge.
9. **Elections by CEO:** The chief electoral officer of a state in consultation with the chief election commissioner should organise and conduct the panchayati raj elections.
10. **Development to zila parishad:** Development functions should be transferred to the zila parishad and all development staff should work under its control and supervision.
11. **Voluntary agencies:** The voluntary agencies should play an important role in mobilising the support of the people for panchayati raj.
12. **Minister for PR:** A minister for panchayati raj should be appointed in the state council of ministers to look after the affairs of the panchayati raj institutions.
13. **SC/ST reservation:** Seats for SCs and STs should be reserved on the basis of their population.
14. **Constitutional recognition:** A constitutional recognition should be accorded to the Panchayati Raj institutions. This would give them the requisite status (sanctity and stature) and an assurance of continuous functioning.



No action at Centre – 3 states acted: Due to the collapse of the Janata Government before the completion of its term, no action could be taken on the recommendations of the Ashok Mehta Committee at the central level. However, the three states of Karnataka, West Bengal and Andhra Pradesh took steps to revitalise the panchayati raj, keeping in view some of the recommendations of the Ashok Mehta Committee.

Balwantrai Mehta (1957)	Ashok Mehta (1978)
three-tier	two-tier
samiti executive	ZP executive
collector chairs ZP	party participation, constitutional status

G.V.K. Rao Committee

G.V.K. Rao Committee

'Grass without roots' (1985): The Committee to review the existing Administrative Arrangements for Rural Development and Poverty Alleviation Programmes under the chairmanship of G.V.K. Rao was appointed by the erstwhile Planning Commission in 1985. The Committee came to the conclusion that the developmental process was gradually bureaucratised and divorced from the Panchayati Raj. This phenomena of bureaucratisation of development administration as against the democratisation weakened the Panchayati Raj institutions resulting in what is aptly called as 'grass without roots'. Hence, the Committee made the following recommendations to strengthen and revitalise the Panchayati Raj system:

(i) **Zila Parishad pivotal:** The district level body, that is, the Zila Parishad should be of pivotal importance in the scheme of democratic decentralisation. It stated that "the district is the proper unit for planning and development and the Zila Parishad should become the principal body for management of all development programmes which can be handled at that level."

(ii) **Role in rural development:** The Panchayati Raj institutions at the district and lower levels should be assigned an important role with respect to planning, implementation and monitoring of rural development programmes.

(iii) **District planning:** Some of the planning functions at the state level should be transferred to the district level planning units for effective decentralized district planning.

(iv) **District Development Commissioner:** A post of District Development Commissioner should be created. He/she should act as the chief executive officer of the Zila Parishad and should be in charge of all the development departments at the district level.

(v) **Regular elections:** Elections to the Panchayati Raj institutions should be held regularly. It found that elections became overdue for one or more tiers in 11 states.

GVK Rao vs Dantwala & Hanumantha Rao: Thus the committee, in its scheme of decentralised system of field administration, assigned a leading role to the Panchayati Raj in local planning and development. It is in this respect that the recommendations of the G.V.K. Rao Committee Report (1986) differed from those of the Dantwala Committee Report on Block-Level Planning (1978) and the Hanumantha Rao Committee Report on District Planning (1984). Both the committees have suggested that the basic decentralised planning function should be done at the district level. The Hanumantha Rao Committee advocated separate district planning bodies under either the District Collector or a minister. In both the models, the Collector should play a significant role in the decentralised planning though the Committee stated that Panchayati Raj institutions would also be associated with this process (of decentralised planning). The committee recommended that the Collector should be the coordinator, at the district level, of all developmental and planning activities. Thus, the Hanumantha Rao Committee differed in this respect from those of the Balwantrai Mehta Committee, the First Administrative Reforms Commission of India, the Ashok Mehta Committee and finally the G.V.K. Rao Committee which recommended reduction in the developmental role of the District Collector and which assigned a major role to the Panchayati Raj in development administration.

Hanumantha Rao (1984)	Mehta, ARC, Ashok Mehta, GVK Rao
separate district planning body	reduce Collector's role
Collector as coordinator	PRIs lead development

L.M. Singhvi and Thungon Committees

L M Singhvi Committee

Singhvi Committee (1986): In 1986, Rajiv Gandhi government appointed a committee to prepare a concept paper on 'Revitalisation of Panchayati Raj Institutions for Democracy and Development' under the chairmanship of L.M. Singhvi. It made the following recommendations.

(i) **Constitutional recognition – new chapter:** The Panchayati Raj institutions should be constitutionally recognised, protected and preserved. For this purpose, a new chapter should be added in the Constitution of India. This will make their identity and integrity reasonably and substantially inviolate. It also suggested constitutional provisions to ensure regular, free and fair elections to the Panchayati Raj bodies.

(ii) **Nyaya panchayats:** Nyaya Panchayats should be established for a cluster of villages.

(iii) **Gram Sabha – direct democracy:** The villages should be reorganised to make Gram Panchayats more viable. It also emphasised the importance of the Gram Sabha and called it as the embodiment of direct democracy.

(iv) **More finances:** The Village Panchayats should have more financial resources.

(v) **Judicial tribunals:** The judicial tribunals should be established in each state to adjudicate controversies about election to the Panchayati Raj institutions, their dissolution and other matters related to their functioning.

Thungon Committee

Thungon Committee (1988): In 1988, a sub-committee of the Consultative Committee of Parliament was constituted under the chairmanship of P.K. Thungon to examine the political and administrative structure in the district for the purpose of district planning. This committee suggested for the strengthening of the Panchayati Raj system. It made the following recommendations:

1. **Constitutional recognition:** The Panchayati Raj bodies should be constitutionally recognized.
2. **Three-tier:** A three-tier system of Panchayati Raj with panchayats at the village, block and district levels.
3. **Zilla Parishad as pivot:** Zilla Parishad should be the pivot of the Panchayati Raj system. It should act as the planning and development agency in the district.
4. **Five-year tenure:** The Panchayati Raj bodies should have a fixed tenure of five years.
5. **Supersession – 6 months:** The maximum period of super session of a body should be six months.
6. **State planning committee:** A planning and co-ordination committee should be set-up at the state level under the chairmanship of the minister for planning. The presidents of Zilla Parishads should be its members.
7. **List of subjects:** A detailed list of subjects for Panchayati Raj should be prepared and incorporated in the Constitution.
8. **Reservation incl. women:** Reservation of seats in all the three-tiers should be on the basis of population. There should also be reservation for women.
9. **State Finance Commission:** A state finance commission should be set-up in each state. It would lay down the criteria and guidelines for the devolution of finances to the Panchayati Raj institutions.
10. **Collector as CEO:** The district collector should be the chief executive officer of the Zilla Parishad.

Gadgil Committee and Constitutionalisation

Gadgil Committee

Gadgil Committee (1988): The Committee on Policy and Programmes was constituted in 1988 by the Congress party under the chairmanship of V.N. Gadgil. This committee was asked to consider the question of "how best Panchayati Raj institutions could be made effective". In this context, the committee made the following recommendations:

1. **Constitutional status:** A constitutional status should be bestowed on the Panchayati Raj institutions.
2. **Three-tier:** A three-tier system of Panchayati Raj with panchayats at the village, block and district levels.
3. **Five-year term:** The term of Panchayati Raj institutions should be fixed at five years.
4. **Direct elections:** The members of the Panchayats at all the three levels should be directly elected.
5. **Reservation:** Reservation for SCs, STs and women.
6. **Planning role – list of subjects:** The Panchayati Raj bodies should have the responsibility of preparation and implementation of plans for socio-economic development. For this purpose, a list of subjects should be specified in the constitution.
7. **Taxation powers:** The Panchayat Raj bodies should be empowered to levy, collect and appropriate taxes and duties.
8. **State Finance Commission:** Establishment of a State Finance Commission for the allocation of finances to the Panchayats.
9. **State Election Commission:** Establishment of a State Election Commission for the conduction of elections to the panchayats.

Basis of the amendment bill: The above recommendations of the Gadgil Committee became the basis for drafting an amendment bill aimed at conferring the constitutional status and protection to the Panchayati Raj institutions.

Constitutionalisation

Rajiv Gandhi Government: The Rajiv Gandhi Government introduced the 64th Constitutional Amendment Bill in the Lok Sabha in July 1989 to constitutionalise panchayati raj institutions and make them more powerful and broad based. Although, the Lok Sabha passed the bill in August 1989, it was not approved by the Rajya Sabha. The bill was vehemently opposed by the Opposition on the ground that it sought to strengthen centralisation in the federal system.

V.P. Singh Government: The National Front Government, soon after assuming office in November 1989 under the Prime Ministership of V.P. Singh, announced that it would take steps to strengthen the panchayati raj institutions. In June 1990, a two-day conference of the state chief ministers under the chairmanship of V.P. Singh was held to discuss the issues relating to the strengthening of the panchayati raj bodies. The conference approved the proposals for the introduction of a fresh constitutional amendment bill. Consequently, a constitutional amendment bill was introduced in the Lok Sabha in September 1990. However, the fall of the government resulted in the lapse of the bill.

Narasimha Rao Government: The Congress Government under the prime ministership of P.V. Narasimha Rao once again considered the matter of the constitutionalisation of panchayati raj bodies. It drastically modified the proposals in this regard to delete the controversial aspects and introduced a constitutional amendment bill in the Lok sabha in September, 1991. This bill finally emerged as the 73rd Constitutional Amendment Act, 1992 and came into force on 24 April, 1993[1].

64th Bill 1989 – failed in RS → V.P. Singh bill 1990 – lapsed
↓
Narasimha Rao bill 1991 → 73rd Amdt 1992 · in force 24 Apr 1993

[1] This bill was passed by the Lok Sabha on 22 December, 1992, and by the Rajya Sabha on 23 December, 1992. Later, it was approved by the 17 state assemblies and received the assent of the President on 20 April, 1993.

73rd Amendment Act – Significance

73rd Constitutional Amendment Act of 1992

Significance of the Act

Part IX & Eleventh Schedule: This act has added a new Part-IX to the Constitution of India. This part is entitled as 'The Panchayats' and consists of provisions from Articles 243 to 243-O. In addition, the act has also added a new Eleventh Schedule to the Constitution. This schedule contains 29 functional items of the panchayats. It deals with Article 243-G.

Part IX	Eleventh Schedule
'The Panchayats'	29 functional items
Arts. 243 – 243-O	Art. 243-G

Article 40 (DPSP) given shape: The act has given a practical shape to Article 40 of the Constitution which says that, "The State shall take steps to organise village panchayats and endow them with such powers and authority as may be necessary to enable them to function as units of self-government." This article forms a part of the Directive Principles of State Policy.

Justiciable constitutional status: The act gives a constitutional status to the panchayati raj institutions. It has brought them under the purview of the justiciable part of the Constitution. In other words, the state governments are under constitutional obligation to adopt the new panchayati raj system in accordance with the provisions of the act. Consequently, neither the formation of panchayats nor the holding of elections at regular intervals depend on the will of the state government any more.

Compulsory vs voluntary provisions: The provisions of the act can be grouped into two categories—compulsory and voluntary. The compulsory (mandatory or obligatory) provisions of the act have to be included in the state laws creating the new panchayati raj system. The voluntary provisions, on the other hand, may be included at the discretion of the states. Thus the voluntary provisions of the act ensures the right of the states to take local factors like geographical, politico-administrative and others, into consideration while adopting the new panchayati raj system.

Participatory democracy: The act is a significant landmark in the evolution of grassroot democratic institutions in the country. It transfers the representative democracy into participatory democracy. It is a revolutionary concept to build democracy at the grassroot level in the country.

representative democracy → participatory democracy

73rd Amendment Act – Salient Features I

Salient Features

Salient features: The salient features of the act are:

Gram Sabha: The act provides for a Gram Sabha as the foundation of the panchayati raj system. It is a body consisting of persons registered in the electoral rolls of a village comprised within the area of Panchayat at the village level. Thus, it is a village assembly consisting of all the registered voters in the area of a panchayat. It may exercise such powers and perform such functions at the village level as the legislature of a state determines.

Three-Tier System: The act provides for a three-tier system of panchayati raj in every state, that is, panchayats at the village, intermediate, and district levels [2]. Thus, the act brings about uniformity in the structure of panchayati raj throughout the country. However, a state having a population not exceeding 20 lakh may not constitute panchayats at the intermediate level.

District panchayat → Intermediate panchayat → Village panchayat
↓
Gram Sabha

Election of Members and Chairpersons: All the members of panchayats at the village, intermediate and district levels shall be elected directly by the people. Further, the chairperson of panchayats at the intermediate and district levels shall be elected indirectly—by and from amongst the elected members thereof. However, the chairperson of a panchayat at the village level shall be elected in such manner as the state legislature determines.

Right to vote: The chairperson of a panchayat and other members of a panchayat elected directly or indirectly shall have the right to vote in the meetings of the panchayats.

Reservation of Seats: The act provides for the reservation of seats for scheduled castes and scheduled tribes in every panchayat (i.e., at all the three levels) in proportion of their population to the total population in the panchayat area. Further, the state legislature shall provide for the reservation of offices of chairperson in the panchayat at the village or any other level for the SCs and STs.

One-third for women: The act provides for the reservation of not less than one-third of the total number of seats for women (including the number of seats reserved for women belonging the SCs and STs). Further, not less than one-third of the total number of offices of chairpersons in the panchayats at each level shall be reserved for women.

Backward classes – optional: The act also authorises the legislature of a state to make any provision for reservation of seats in any panchayat or offices of chairperson in the panchayat at any level in favour of backward classes.

SC/ST reservation till 2030: The reservation of seats as well as the reservation of offices of chairpersons in the panchayats for the scheduled castes and scheduled tribes shall cease to have effect after the expiration of the period specified in Article 334 (which is presently eighty years, that is, till 2030).

Arunachal – no SC reservation: It must be noted here that the above provision relating to the reservation of seats in panchayats (both members and chairpersons) for the scheduled castes is not applicable to the state of Arunachal Pradesh. This is because the state is inhabited fully by indigenous tribal people and there are no scheduled castes. This provision was added later by the 83rd Constitutional Amendment Act of 2000.

SC/ST	Women	Backward classes
by population	≥ 1/3 seats	optional (state)
till 2030	+ chairpersons	

[2] The Act defines all these terms in the following manner: (a) Panchayat means an institution (by whatever name called) of self-government for rural areas. (b) Village means a village specified by the governor by public notification to be a village for this purpose, and includes a group of villages so specified. (c) Intermediate level means a level between the village and district levels specified by the governor by public notification for this purpose. (d) District means a district in a state.

73rd Amendment Act – Salient Features II

Duration of Panchayats: The act provides for a five-year term of office to the panchayat at every level from the date of it's first meeting. However, it can be dissolved before the completion of its term. Further, fresh elections to constitute a panchayat shall be completed (a) before the expiry of its duration of five years; or (b) in case of dissolution, before the expiry of a period of six months from the date of its dissolution.

No election if < 6 months left: But, where the remainder of the period (for which the dissolved panchayat would have continued) is less than six months, it shall not be necessary to hold any election for constituting the new panchayat for such period.

Reconstituted – remainder only: Moreover, a panchayat constituted upon the dissolution of a panchayat before the expiration of its duration shall continue only for the remainder of the period for which the dissolved panchayat would have continued had it not been so dissolved. In other words, a panchayat reconstituted after premature dissolution does not enjoy the full period of five years but remains in office only for the remainder of the period.

5-year term → dissolved early → election within 6 months
↓
new body: remainder only

Disqualifications: A person shall be disqualified for being chosen as or for being a member of panchayat if he/she is so disqualified, (a) under any law for the time being in force for the purpose of elections to the legislature of the state concerned, or (b) under any law made by the state legislature. However, no person shall be disqualified on the ground that he/she is less than 25 years of age if he/she has attained the age of 21 years. Further, all questions of disqualifications shall be referred to such authority as the state legislature determines.

State Election Commission: The superintendence, direction and control of the preparation of electoral rolls and the conduct of all elections to the panchayats shall be vested in the state election commission. It consists of a state election commissioner to be appointed by the governor. His/her conditions of service and tenure of office shall also be determined by the governor. He/she shall not be removed from the office except in the manner and on the grounds prescribed for the removal of a judge of the state high court [3]. His/her conditions of service shall not be varied to his/her disadvantage after his/her appointment.

Election law by state: The state legislature may make provision with respect to all matters relating to elections to the panchayats.

Powers and Functions: The state legislature may endow the Panchayats with such powers and authority as may be necessary to enable them to function as institutions of self-government. Such a scheme may contain provisions for the devolution of powers and responsibilities upon Panchayats at the appropriate level with respect to (a) the preparation of plans for economic development and social justice and (b) the implementation of schemes for economic development and social justice as may be entrusted to them, including those in relation to the 29 matters listed in the Eleventh Schedule.

Finances: The state legislature may (a) authorise a panchayat to levy, collect and appropriate taxes, duties, tolls and fees; (b) assign to a panchayat taxes, duties, tolls and fees levied and collected by the state government; (c) provide for making grants-in-aid to the panchayats from the consolidated fund of the state; and (d) provide for constitution of funds for crediting all moneys of the panchayats.



Finance Commission: The governor of a state shall, after every five years, constitute a finance commission to review the financial position of the panchayats. It shall make the following recommendations to the Governor:

1. **Principles of devolution:** The principles that should govern: (a) The distribution between the state and the panchayats of the net proceeds of the taxes, duties, tolls and fees levied by the state and allocation of shares amongst the panchayats at all levels. (b) The determination of taxes, duties, tolls and fees that may be assigned to the panchayats. (c) The grants-in-aid to the panchayats from the consolidated fund of the state.
2. **Improve finances:** The measures needed to improve the financial position of the panchayats.
3. **Other matters:** Any other matter referred to it by the governor in the interests of sound finance of the panchayats.

Composition by state law: The state legislature may provide for the composition of the commission, the required qualifications of its members and the manner of their selection.

Action taken report: The governor shall place the recommendations of the commission along with the action taken report before the state legislature.

Central Finance Commission role: The Central Finance Commission shall also suggest the measures needed to augment the consolidated fund of a state to supplement the resources of the panchayats in the states (on the basis of the recommendations made by the finance commission of the state).

3 A judge of a high court can be removed from his/her office by the President on the recommendation of the Parliament. This means that a state election commissioner cannot be removed by the governor, though appointed by him/her.

73rd Amendment Act – Salient Features III and Eleventh Schedule

Audit of Accounts: The state legislature may make provisions with respect to the maintenance of accounts by the panchayats and the auditing of such accounts.

Application to Union Territories: The provisions of this Part are applicable to the Union territories. But, the President may direct that they would apply to a Union territory subject to such exceptions and modifications as he/she may specify.

Exempted States and Areas: The act does not apply to the states of Nagaland, Meghalaya and Mizoram and certain other areas. These areas include, (a) the scheduled areas and the tribal areas in the states[4]; (b) the hill areas of Manipur for which district councils exist; and (c) Darjeeling district of West Bengal for which Darjeeling Gorkha Hill Council exists.

States	Areas	Manipur	West Bengal
Nagaland, Meghalaya, Mizoram	scheduled & tribal areas	hill areas	Darjeeling

PESA extension: However, the Parliament may extend the provisions of this Part to the scheduled areas and tribal areas subject to such exceptions and modifications as it may specify. Under this provision, the Parliament has enacted the "Provisions of the Panchayats (Extension to the Scheduled Areas) Act", 1996, popularly known as the PESA Act or the Extension Act.

Continuance of Existing Laws and Panchayats: All the state laws relating to panchayats shall continue to be in force until the expiry of one year from the commencement of this act. In other words, the states have to adopt the new panchayati raj system based on this act within the maximum period of one year from 24 April, 1993, which was the date of the commencement of this act. However, all the panchayats existing immediately before the commencement of act shall continue till the expiry of their term, unless dissolved by the state legislature sooner.

State acts 1993–94: Consequently, majority of states passed the panchayati raj acts in 1993 and 1994 to adopt the new system in accordance with the 73rd Constitutional Amendment Act of 1992.

Bar to Interference by Courts in Electoral Matters: The act bars the interference by courts in the electoral matters of panchayats. It declares that the validity of any law relating to the delimitation of constituencies or the allotment of seats to such constituencies cannot be questioned in any court. It further lays down that no election to any panchayat is to be questioned except by an election petition presented to such authority and in such manner as provided by the state legislature.

Eleventh Schedule: It contains the following 29 functional items placed within the purview of panchayats:

1. Agriculture, including agricultural extension
2. Land improvement, implementation of land reforms, land consolidation and soil conservation
3. Minor irrigation, water management and watershed development
4. Animal husbandry, dairying and poultry
5. Fisheries
6. Social forestry and farm forestry
7. Minor forest produce
8. Small-scale industries, including food processing industries
9. Khadi, village and cottage industries
10. Rural housing
11. Drinking water
12. Fuel and fodder
13. Roads, culverts, bridges, ferries, waterways and other means of communication
14. Rural electrification, including distribution of electricity
15. Non-conventional energy sources
16. Poverty alleviation programme
17. Education, including primary and secondary schools
18. Technical training and vocational education
19. Adult and non-formal education
20. Libraries
21. Cultural activities
22. Markets and fairs
23. Health and sanitation including hospitals, primary health centres and dispensaries
24. Family welfare
25. Women and child development
26. Social welfare, including welfare of the handicapped and mentally retarded
27. Welfare of the weaker sections, and in particular, of the scheduled castes and the scheduled tribes
28. Public distribution system
29. Maintenance of community assets.

4 At present, ten states of India have scheduled areas. These are: Andhra Pradesh, Telangana, Jharkhand, Chhatisgarh, Gujarat, Himachal Pradesh, Madhya Pradesh, Maharashtra, Odisha and Rajasthan. Presently, there are a total of ten tribal areas (autonomous districts) in the four states of Assam (3), Meghalaya (3), Tripura (1) and Mizoram (3).

Compulsory and Voluntary Provisions

Compulsory and Voluntary Provisions

Mandatory vs discretionary features: Now, we will identify separately the compulsory (obligatory or mandatory) and voluntary (discretionary or optional) provisions (features) of the 73rd Constitutional Amendment Act (1992) or the Part IX of the Constitution:

A. Compulsory Provisions

1. Organisation of Gram Sabha in a village or group of villages.
2. Establishment of panchayats at the village, intermediate and district levels.
3. Direct elections to all seats in panchayats at the village, intermediate and district levels.
4. Indirect elections to the post of chairperson of panchayats at the intermediate and district levels.
5. Voting rights of the chairperson and other members of a panchayat elected directly or indirectly.
6. 21 years to be the minimum age for contesting elections to panchayats.
7. Reservation of seats (both members and chairpersons) for SCs and STs in panchayats at all the three levels.
8. Reservation of one-third seats (both members and chairpersons) for women in panchayats at all the three levels.
9. Fixing tenure of five years for panchayats at all levels and holding fresh elections within six months in the event of supersession of any panchayat.
10. Establishment of a State Election Commission for conducting elections to the panchayats.
11. Constitution of a State Finance Commission after every five years to review the financial position of the panchayats.

B. Voluntary Provisions

1. Endowing the Gram Sabha with powers and functions at the village level.
2. Determining the manner of election of the chairperson of the village panchayat.
3. Giving representation to the chairpersons of the village panchayats in the intermediate panchayats or in the case of a state not having intermediate panchayats, in the district panchayats.
4. Giving representation to the chairpersons of the intermediate panchayats in the district panchayats.
5. Giving representation to members of the Parliament (both the Houses) and the state legislature (both the Houses) in the panchayats at different levels falling within their constituencies.
6. Providing reservation of seats (both members and chairpersons) for backward classes in panchayats at any level.
7. Granting powers and authority to the panchayats to enable them to function as institutions of self-government (in brief, making them autonomous bodies).
8. Devolution of powers and responsibilities upon panchayats to prepare plans for economic development and social justice; and to perform some or all of the 29 functions listed in the Eleventh Schedule of the Constitution.
9. Granting financial powers to the panchayats, that is, authorizing them to levy, collect and appropriate taxes, duties, tolls and fees.
10. Assigning to a panchayat the taxes, duties, tolls and fees levied and collected by the state government.
11. Making the grants-in-aid to the panchayats from the consolidated fund of the state.
12. Providing for constitution of funds for crediting all moneys of the panchayats.

Compulsory	Voluntary
structure, elections	powers, functions, finances
reservation SC/ST/women	OBC reservation
tenure, SEC, SFC	MP/MLA representation

PESA Act of 1996 – Objectives

Pesa Act of 1996 (Extension Act)

Fifth Schedule areas: The provisions of Part IX of the constitution relating to the Panchayats are not applicable to the Fifth Schedule areas. However, the Parliament may extend these provisions to such areas, subject to such exceptions and modifications as it may specify. Under this provision, the Parliament has enacted the "Provisions of the Panchayats (Extension to the Scheduled Areas) Act", 1996, popularly known as the PESA Act or the Extension Act.

Ten Fifth Schedule states: At present, ten states have Fifth Schedule Areas. These are: Andhra Pradesh, Telangana, Chhatisgarh, Gujarat, Himachal Pradesh, Jharkhand, Madhya Pradesh, Maharashtra, Odisha and Rajasthan. All the ten states have enacted requisite compliance legislations by amending the respective Panchayati Raj Acts.

Objectives of the Act

Objectives: The objectives of the PESA Act are as follows[5]:

1. **Extend Part IX:** To extend the provisions of Part IX of the Constitution relating to the panchayats to the scheduled areas with certain modifications
2. **Tribal self-rule:** To provide self-rule for the bulk of the tribal population
3. **Gram sabha as nucleus:** To have village governance with participatory democracy and to make the gram sabha a nucleus of all activities
4. **Traditional framework:** To evolve a suitable administrative framework consistent with traditional practices
5. **Preserve customs:** To safeguard and to preserve the traditions and customs of tribal communities
6. **Tribal-specific powers:** To empower panchayats at the appropriate levels with specific powers conducive to tribal requirements
7. **No usurpation from above:** To prevent panchayats at the higher level from assuming the powers and authority of panchayats at the lower level of the gram sabha

5 S.K. Singh, Panchayats in Scheduled Areas, Kurukshetra, May 2001, p. 26.

PESA Act of 1996 – Features

Features of the Act

Features of PESA: The features (or the provisions) of the PESA Act are as follows:

1. **Customary law:** A state legislation on the Panchayats in the Scheduled Areas shall be in consonance with the customary law, social and religious practices and traditional management practices of community resources.
2. **Village as habitation:** A village shall ordinarily consist of a habitation or a group of habitations or a hamlet or a group of hamlets comprising a community and managing its affairs in accordance with traditions and customs.
3. **Gram Sabha in every village:** Every village shall have a Gram Sabha consisting of persons whose names are included in the electoral rolls for the Panchayat at the village level.
4. **Gram Sabha preserves culture:** Every Gram Sabha shall be competent to safeguard and preserve the traditions and customs of the people, their cultural identity, community resources and the customary mode of dispute resolution.
5. **Approves plans, identifies beneficiaries:** Every Gram Sabha shall— (i) approve of the plans, programmes and projects for social and economic development before they are taken up for implementation by the Panchayat at the village level; and (ii) be responsible for the identification of beneficiaries under the poverty alleviation and other programmes.
6. **Utilisation certificate:** Every Panchayat at the village level shall be required to obtain from the Gram Sabha a certification of utilisation of funds for the above plans, programmes and projects.
7. **ST reservation ≥ 1/2, all chairpersons:** The reservation of seats in the Scheduled Areas in every Panchayat shall be in proportion to the population of the communities for whom reservation is sought to be given under Part IX of the Constitution. However, the reservation for the Scheduled Tribes shall not be less than one-half of the total number of seats. Further, all seats of Chairpersons of Panchayats at all levels shall be reserved for the Scheduled Tribes.
8. **Nomination ≤ 1/10:** The state government may nominate such Scheduled Tribes which have no representation in the Panchayat at the intermediate level or the Panchayat at the district level. But such nomination shall not exceed one-tenth of the total members to be elected in that Panchayat.
9. **Consultation on land acquisition:** The Gram Sabha or the Panchayats at the appropriate level shall be consulted before making the acquisition of land in the Scheduled Areas for development projects and before resettling or rehabilitating persons affected by such projects in the Scheduled Areas. However, the actual planning and implementation of the projects in the Scheduled Areas shall be coordinated at the state level.
10. **Minor water bodies:** Planning and management of minor water bodies in the Scheduled Areas shall be entrusted to Panchayats at the appropriate level.
11. **Mining lease – recommendation mandatory:** The recommendations of the Gram Sabha or the Panchayats at the appropriate level shall be mandatory for grant of prospecting licence or mining lease for minor minerals in the Scheduled Areas.
12. **Auction of minor minerals:** The prior recommendation of the Gram Sabha or the Panchayats at the appropriate level shall be mandatory for grant of concession for the exploitation of minor minerals by auction.
13. **Specific powers to Gram Sabha:** While endowing Panchayats in the Scheduled Areas with such powers and authority as may be necessary to enable them to function as institutions of self-government, a State Legislature shall ensure that the Panchayats at the appropriate level and the Gram Sabha are endowed specifically with— (i) the power to enforce prohibition or to regulate or restrict the sale and consumption of any intoxicant (ii) the ownership of minor forest produce (iii) the power to prevent alienation of land in the Scheduled Areas and to take appropriate action to restore any unlawfully alienated land of a Scheduled Tribe (iv) the power to manage village markets (v) the power to exercise control over money lending to the Scheduled Tribes (vi) the power to exercise control over institutions and functionaries in all social sectors (vii) the power to control local plans and resources for such plans including tribal sub-plans
14. **No usurpation:** The State Legislations shall contain safeguards to ensure that Panchayats at the higher level do not assume the powers and authority of any Panchayat at the lower level or of the Gram Sabha.
15. **Sixth Schedule pattern:** The State Legislature shall endeavour to follow the pattern of the Sixth Schedule to the Constitution while designing the administrative arrangements in the Panchayats at district levels in the Scheduled Areas.
16. **Inconsistent laws lapse in one year:** Any provision of any law (relating to Panchayats in the Scheduled Areas) which is inconsistent with the provisions of this Act shall cease to be in force at the expiry of one year from the date on which this Act receives the assent of the President [6]. However, all the Panchayats existing immediately before such date shall continue till the expiry of their term, unless dissolved by the State Legislature sooner.

prohibition | minor forest produce | land alienation | village markets

money lending | social sector institutions | local plans & tribal sub-plans

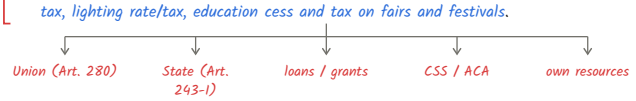
6 This Act received the assent of the President on 24 December, 1996.

Finances of Panchayati Raj

Finances of Panchayati Raj

2nd ARC on PRI finances: The Second Administrative Reforms Commission of India (2005–2009) has summarized the sources of revenue of the Panchayati Raj Institutions (PRIs) and their financial problems in the following way[7]:

1. **Sources of funds:** A major portion of Part IX of the Constitution deals with structural empowerment of the PRIs but the real strength in terms of both autonomy and efficiency of these institutions is dependent on their financial position (including their capacity to generate own resources). In general, Panchayats in our country receive funds in the following ways: (i) Grants from the Union Government based on the recommendations of the Central Finance Commission as per Article 280 of the Constitution. (ii) Devolution from the State Government based on the recommendations of the State Finance Commission as per Article 243-I. (iii) Loans / grants from the State Government. (iv) Programme-specific allocation under Centrally Sponsored Schemes and Additional Central Assistance. (v) Internal Resource Generation (tax and non-tax).
2. **Weak fiscal empowerment:** Across the country, States have not given adequate attention to fiscal empowerment of the Panchayats. The Panchayats own resources are meager. Kerala, Karnataka and Tamil Nadu are the states which are considered to be progressive in PRIs empowerment but even there, the Panchayats are heavily dependent on government grants. One can draw the following broad conclusions: (i) Internal resource generation at the Panchayat level is weak. This is partly due to a thin tax domain and partly due to Panchayats own reluctance in collecting revenue. (ii) Panchayats are heavily dependent on grants from Union and State Governments. (iii) A major portion of the grants both from Union as well as the State Governments is scheme specific. Panchayats have limited discretion and flexibility in incurring expenditure. (iv) In view of their own tight fiscal position, State Governments are not keen to devolve funds to Panchayats. (v) In most of the critical Eleventh Schedule matters like primary education, healthcare, water supply, sanitation and minor irrigation even now, it is the State Government which is directly responsible for implementation of these programmes and hence expenditure. (vi) Overall, a situation has been created where Panchayats have responsibility but grossly inadequate resources.
3. **Own resources – the soul:** Though, in absolute terms, the quantum of funds the Union/State Government transfers to a Panchayat forms the major component of its receipt, the PRI's own resource generation is the soul behind its financial standing. It is not only a question of resources; it is the existence of a local taxation system which ensures people's involvement in the affairs of an elected body. It also makes the institution accountable to its citizens.
4. **Gram Panchayats better placed:** In terms of own resource collection, the Gram Panchayats are comparatively in a better position because they have a tax domain of their own, while the other two tiers are dependent only on tolls, fees and non-tax revenue for generating internal resources.
5. **Taxation mostly with village level:** State Panchayati Raj Acts have given most of the taxation powers to Village Panchayats. The revenue domain of the intermediate and District Panchayats (both tax as well as non-tax) has been kept much smaller and remains confined to secondary areas like ferry services, markets, water and conservancy services, registration of vehicles, cess on stamp duty and a few others.
6. **Village Panchayat taxes:** A study of various State Legislations indicates that a number of taxes, duties, tolls and fees come under the jurisdiction of the Village Panchayats. These interalia include property/house tax, profession tax, land tax/cess, taxes/tolls on vehicles, entertainment tax/fees, license fees, tax on non-agriculture land, fee on registration of cattle, sanitation/drainage/conservancy tax, water rate/tax, lighting rate/tax, education cess and tax on fairs and festivals.



7 Second Administrative Reforms Commission, Government of India, Report on Local Governance, 2007, pp. 151–154.

Reasons for Ineffective Performance

Reasons for Ineffective Performance

Sub-optimal performance: Even after conferring the constitutional status and protection through the 73rd Amendment Act (1992), the performance of the Panchayati Raj Institutions (PRIs) has not been satisfactory and not upto the expected level. The various reasons for this sub-optimal performance are as follows[8]:

1. **Lack of adequate devolution:** Many States have not taken adequate steps to devolve 3Fs (i.e., functions, funds and functionaries) to the PRIs to enable them to discharge their constitutionally stipulated function. Further, it is imperative that the PRIs have resources to match the responsibilities entrusted to them. While SFCs (state finance commissions) have submitted their recommendations, not many few States have implemented these or taken steps to ensure the fiscal viability of the PRIs.
2. **Excessive control by bureaucracy:** In some States, the Gram Panchayats have been placed in a position of subordination. Hence, the Gram Panchayat Sarpanches have to spend extraordinary amount of time visiting Block Offices for funds and/or technical approval. These interactions with the Block staff office distort the role of Sarpanches as elected representatives.
3. **Tied nature of funds:** This has two implications. The activities stated under a certain scheme are not always appropriate for all parts of the district. This results in unsuitable activities being promoted or an under-spend of the funds.
4. **Overwhelming dependency on government funding:** A review of money received and own source funds shows the overwhelming dependence of Panchayats on government funding. When Panchayats do not raise resources and instead receive funds from outside, people are less likely to request a social audit.
5. **Reluctance to use fiscal powers:** An important power devolved to GP (Gram Panchayat) is the right to levy tax on property, business, markets, fairs and also for services provided, like street lighting or public toilets, etc. Very few Panchayats use their fiscal power to levy and collect taxes. The argument pushed by Panchayat heads is that it is difficult to levy tax on your own constituency, especially when you live in the community.
6. **Status of the Gram Sabha:** Empowering the Gram Sabhas could have been a powerful weapon for transparency, accountability and for involvement of the marginalized sections. However, a number of the State Acts have not spelt the powers of Gram Sabhas nor have any procedures been laid down for the functioning of these bodies or penalties for the officials.
7. **Creation of Parallel Bodies:** Often, Parallel Bodies (PBs) are created for supposedly speedy implementation and greater accountability. However, there is little evidence to show that such PBs have avoided the evils including that of partisan politics, sharing of spoils, corruption and elite capture. Missions (in particular) often bypassing mainstream programmes, create disconnect, duality, and alienation between the existing and the new structures and functions. PBs usurp the legitimate space of PRIs and demoralize the PRIs by virtue of their superior resource endowments.
8. **Poor Infrastructure:** A number of Gram Panchayats in the country do not have even full time Secretary and also basic office buildings. The database for planning, monitoring etc., are lacking in most of the cases.

Capacity deficit of representatives: A large number of elected representatives of PRIs are semi-literate or illiterate and know little about their roles & responsibilities, programmes, procedures, systems. Often for want of good, relevant and periodic training, they are not able to perform their functions properly.

3Fs not devolved	bureaucratic control	tied funds	grant dependence
no own taxes	weak Gram Sabha	parallel bodies	poor infrastructure

8 Ministry of Panchayati Raj, Government of India, Roadmap for the Panchayati Raj (2011-16), pp. 11-12, 23 and 7-8.

Committees After Constitutionalisation

Table 39.3 Committees Related to Panchayati Raj (After Constitutionalisation)

Sl. No.	Name of the Committee	Chairman	Appointed in	Reported in
1.	Task Force on Devolution of Powers and Functions to Panchayati Raj Institutions	Lalit Mathur	2001	2001
2.	Expert Group on Planning at the Grassroots Level	V. Ramachandran	2005	2006
3.	Task Force for Preparation of a Manual for District Planning	Smt. Rajwant Sandhu	2008	2008
4.	Committee on Restructuring of DRDA (District Rural Development Agency)	V. Ramachandran	2010	2012
5.	Expert Committee on Leveraging Panchayats for Efficient Delivery of Public Goods and Services	Mani Shankar Aiyar	2013	2012

Please check the tables of this chapter once. If a table looks important, study it directly from Laxmikanth, or take a screenshot of it and add it to this page as needed.

CHAPTER 90 National Commission to Review the Working of the Constitution

NCRWC – Venkatachaliah Commission (2000): The National Commission to Review the Working of the Constitution (NCRWC) was set up by a resolution of the Government of India in 2000. It was an 11-member Commission headed by M.N. Venkatachaliah, the former Chief Justice of India[1]. It submitted its report in 2002.



Terms of Reference

Within basic structure: According to the terms of reference, the commission was required to examine, in the light of the experience of the past fifty years, as to how far the existing provisions of the Constitution are capable of responding to the needs of efficient, smooth and effective system of governance and socio-economic development of modern India and to recommend changes, if any. The terms of reference clearly specified that the commission should recommend changes that are required to be made in the Constitution within the framework of parliamentary democracy and without interfering with the 'basic structure' or 'basic features' of the Constitution.

Review, not rewrite: The commission clarified that its task was to review the working of the Constitution and not to rewrite it and its function was only recommendatory and advisory in nature. It was left to the Parliament to accept or reject any of the recommendations.

Eleven areas of study: The commission had no agenda before it. On its own, it identified the eleven areas of study and proposed to examine them. They included the following[2]:

1. Strengthening the institutions of parliamentary democracy (working of the Legislature, the Executive and the Judiciary; their accountability; problems of administrative, social and economic cost of political instability; exploring the possibilities of stability within the discipline of parliamentary democracy).
2. Electoral reforms; standards in political life.
3. Pace of socio-economic change and development under the Constitution (assurance of social and economic rights: how fair? how fast? how equal?).
4. Promoting literacy; generating employment; ensuring social security; alleviation of poverty.
5. Union-State relations.
6. Decentralization and devolution; empowerment and strengthening of Panchayati Raj Institutions.
7. Enlargement of Fundamental Rights.
8. Effectuation of Fundamental Duties.
9. Effectuation of Directive Principles and achievement of the Preambular objectives of the Constitution.
10. Legal control of fiscal and monetary policies; public audit mechanism.
11. Administrative system and standards in public life.

1 The other members of the Commission were: B.P. Jeevan Reddy (Chairman of the Law Commission), R.S. Sarkaria (former judge of the Supreme Court), K. Punnayya (former judge of the Andhra Pradesh High Court), Soli Sorabjee (Attorney-General of India), K. Parasaran (former Attorney-General of India), Subhash Kashyap (former Secretary-General of Lok Sabha), C.R. Irani (Chief Editor and MD of the Statesman), Abid Hussain (former Ambassador of India to the USA), Smt. Sumitra Kulkarni (former MP) and P.A. Sangma (former Speaker of the Lok Sabha). P.A. Sangma resigned three months before the submission of the report by the Commission.

2 Report of the Commission, Volume I, Chapter 1.

NCRWC – Areas of Concern I

Areas of Concern

Commission's perception: The following are the important areas of concern according to the perception of the Commission[3]:

1. **Breach of constitutional faith:** There is a fundamental breach of the constitutional faith on the part of Governments and their method of governance lies in the neglect of the people who are the ultimate source of all political authority. Public servants and institutions are not alive to the basic imperative that they are servants of the people meant to serve them. The dignity of the individual enshrined in the Constitution has remained an unredeemed pledge. There is, thus, a loss of faith in the Governments and governance. Citizens see their Governments besieged by uncontrollable events and are losing faith in institutions. Society is unable to cope up with current events.
2. **Unprepared Indian State:** The foremost area of concern is the present nature of the Indian State and its inability to anticipate and provide for the great global forces of change ushered in by the pace of scientific and technological developments.
3. **Cost of government & fiscal deficits:** The next and equally important dimension is the increasing cost of government and fiscal deficits which are alarming.
4. **Criminalisation of politics:** There is a pervasive impurity of the political climate and of political activity. Criminalisation of politics, political-corruption and the politician-criminal-bureaucratic nexus have reached unprecedented levels of needing strong systemic changes.
5. **National security & disaster management:** Issues of national integrity and security have not received adequate and thoughtful attention. Mechanisms for the assessment of early warning symptoms of social unrest are absent. Mechanisms for adequate and immediate state responses to emergencies and disaster management are wholly inadequate. Administration, as a system for anticipating coming events and planning responses in advance, has failed. It has become un-coordinated and directionless amalgam of different departments often with over-lapping and even mutually conflicting jurisdictions, powers and responsibilities which merely acts as a reaction to problems. There are no clear-cut standards or basis for fixing responsibilities.
6. **Fault-lines in democratic institutions:** Though India's overall record and experience as a working democracy (despite many centrifugal forces) are worthy to mention and though the bases of democratic debate have widened with the 73rd and 74th Constitutional amendments, the working of the institutions of parliamentary democracy, however, have thrown-up serious fault-lines, which might, if unattended, prove destructive of the basic democratic values.
7. **Misuse of electoral process:** There is pervasive misuse of the electoral process and the electoral system is unable to prevent the entry of persons with criminal record into the portal of law-making institutions.
8. **Weak representative character:** The Parliament and the State Legislatures, owing to the inherent weakness of the electoral system, have failed to acquire adequate representative character.
9. **Political instability:** The increasing instability of the elected governments is attributable to opportunistic politics and unprincipled defections. The economic and administrative costs of political instability are unaffordably high and their impact on the polity is not clearly comprehended and realized. Though just four Prime Ministers ruled the country for 40 years out of the 54 years of independence and one political party alone was in power for 45 years, however, 1989 onwards the country saw five General Elections to the Lok Sabha. Costs of this political instability are simply colossal.

3 Report of the Commission, Volume I, Chapter 2.

NCRWC – Areas of Concern II

10. **Debt-trap & parallel economy:** The state of the Indian economy is disturbing. The economy is gradually sinking into a debt-trap. Economic, fiscal and monetary policies, coupled with administrative inefficiency, corruption and wasteful expenditure are increasingly pushing the society into extra-legal systems, crime-syndicates, mob-rule and hoodlum out-fits. Black-money, parallel economy and even parallel governments are the overarching economic and social realities. Legitimate governments will, in due course, find it increasingly difficult to confront them. In course of time these illegal criminal out-fits will dictate terms to the legitimate governments.
11. **Urbanisation & unemployment:** Rural de-population, urbanization, urban-congestion and social unrest need immediate attention and solutions. Increasing unemployment will prove a serious threat to orderly government.
12. **Educational disarmament:** Future of society is increasingly knowledge-based and knowledge-driven. The quality of education and the higher research need urgent repair. The country is engaged in a unilateral and unthinking educational disarmament.
13. **Justice delivery:** System of administration of justice in the country is another area of concern.
14. **Criminal justice collapse:** Criminal justice system is on the verge of collapse. The quality of investigations and prosecutions requires a strong second look. Law's delay and costs of litigation have become proverbial. Victimology, victim-protection and protection of witnesses in sensitive criminal-trials need institutional arrangements. Recruitment, training, refresher and continuing legal education for lawyers, judges and judicial administrators need immediate attention. The increasing utilization of alternative dispute resolution mechanisms such as mediation, conciliation and arbitration as well as mechanisms of auxiliary adjudicative services need to be stressed.
15. **Communal riots:** Communal and other inter-group riots in a country like India with its religious, social and cultural diversity cannot be treated as merely law and order problem. They are manifestations of collective behavioural disorders. Legal and administrative measures are required to be taken to remove the insecurity felt by the minorities and for bringing them into the mainstream of the national fabric.
16. **Social infrastructure:** The state of social infrastructure is disturbing. There are 380 million children below the age of 14. The arrangements for their education, health and well-being are wholly inadequate both qualitatively and quantitatively. 96.4 per cent of the primary education budget goes for salaries alone.
17. **Health indicators:** Rates of infant mortality, blindness, maternal mortality, maternal-anemia, child malnutrition and child-immunization, despite significant progress achieved, yet remain at high and disconcerting levels.
18. **Public health:** Public health and hygiene have not received adequate attention. There is an alarming increase in infectious diseases such as Tuberculosis, Malaria, Hepatitis, HIV etc.

governance	politics	economy	justice	society
loss of faith	criminalisation	debt-trap	near collapse	education, health

NCRWC Recommendations – Fundamental Rights and Property

Recommendations

249 recommendations: In all, the commission made 249 recommendations. Of them, 58 recommendations involve amendments to the Constitution, 86 involve legislative measures and the remaining 105 recommendations could be accomplished through executive action.

58	86	105
constitutional amendments	legislative measures	executive action

Area-wise recommendations: The various recommendations of the commission are mentioned below in an area-wise manner[4]:

1. On Fundamental Rights

1. **Wider non-discrimination:** The scope of prohibition against discrimination (under Articles 15 and 16) should be extended to include 'ethnic or social origin, political or other opinion, property or birth'.
2. **Press freedom explicit:** The freedom of speech and expression (under Article 19) should be expanded to include explicitly 'the freedom of the press and other media, the freedom to hold opinions and to seek, receive and impart information and ideas'.
3. **New Fundamental Rights:** The following should be added as new Fundamental Rights:
   - (a) Right against torture, cruelty and inhuman treatment or punishment.
   - (b) Right to compensation if a person is illegally deprived of his/her right to life or liberty.
   - (c) Right to leave and to return to India.
   - (d) Right to privacy and family life.
   - (e) Right to rural wage employment for a minimum of 80 days in a year.
   - (f) Right to access to courts and tribunals and speedy justice.
   - (g) Right to equal justice and free legal aid[5].
   - (h) Right to care and assistance and protection (in case of children).
   - (i) Right to safe drinking water, prevention of pollution, conservation of ecology and sustainable development.
4. **Right to education till 18 for girls, SC/ST:** The right to education (under Article 21-A) should be enlarged to read as: 'Every child shall have the right to free education until he completes the age of fourteen years; and in the case of girls and members of the SCs and STs until they complete the age of eighteen years'.
5. **Preventive detention reforms:** Two changes should be made with respect to preventive detention (under Article 22), namely, (i) the maximum period of preventive detention should be six months; and (ii) the advisory board should consist of a chairman and two other members and they should be serving judges of any high court.
6. **Sikhism, Jainism, Buddhism separate:** Sikhism, Jainism and Buddhism should be treated as religions separate from Hinduism and the provisions grouping them together (under Article 25) should be deleted. At present, the word 'Hindu' is defined to include these religions also.
7. **Ninth Schedule restricted:** The protection from judicial review afforded by Article 31-B to the Acts and Regulations specified in the Ninth Schedule should be restricted to only those which relate to (i) agrarian reforms, (ii) reservations, and (iii) the implementation of Directive Principles specified in clause (b) or (c) of Article 39.
8. **Non-suspendable rights in emergency:** No suspension of the enforcement of the Fundamental Rights under Articles 17, 23, 24, 25 and 32 in addition to those under Articles 20 and 21 during the operation of a national emergency (under Article 352).

2. On Right to Property

Recasting Article 300-A: Article 300-A should be recast as follows:

1. **Public purpose:** Deprivation or acquisition of property shall be by authority of law and only for a public purpose.
2. **No arbitrariness:** There shall be no arbitrary deprivation or acquisition of property.
3. **Rehabilitation for SC/ST land:** No deprivation or acquisition of agricultural, forest and non-urban homestead land belonging to or customarily used by the SCs and STs shall take place except by authority of law which provides for suitable rehabilitation scheme before taking possession of such land. In brief, a right to 'suitable rehabilitation' for the SCs and STs if their land is to be acquired.

4 Chapters 3 to 10 in Volume I of the Report of the Commission contains the detailed area-wise recommendations. The summary of recommendations is given in Chapter 11 of the Report.

5 At present, it is a Directive Principle under Article 39-A.

NCRWC Recommendations – DPSP, Duties and Legislatures

3. On Directive Principles

1. **DPSP and Action:** The heading of Part-IV of the Constitution should be amended to read as 'Directive Principles of State Policy and Action'.
2. **Population control:** A new Directive Principle on control of population should be added.
3. **National Education Commission:** An independent National Education Commission should be set-up every five years.
4. **Inter-Faith Commission:** An Inter-Faith Commission should be established to promote inter-religious harmony and social solidarity.
5. **Review body for DPSP:** There must be a body of high status to review the level of implementation of the Directive Principles.
6. **Employment plan:** A strategic Plan of Action should be initiated to create a large number of employment opportunities in five years.
7. **Statistical reforms:** Implementation of the recommendations contained in the Report of the National Statistical Commission (2001).

4. On Fundamental Duties

1. **Popularise duties:** Consideration should be given to the ways and means by which Fundamental Duties could be popularized and made effective.
2. **Justice Verma Committee:** The recommendations of the Justice Verma Committee on operationalisation of Fundamental Duties should be implemented at the earliest[6].
3. **New duties:** The following new fundamental duties should be included in Article 51-A:
   - (a) Duty to vote at elections, actively participate in the democratic process of governance and to pay taxes.
   - (b) To foster a spirit of family values and responsible parenthood in the matter of education, physical and moral well-being of children.
   - (c) Duty of industrial organizations to provide education to children of their employees.

5. On Parliament and State Legislatures

1. **Codify privileges:** The privileges of legislators should be defined and delimited for the free and independent functioning of Parliament and state legislatures.
2. **No immunity for corruption:** Article 105 may be amended to clarify that the immunity enjoyed by members under parliamentary privileges does not cover corrupt acts committed by them in connection with their duties in the House or otherwise. Further, no court would take cognizance of any offence arising out of a member's action in the House without prior sanction of the Speaker/Chairman. Article 194 may also be similarly amended in relation to the members of state legislatures.
3. **Domicile for Rajya Sabha:** The domiciliary requirement for eligibility to contest elections to Rajya Sabha from the concerned state should be maintained. This is essential to ensure the federal character of the Rajya Sabha.
4. **End MPLADS:** The MP local area development scheme should be discontinued.
5. **ECI on office of profit:** The Election Commission should be empowered to identify and declare the various offices under the central and state governments to be 'offices of profit' for the purposes of being chosen, and for being, a member of the appropriate legislature.
6. **Committee on National Economy:** Immediate steps be taken to set up a Nodal Standing Committee on National Economy.
7. **Standing Constitution Committee:** A Standing Constitution Committee of the two Houses of Parliament for a priori scrutiny of constitutional amendment proposals should be set up.
8. **Legislation Committee:** A new Legislation Committee of Parliament to oversee and coordinate legislative planning should be constituted.
9. **Drop some committees:** The existing Parliamentary Committees on Estimates, Public Undertakings and Subordinate Legislation may not be continued.
10. **Parliamentary ombudsman:** The Parliamentarians must voluntarily place themselves open to public scrutiny through a parliamentary ombudsman.
11. **Minimum sitting days:** The State Legislatures with less than 70 members should meet for at least 50 days in a year and other State Legislatures for at least 90 days. Similarly, the minimum number of days for sittings of Rajya Sabha and Lok Sabha should be fixed at 100 and 120 days respectively.
12. **Procedural reform study group:** A Study Group outside Parliament for study of procedural reforms should be set up.

< 70 members	other states	Rajya Sabha	Lok Sabha
50 days	90 days	100 days	120 days

6 The Government of India appointed the committee "to operationalise the suggestions to teach Fundamental Duties to the citizens of India" in the year 1998 under the chairmanship of Justice J.S. Verma. The Committee submitted its report in October 1999.

NCRWC Recommendations – Executive and Centre-State

6. On Executive and Administration

1. **Lok Sabha elects PM (hung House):** In case of hung Parliament, the Lok Sabha may elect the leader of the House. He/she may then be appointed as the prime minister by the President. The same procedure could be followed at the state level also.
2. **Constructive vote of no-confidence:** A motion of no-confidence against a prime minister must be accompanied by a proposal of alternative leader to be voted simultaneously. This is called as the 'system of constructive vote of no confidence'.
3. **20% for no-confidence notice:** For a motion of no-confidence to be brought out against the government, at least 20 per cent of the total number of members of the House should give notice.
4. **Ministry ceiling – 10%:** The practice of having oversized Council of Ministers should be prohibited by law. A ceiling on the number of Ministers in any State or the Union government be fixed at the maximum of 10 per cent of the total strength of the popular house of the legislature.
5. **Political offices – 2%:** The practice of creating a number of political offices with the position, perks and privileges of a minister should be discouraged. Their number should be limited to 2 per cent of the total strength of the lower house.
6. **Lokpal & Lokayuktas:** The Constitution should provide for appointment of Lokpal keeping the prime minister outside its purview and the institution of lokayuktas in the states.
7. **Lateral entry:** Lateral entry into government jobs above joint secretary level should be allowed.
8. **Amend Article 311:** Article 311 should be amended to ensure not only protection to the honest public servants but penalisation to dishonest ones.
9. **Civil Service Boards:** The questions of personnel policy including placements, promotions, transfers and fast-track advancements should be managed by autonomous Civil Service Boards constituted under statutory provisions.
10. **Oath of good governance:** Officials, before starting their career, in addition to the taking of an oath of loyalty to the Constitution, should swear to abide by the principles of good governance.
11. **Oath of transparency:** Right to information should be guaranteed and the traditional insistence on secrecy should be discarded. In fact, there should be an oath of transparency in place of an oath of secrecy.
12. **Whistle-blower Acts:** Public Interest Disclosure Acts (which are popularly called the Whistle-blower Acts) may be enacted to fight corruption and mal-administration.
13. **Forfeit benami property:** A law should be enacted to provide for forfeiture of benami property of corrupt public servants as well as non-public servants.

7. On Centre-State and Inter-State Relations

1. **ISC consultation matters:** The Inter-State Council Order of 1990 may clearly specify the matters that should form the parts of consultations.
2. **Disasters in Concurrent List:** Management of disasters and emergencies (both natural and manmade) should be included in the List III (Concurrent List) of the Seventh Schedule.
3. **Inter-State Trade Commission:** A statutory body called the Inter-State Trade and Commerce Commission should be established.
4. **CM consultation on Governor:** The President should appoint the governor of a state only after consultation with the chief minister of that state.
5. **Art. 356 – last resort:** Article 356 should not be deleted, but it must be used sparingly and only as a remedy of the last resort.
6. **Floor test:** The question whether the ministry in a state has lost the confidence of the assembly or not should be tested only on the floor of the House. The Governor should not be allowed to dismiss the ministry, so long as it enjoys the confidence of the House.
7. **PR beyond one year:** Even without the state being under a proclamation of emergency, President's Rule may be continued if elections cannot be held. Article 356 should be amended to this effect.
8. **No dissolution before Parliament's approval:** The State Assembly should not be dissolved before the proclamation issued under Article 356 has been laid before Parliament. Article 356 should be amended to ensure this.
9. **River disputes – larger SC bench:** River water disputes between States and/ or the Centre should be heard and disposed by a bench of not less than three judges and if necessary, a bench of five judges of the Supreme Court for the final disposal of the suit.
10. **Replace River Boards Act:** Parliament should replace the River Boards Act of 1956 with another comprehensive enactment after consultation with all the states.
11. **Time-limit on reserved bills:** When the state bill is reserved for consideration of the President, there should be a time-limit (say three months) within which the President should take a decision whether to give his/her assent or to return the bill.

NCRWC Recommendations – Judiciary and Socio-Economic Change

8. On Judiciary

1. **National Judicial Commission:** A National Judicial Commission under the Constitution should be established to recommend the appointment of judges of the Supreme Court. It should comprise the chief justice of India (as chairman), two senior most Judges of the Supreme Court, the Union law minister and one person nominated by the President.
2. **Judicial accountability:** A committee of the National Judicial Commission should examine complaints of deviant behaviour of the Supreme Court and high court judges.
3. **Retirement age 65 / 68:** The retirement age of the judges of high courts and Supreme Court should be increased to 65 and 68 respectively.
4. **Contempt power limited:** No court other than the Supreme Court and the High Courts should have the power to punish for contempt of itself.
5. **Judicial review limited to SC/HC:** Except for the Supreme Court and the High Courts, no other court should have the power to declare the Acts of Parliament and State Legislatures as being unconstitutional or beyond legislative competence and so ultra-vires.
6. **Judicial Councils for budgets:** A National Judicial Council and Judicial Councils in States should be set up for the preparation of plans and annual budget proposals.
7. **Judgement within 90 days:** In the Supreme Court and the High Courts, judgements should ordinarily be delivered within 90 days from the conclusion of the case.
8. **Exemplary costs:** An award of exemplary costs should be given in appropriate cases of abuse of process of law.
9. **Arrears – one-year limit:** Each High Court should prepare a strategic plan for time-bound clearance of arrears in courts within its jurisdiction. No case to remain pending for more than one year.
10. **Plea-bargaining:** The system of plea-bargaining should be introduced as part of the process of decriminalization.
11. **Two-tier subordinate judiciary:** The hierarchy of the subordinate courts in the country should be brought down to a two-tier subordinate judiciary under the High Court.

9. On Pace of Socio-Economic Change and Development

1. **Diversity in higher judiciary:** A way could and should be found to bring a reasonable number of SCs, STs and BCs on to the benches of the Supreme Court and high courts.
2. **Equal competition:** Social policy should aim at enabling the SCs, STs and BCs and with particular attention to the girls to compete on equal terms with the general category.
3. **Optimal use of resources:** Appropriate new institutions should be established to ensure that the resources earmarked for the weaker sections are optimally used.
4. **Citizens' Charters:** The Citizens' Charters be prepared by every service providing department/ agency to enumerate the entitlements of the citizens specifically those of the SCs, STs and other deprived classes.
5. **Reservation statute – Arakshan Nyaya Adalats:** Reservation for SCs, STs and BCs should be brought under a statute covering all aspects of reservation including setting up of Arakshan Nyaya Adalats to adjudicate upon all disputes pertaining to reservation.
6. **Residential schools:** Residential schools for SCs, STs and BCs should be established in every district in the country.
7. **Fifth to Sixth Schedule:** All tribal areas governed by the Fifth Schedule of the Constitution should be transferred to the Sixth Schedule. Other tribal areas should also be brought under the Sixth Schedule.
8. **Special atrocity courts:** Special courts exclusively to try offences under the SCs and STs (Prevention of Atrocities) Act, 1989, should be established.
9. **Enforce PCR Act:** Prevention of untouchability requires, inter alia, effective punitive action under the Protection of Civil Rights Act, 1955.
10. **End manual scavenging:** The Employment of Manual Scavengers and Construction of Dry Latrines (Prohibition) Act, 1993, should be strictly enforced.
11. **Minorities – education & representation:** Steps should be taken for improvement of educational standards as well as for increasing the political representation of the minority communities.
12. **Bonded labour authority:** A fully empowered National Authority for the Liberation and Rehabilitation of bonded labour should be set up. Similar authorities should also be established at the state level.
13. **Women's empowerment:** As regards women, actions covering reservations, development, empowerment, health and protection against violence should be taken.

NCRWC Recommendations – Local Bodies, North East and Elections

10. On Decentralisation (Panchayats and Municipalities)

1. **Separate fiscal domain:** The Eleventh and Twelfth Schedules of the Constitution should be restructured in a manner that creates a separate fiscal domain for panchayats and municipalities.
2. **State panchayat council:** State panchayat council should be established under the chairmanship of the chief minister.
3. **Institutions of self-government:** Panchayats and Municipalities should be categorically declared to be 'institutions of self-government' and exclusive functions be assigned to them. For this purpose, Articles 243-G and 243-W should be suitably amended.
4. **ECI over SECs:** The Election Commission of India should have the power to issue directions to the State Election Commission for the discharge of its functions. The State Election Commission should submit its annual or special reports to the Election Commission of India and to the Governor. This requires the amendment of Articles 243-K and 243-ZA.
5. **Hearing before dissolution:** Article 243-E should be amended to the effect that a reasonable opportunity of being heard shall be given to a Panchayat before it is dissolved.
6. **CAG audit of panchayats:** To ensure uniformity in the practice relating to audit of accounts, the CAG of India should be empowered to conduct the audit or lay down accounting standards for Panchayats.
7. **Report on supersession:** Whenever a Municipality is superseded, a report stating the grounds for such dissolution should be placed before the State Legislature.
8. **Single law on eligibility:** All provisions regarding qualifications and disqualifications for elections to local authorities should be consolidated in a single law.
9. **Delimitation Commission for local bodies:** The functions of delimitation, reservation and rotation of seats should be vested in a Delimitation Commission and not in the State Election Commission.
10. **Municipal tax domain:** The concept of a distinct and separate tax domain for municipalities should be recognized.

11. On Institutions in North East India

1. **73rd/74th benefits for NE:** Efforts are to be made to give all the States in this region the opportunities provided under the 73rd and 74th Constitutional Amendments. However, this should be done with due regard to the unique political traditions of the region.
2. **Empower ADCs:** The subjects given under the Sixth Schedule and those mentioned in the Eleventh Schedule could be entrusted to the Autonomous District Councils (ADCs).
3. **Traditional governance:** Traditional forms of governance should be associated with self-governance because of the present dissatisfaction.
4. **National Immigration Council:** A National Immigration Council should be set up to examine a range of issues including a review of the Citizenship Act, the Illegal Migrants Determination by Tribunal Act, the Foreigners Act and so on.

12. On Electoral Processes

1. **Disqualify on charges (5+ years):** Any person charged with any offence punishable with imprisonment for a maximum term of five years or more, should be disqualified from being chosen as or for being a member of Parliament or Legislature of a State.
2. **Permanent bar for heinous crimes:** Any person convicted for any heinous crime like murder, rape, smuggling, dacoity, etc., should be permanently debarred from contesting for any political office.
3. **Special courts for politicians:** Criminal cases against politicians pending before Courts either for trial or in appeal must be disposed of speedily, if necessary, by appointing Special Courts.
4. **Election benches:** The election petitions should also be decided by special courts. In the alternative, special election benches may be constituted in the High Courts and earmarked exclusively for the disposal of election petitions and election disputes.
5. **State funding deferred:** Any system of State funding of elections bears a close nexus to the regulation of working of political parties by law and to the creation of a foolproof mechanism under law with a view to implementing the financial limits strictly. Therefore, proposals for State funding should be deferred till these regulatory mechanisms are firmly in position.
6. **One constituency only:** Candidates should not be allowed to contest election simultaneously for the same office from more than one constituency.
7. **Statutory code of conduct:** The election code of conduct should be given the sanctity of law and its violation should attract penal action.
8. **50% + 1 vote:** The Commission while recognizing the beneficial potential of the system of run off contest electing the representative winning on the basis of 50 per cent plus one vote polled, as against the present first-past-the-post system, for a more representative democracy, recommends that the Government and the Election Commission of India should examine this issue of prescribing a minimum of 50 per cent plus one vote for election in all its aspects.
9. **Bar on serial losers:** An independent candidate who loses election three times consecutively should be permanently debarred from contesting election to the same office.
10. **Deposit threshold 25%:** The minimum number of valid votes polled should be increased to 25 per cent from the current 16.67 per cent as a condition for the deposit not being forfeited.
11. **Foreign-born in high offices:** The issue of eligibility of non-Indian born citizens or those whose parents or grandparents were citizens of India to hold high offices in the realm such as President, Vice-President, Prime Minister and Chief Justice of India should be examined in depth through a political process after a national dialogue[7].
12. **Collegium for Election Commissioners:** The Chief Election Commissioner and the other Election Commissioners should be appointed on the recommendation of a body consisting of the Prime Minister, Leader of the Opposition in the Lok Sabha, Leader of the Opposition in the Rajya Sabha, the Speaker of the Lok Sabha and the Deputy Chairman of the Rajya Sabha. Similar procedure should be adopted in the case of appointment of State Election Commissioners.

7 The Commission was deeply divided on this issue and because of this, P.A. Sangma left the Commission.

NCRWC Recommendations – Political Parties and Anti-Defection

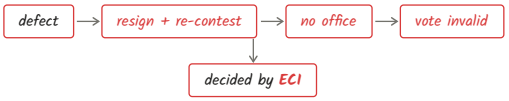
13. On Political Parties

1. **Law on political parties:** A comprehensive law regulating the registration and functioning of political parties or alliances of parties should be made. The proposed law should–
   - (a) provide that political party or alliance should keep its doors open to all citizens irrespective of any distinctions of caste, community or the like.
   - (b) make it compulsory for the parties to maintain accounts of the receipt of funds and expenditure in a systematic and regular way.
   - (c) make it compulsory for the political parties requiring their candidates to declare their assets and liabilities at the time of filing their nomination.
   - (d) provide that no political party should provide ticket to a candidate if he/she was convicted by any court for any criminal offence or if the courts have framed criminal charges against him/her.
   - (e) specifically provide that if any party violates the above provision, the candidate involved should be liable to be disqualified and the party deregistered and derecognized.
2. **Higher recognition threshold:** The Election Commission should progressively increase the threshold criterion for eligibility for recognition so that the proliferation of smaller political parties is discouraged.
3. **Political funding law:** A comprehensive legislation providing for regulation of contributions to the political parties and towards election expenses should be enacted by consolidating such laws. This new law should:
   - (a) aim at bringing transparency into political funding;
   - (b) permit corporate donations within higher prescribed limits;
   - (c) make donations up to a specified limit tax exempt;
   - (d) make both donors and donees of political funds accountable;
   - (e) provide that audited political party accounts should be published yearly; and
   - (f) provide for de-recognition of the party and enforcement of penalties for filing false election returns.

14. On Anti-Defection Law

Amend Tenth Schedule: The provisions of the Tenth Schedule of the Constitution should be amended to provide the following:

1. **Defectors must re-contest:** All persons defecting (whether individually or in groups) from the party or the alliance of parties, on whose ticket they had been elected, must resign from their parliamentary or assembly seats and must contest fresh elections.
2. **No office for defectors:** The defectors should be debarred to hold any public office of a minister or any other remunerative political post for at least the duration of the remaining term of the existing legislature or until the next elections whichever is earlier.
3. **Defector's vote invalid:** The vote cast by a defector to topple a government should be treated as invalid.
4. **ECI to decide defection:** The power to decide questions regarding disqualification on ground of defection should vest in the Election Commission instead of in the Speaker/Chairman of the House concerned.



Please check the tables of this chapter once. If a table looks important, study it directly from Laxmikanth, or take a screenshot of it and add it to this page as needed.

CHAPTER 91 Landmark Judgements and Their Impact

Romesh Thappar Case (1950)

Name of the Case	Romesh Thappar vs. State of Madras
Year of Judgement	1950
Popular Name	Cross Roads case
Related Topic/Issue	Freedom of the press
Related Article/Schedule	19

Freedom of circulation: Supreme Court Judgement: It held that the freedom of speech and expression under Article 19(1)(a) includes freedom of propagation of ideas, and that freedom is ensured by the freedom of circulation. It also ruled that without liberty of circulation, the publication would be of little value. Therefore, the order of the Madras government banning the entry and circulation of the weekly English Journal Cross Roads published at Bombay was declared as unconstitutional and void. The Madras government had issued the banning order under the provisions of Section 9 (1-A) of the Madras Maintenance of Public Order Act, 1949. The Supreme Court observed that the freedom of speech and freedom of the press lay at the foundation of all democratic organisations, because without free political discussion no public education (which is so essential for the proper functioning of the process of popular government) is possible.

Public order – 1st Amendment: Impact of the Judgement: As a sequel to this judgement, the 1st Amendment Act (1951) added "public order" as a reasonable restriction under Article 19(2) on the freedom of speech and expression. The Supreme Court held that restrictions on the freedom of speech and expression could be imposed only on the grounds mentioned in Article 19(2). Accordingly, the court refused to permit restrictions on the ground of public order because it was not mentioned in Article 19(2). It said that the ordinary or local breaches of public order were no grounds for imposing restrictions on the freedom of speech and expression. It further observed that the term "public order" has wide connotation and signifies that state of tranquility which prevails among the members of political society as a result of internal regulations enforced by the government which they have established.

A.K. Gopalan Case (1950)

Name of the Case	A.K. Gopalan vs. State of Madras
Year of Judgement	1950
Popular Name	Preventive Detention case
Related Topic/Issue	Procedure established by law
Related Article/Schedule	21 & 22

Personal liberty = physical body: Supreme Court Judgement: It invalidated Section 14 of the impugned Preventive Detention Act (1950) on the ground that it violates the fundamental right guaranteed under Article 22. It said that the omission of this section will not change the nature or the structure or the object of the legislation. Therefore, it declared the rest of the Act as valid and effective. Further, it held that the expression 'personal liberty' under Article 21 means liberty of the physical body, i.e., freedom from physical restraint or detention. Moreover, it ruled that Article 21 is a protection only against the executive and not against the legislature.

Textualist approach – no due process: Impact of the Judgement: In this judgement, the Supreme Court has taken a narrow (restrictive) interpretation of the Article 21. In other words, the Supreme Court has adopted a 'textualist approach' in the interpretation of the constitution. It held that the word 'law' in Article 21 was used in the sense of state-made law and not in the sense of jus naturale i.e., the principles of natural justice. Hence, it declared that the expression 'procedure established by law' in Article 21 cannot be interpreted to mean the same thing as that of the American expression of the 'due process of law'. This declaration, in effect, amounted to holding that the protection under Article 21 is available only against arbitrary executive action and not from arbitrary legislative action. This judgement held the field for nearly three decades (1950 to 1978). This judicial interpretation reached its logical end in A.D.M. Jabalpur case[1] (1976). But, in Maneka Gandhi case[2] (1978), the Supreme Court overruled the above judgement by taking a wider interpretation of the Article 21.

1 A.D.M. Jabalpur vs. Shivakant Shukla (1976). This case is popularly known as the Habeas Corpus case.

2 Maneka Gandhi vs. Union of India (1978). This case is popularly known as the Personal Liberty case.

Champakam Dorairajan Case (1951)

Name of the Case	State of Madras vs. Champakam Dorairajan
Year of Judgement	1951
Popular Name	—
Related Topic/Issue	Communal reservation in admission to educational institutions
Related Article/Schedule	15, 29 & 46

DPSP subsidiary to FRs: Supreme Court Judgement: It affirmed the judgement of the Madras High Court. It struck down the order issued by the Madras Government (known as the Communal GO) that had provided for the proportionate reservation of seats in the government medical and engineering colleges for different communities with the object of promoting the educational interest of the backward classes under Article 46. It held that the communal GO was based on religion, race and caste and hence was violative of Articles 15(1) and 29(2). Further, it declared that the directive principles cannot in any way override or abridge the fundamental rights. It also stated that the directive principles have to conform to and run as subsidiary to the fundamental rights.

Article 15(4) – 1st Amendment: Impact of the Judgement: This judgement led to the insertion of a new Clause (4) in Article 15 by the 1st Amendment Act (1951). This clause permits the state to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the SCs and STs. In this way, the effect of this judgement was nullified.

Landmark Judgements – 2 (1951–1961)

Shankari Prasad Case (1951)

Name of the Case	Shankari Prasad vs. Union of India
Year of Judgement	1951
Popular Name	—
Related Topic/Issue	Parliament's power to amend the constitution
Related Article/Schedule	13 & 368

FRs amendable: Supreme Court Judgement: It held that the parliament's amending power under Article 368 also includes the power to amend the fundamental rights guaranteed in Part III of the Constitution. Further, it said that a constitutional amendment act enacted to abridge or take away the fundamental rights is not void under Article 13(2). Therefore, the court upheld the validity of the 1st Amendment Act (1951), which curtailed the right to property by inserting Articles 31A and 31B.

Legislative vs constituent law: Impact of the Judgement: In this judgement, the Supreme Court made a distinction between the legislative law (ordinary law) and the constituent law (constitutional amendment law). In other words, the court has separated the ordinary legislative power of the Parliament from that of its constituent power. It held that the word 'law' in Article 13(2) refers to an ordinary law and does not include a constituent law made under Article 368. Hence, it laid down that the Parliament can amend any provision of the constitution and rejected the view that the Fundamental Rights are inviolable. This judgement held the field for one and half decade (1951 to 1967). The Supreme Court re-affirmed the above judgement in the Sajjan Singh case[3] (1964). But the court overruled the above stand in the Golak Nath case[4] (1967).

3 Sajjan Singh vs. State of Rajasthan (1964).

4 I.C. Golak Nath vs. State of Punjab (1967).

Berubari Union Case (1960)

Name of the Case	Berubari Union vs. Unknown[5]
Year of Judgement	1960
Popular Name	—
Related Topic/Issue	Cession of Indian Territory to a foreign state
Related Article/Schedule	3, 368 & First Schedule

Cession needs Art. 368 amendment: Supreme Court Judgement: It ruled that the power of Parliament under Article 3 to diminish the area of a state does not cover cession of Indian territory to a foreign country. It stated that Article 3 deals with the internal adjustment inter se of the territories of the constituent states of the Indian Union. Hence, Indian territory can be ceded to a foreign state only by an amendment of the constitution under Article 368, providing for the alteration of the First Schedule. Further, the court held that the Preamble is not a part of the constitution.

9th Amendment – Berubari transfer: Impact of the Judgement: This judgement led to the enactment of the 9th Amendment Act (1960). This amendment gave effect to the transfer of certain territory known as Berubari Union (West Bengal) to Pakistan. This transfer was done as per the provisions of Indo-Pak Agreement (Nehru-Noon Agreement) of 1958, relating to Berubari Union and Exchange of Cooch-Behar Enclaves.

5 Reference by the President of India under Article 143 of the constitution on the implementation of the Indo-Pak Agreement of 1958, relating to Berubari Union and Exchange of Cooch-Behar Enclaves (1960).

K.M. Nanavati Case (1961)

Name of the Case	K.M. Nanavati vs. State of Maharashtra
Year of Judgement	1961
Popular Name	—
Related Topic/Issue	Jury System of trial
Related Article/Schedule	—

Conviction upheld: Supreme Court Judgement: It affirmed the judgement of the Bombay High Court. It held that the conviction of the accused Nanavati under Section 302 of the Indian Penal Code and the sentence of life imprisonment passed on him by the High Court are correct. He was awarded the punishment for the murder of his wife's paramour.

End of jury trials: Impact of the Judgement: This judgement brought out the shortcomings in the working of Jury System and led to its abolition. However, even after this case also, there were some cases of jury trials in the country. Finally, the new Code of Criminal Procedure, 1973 completely removed the system of trial by jury in India. Further, the sentenced Nanavati, after spending 3 years in prison, was granted pardon by the Governor.

Landmark Judgements – 3 (1967–1975)

I.C. GOLAK NATH CASE (1967)

Name of the Case	I.C. Golak Nath vs. State of Punjab
Year of Judgement	1967
Popular Name	—
Related Topic/Issue	Parliament's power to amend the constitution
Related Article/Schedule	13 & 368

FRs not amendable – prospective overruling: Supreme Court Judgement: It overruled its two earlier verdicts delivered in the Shankari Prasad case[6] (1951) and the Sajjan Singh case[7] (1964). It held that the amending power under Article 368 can not be used to abridge or take away the fundamental rights guaranteed in Part III of the constitution. Further, it said that a constitutional amendment act is a law within the meaning of Article 13(2). But, the court ruled that the 1st Amendment Act (1951), the 4th Amendment Act (1955) and the 17th Amendment Act (1964) will continue to be valid for the future. In other words, the Supreme Court applied the doctrine of prospective overruling and declared that this judgement will have only prospective operation and not retrospective operation.

24th Amendment response: Impact of the Judgement: As a sequel to this judgement, the 24th Amendment Act (1971) was enacted. This amendment provided that the Parliament has the power to amend any part of the constitution including the fundamental rights in accordance with the procedure laid down in Article 368. It also provided that a constitutional amendment act will not be a law within the meaning of Article 13(2). Thus, this amendment was aimed at overriding the above judgement.

6 Shankari Prasad vs. Union of India (1951).

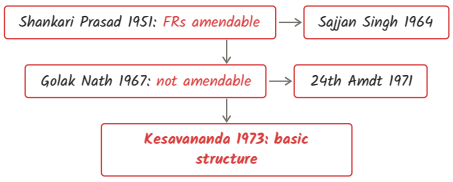
7 Sajjan Singh vs. State of Rajasthan (1964).

Kesavananda Bharati Case (1973)

Name of the Case	Kesavananda Bharati vs. State of Kerala
Year of Judgement	1973
Popular Name	Fundamental Rights case
Related Topic/Issue	Parliament's power to amend the constitution
Related Article/Schedule	13 & 368

Basic structure doctrine: Supreme Court Judgement: It overruled its earlier verdict delivered in the Golak Nath case[8] (1967). It held that the Parliament, by exercising its constituent power under Article 368, can amend any or all the provisions of the Constitution including those relating to the fundamental rights, but except the 'basic structure' of the constitution. It upheld the validity of the 24th Amendment Act (1971) which inserted Clause (4) in Article 13 and Clause (3) in Article 368. Further, the court held that Sections 2(a) and 2(b) of the 25th Amendment Act (1971) as valid. On the other hand, it declared the first part of Section 3 of the 25th Amendment Act (1971) as valid and the second part[9], as invalid. Moreover, the court validated the 29th Amendment Act (1971).

Limit on amending power: Impact of the Judgement: This judgement led to the emergence of the doctrine of basic structure of the constitution as a limitation on the amending power of the Parliament. The Supreme Court has applied this doctrine in subsequent cases in examining and deciding the validity of amendments to the constitution. It also enlarged the list of elements of the basic structure in various cases. Further, as a follow-up of this judgement, the 42nd Amendment Act (1976) gave the Parliament an unlimited and uncontrolled power to amend the constitution. This is explained below in the next case.



8 I.C. Golak Nath vs. State of Punjab (1967).

9 The second part stood as follows: "No law containing a declaration that it is for giving effect to such policy shall be called in question

Indira Nehru Gandhi Case (1975)

Name of the Case	Indira Nehru Gandhi vs. Raj Narain
Year of Judgement	1975
Popular Name	Election case
Related Topic/Issue	Basic structure of the constitution
Related Article/Schedule	329A (Repealed)[9a]

Art. 329A(4) struck down: Supreme Court Judgement: It reaffirmed the applicability of the doctrine of basic structure of the constitution. Accordingly, it struck down clause (4) of Article 329A that was inserted by the 39th Amendment Act (1975). This provision had kept the election disputes involving the Prime Minister and the Speaker of Lok Sabha outside the jurisdiction of all courts. The Supreme Court held that this provision was beyond the amending power of the Parliament because it affected the basic structure of the constitution.

42nd Amendment – Art. 368(4), (5): Impact of the Judgement: Following the above two judgements of the Supreme Court in Kesavananda Bharati and Indira Nehru Gandhi cases, the 42nd Amendment Act (1976) inserted two new Clauses (4) and (5) in Article 368. The Clause (4) provided that an amendment of the Constitution (including the provisions relating to the fundamental rights) made under Article 368 shall not be called in question in any court on any ground. While the Clause (5) declared that there shall be no limitation whatever on the constituent power of Parliament under Article 368. Thus, it is clear that these two Clauses were inserted in order to dilute the above doctrine of basic structure that has been held to be a limitation on the amending power of the Parliament.

Landmark Judgements – 4 (1976–1980)

A.D.M. Jabalpur Case (1976)

Name of the Case	A.D.M. Jabalpur vs. Shivakant Shukla
Year of Judgement	1976
Popular Name	Habeas Corpus case
Related Topic/Issue	Right to life and personal liberty during the emergency
Related Article/Schedule	21 & 359

Habeas corpus suspended: Supreme Court Judgement: It held that Article 21 is the sole repository of the right to life and personal liberty against the state. If the enforcement of that right is suspended by a Presidential Order under Article 359, then the detenu will have no locus standi to a writ petition for challenging the legality of his detention. In view of the Presidential Order dated 27th June 1975, no person has any locus standi to move any petition before a High Court under Article 226 for a writ of habeas corpus or any other writ to challenge the legality of a detention order on any ground. Accordingly, the court upheld the constitutional validity of Section 16A(9) of the Maintenance of Internal Security Act (MISA), 1971.

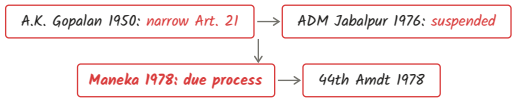
44th Amendment – Art. 21 non-suspendable: Impact of the Judgement: In this case, the Supreme Court took a restrictive meaning of right to life and personal liberty under Article 21 and gave a seriously flawed judgement. The court argued that any claim to a writ of habeas corpus on any ground amounted to the enforcement of the right to life and personal liberty which had been suspended by the Presidential Order. Consequently, it failed to fulfill its role as the defender and guarantor of the fundamental rights of the citizens during the period of emergency (1975–77). Later, the 44th Amendment Act (1978) amended Article 359 to the effect that the enforcement of the right to life and personal liberty under Article 21 can not be suspended by a Presidential Order. In view of this amendment, the judgement delivered in this case is no longer a good law and is left only of academic importance.

Maneka Gandhi Case (1978)

Name of the Case	Maneka Gandhi vs. Union of India
Year of Judgement	1978
Popular Name	Personal Liberty case
Related Topic/Issue	Procedure established by law
Related Article/Schedule	21

Just, fair and reasonable procedure: Supreme Court Judgement: It overruled its earlier judgement delivered in the A.K. Gopalan case[10] (1950). It declared section 10(3)(c) of the Passport Act (1967) as not violative of Articles 14, 19(1)(a) or (g) and 21 and hence, valid. But, it laid down the following propositions: (a) Articles 14, 19 and 21 are not mutually exclusive which means that a law depriving a person of 'personal liberty' has not only to stand the test of Article 21 but it must also stand the test of Articles 14 and 19; (b) The expression 'personal liberty' in Article 21 is of the widest amplitude and it covers a variety of rights which go to constitute the personal liberty of a man and some of them have been raised to the status of distinct fundamental rights and given additional protection under Article 19; (c) The right to life under Article 21 includes all those aspects of life which go to make a man's life meaningful, complete and worth living. Further, the right to 'live' is not merely confined to physical existence but it includes within its ambit the right to live with human dignity; and (d) The expression 'procedure established by law' in Article 21 means that the procedure prescribed by law must be just, fair and reasonable and not arbitrary, fanciful or oppressive. In order that the procedure is just, fair and reasonable, the procedure should confirm to the principles of "natural justice".

Due process & golden triangle: Impact of the Judgement: By taking a wider interpretation of the Article 21, this judgement led to the following: (i) It introduced the American concept of 'due process of law' in Indian judicial interpretation; (ii) It firmly established the 'golden triangle' rule i.e., inter-relation of Articles 14, 19 and 21; and (iii) It expanded the scope of Article 21 and paved the way for declaring a number of rights as integral part of Article 21 in the subsequent cases.



Bachan Singh Case (1980)

Name of the Case	Bachan Singh vs. State of Punjab
Year of Judgement	1980
Popular Name	—
Related Topic/Issue	Constitutional validity of death penalty
Related Article/Schedule	19 & 21

Death penalty valid: Supreme Court Judgement: It ruled that the provision of death penalty (capital punishment) in Section 302 of the Indian Penal Code, as an alternative punishment for murder, is not unreasonable. Hence, this provision does not violate the letter or the ethos of Article 19. It stated that Article 19(1) does not guarantee the activity of committing a murder. Further, it held that the provision of death penalty also does not violate Article 21. It observed that Article 21 recognises the right of the State to deprive a person of his life or personal liberty in accordance with fair, just and reasonable procedure established by a valid law. However, the court held that the death penalty for murder should be an exception rather than the rule. It said that this penalty must be confined to the 'rarest of rare cases', when the alternative option is unquestionably foreclosed. Further, it said that while making the choice of death penalty, the exceptional and grave circumstances of both the crime as well as the criminal should be taken into consideration.

Rarest of rare doctrine: Impact of the Judgement: This judgement led to the laying down of the doctrine of 'rarest of rare cases' for awarding the death penalty. This doctrine influenced the later judgements delivered by the Supreme Court in various subsequent cases.

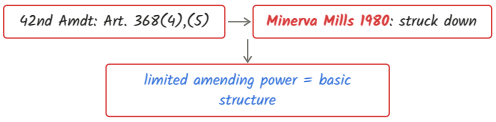
Landmark Judgements – 5 (1980–1985)

Minerva Mills Case (1980)

Name of the Case	Minerva Mills vs. Union of India
Year of Judgement	1980
Popular Name	—
Related Topic/Issue	Basic structure of the constitution
Related Article/Schedule	31C & 368

Limited amending power is basic structure: Supreme Court Judgement: It invalidated Clauses (4) and (5) of Article 368 which were inserted by the 42nd Amendment Act (1976). Similarly, the amendment made to Article 31C by the 42nd Amendment Act (1976) was also declared as unconstitutional. The Court said that the above changes made by the 42nd Amendment Act (1976) destroyed the basic structure of the constitution. It held the limited power of Parliament to amend the constitution, judicial review and the harmony and balance between fundamental rights and directive principles as basic features of the constitution.

42nd Amendment dilution nullified: Impact of the Judgement: This judgement has nullified the attempt to dilute the doctrine of the basic structure by the 42nd Amendment Act (1976). This amendment had conferred an unlimited and uncontrolled amending power on the Parliament. The Supreme Court held that the Parliament cannot, under Article 368, expand its amending power so as to acquire for itself the right to repeal or abrogate the constitution or to destroy its basic features. Further, this amendment also gave precedence to all directive principles over the fundamental rights conferred by Articles 14, 19 and 3111. The Supreme Court, in this regard, held that anything that destroys the balance between the fundamental rights and the directive principles will ipso facto destroy an essential element of the basic structure of the constitution.



Waman Rao Case (1980)

Name of the Case	Waman Rao vs. Union of India
Year of Judgement	1980
Popular Name	—
Related Topic/Issue	Judicial review of the ninth schedule
Related Article/Schedule	368 & Ninth Schedule

Ninth Schedule – 24 April 1973 cut-off: Supreme Court Judgement: It held that all the amendments to the constitution which were made before 24 April 1973 (the date on which the court delivered its verdict in the Kesavananda Bharati case) and by which the Ninth Schedule was amended from time to time by the inclusion of various Acts and Regulations therein are valid. But, all the amendments made after 24 April 1973 are open to challenge on the ground that they are beyond the constituent power of the Parliament, since they damage the basic structure of the Constitution. In other words, the various amendments by which additions were made to the Ninth Schedule after 24 April 1973 will be valid only if they do not damage the basic structure of the constitution.

Shah Bano Case (1985)

Name of the Case	Mohd. Ahmed Khan vs. Shah Bano
Year of Judgement	1985
Popular Name	—
Related Topic/Issue	Maintenance of a divorced Muslim wife
Related Article/Schedule	—

Maintenance under Sec. 125 CrPC: Supreme Court Judgement: It upheld the judgement of the High Court of Madhya Pradesh. It ruled that a Muslim husband is liable to pay maintenance to the divorced wife beyond the period of iddat. It held that Section 125 of the Code of Criminal Procedure, 1973 is secular in character and applies to all religions and communities. It said that this section would prevail over the personal law, in case of a conflict between the two. It also said that Mahr (or dower) does not absolve a Muslim husband from payment of maintenance to the divorced wife. Further, it also emphasized that a uniform civil code will help the cause of national integration by removing disparate loyalties to laws which have conflicting ideologies.

Muslim Women Act 1986: Impact of the Judgement: This judgement led to the enactment of a new law called the Muslim Women (Protection of Rights on Divorce) Act, 1986. This Act overturned the above judgement by allowing the payment of maintenance to a divorced wife only during the period of iddat. In Danial Latifi case[12] (2001), the Supreme Court upheld the constitutional validity of this Act but held that a Muslim husband is liable to pay the maintenance to the divorced wife even after the period of iddat.

Landmark Judgements – 6 (1986–1992)

D.C. Wadhwa Case (1986)

Name of the Case	D.C. Wadhwa vs. State of Bihar
Year of Judgement	1986
Popular Name	—
Related Topic/Issue	Ordinance-making power of the Governor
Related Article/Schedule	213

Re-promulgation is fraud on Constitution: Supreme Court Judgement: It pointed out that between 1967-1981, the Governor of Bihar promulgated 256 ordinances and all these were kept in force for periods ranging from 1 to 14 years by repromulgation from time to time. It held that the exceptional power under Article 213 cannot be used as a substitute for the law-making power of the State Legislature. It ruled that such a practice would be a 'subversion of the democratic process' and a 'fraud on the constitution'. It opined that the ordinancemaking power is meant for meeting an extraordinary situation and it cannot be allowed to be 'perverted to serve political ends'. Accordingly, it declared the re-promulgated Bihar Intermediate Education Council Ordinance, 1985 as unconstitutional and invalid.

Check on ordinance raj: Impact of the Judgement: This judgement clearly exposed the fact that the ordinance-making power can be misused by the executive government.

M.C. Mehta Case (1986)

Name of the Case	M.C. Mehta vs. Union of India
Year of Judgement	1986
Popular Name	Oleum Gas Leak case
Related Topic/Issue	Power of the Supreme Court to award compensation
Related Article/Schedule	21 & 32

Article 32 – remedial power: Supreme Court Judgement: It held that its power under Article 32 is not only injective in ambit, i.e., preventing the infringement of fundamental right but also remedial in scope and providing relief against a breach of the fundamental right already committed. It stated that its power to grant such remedial relief may include the power to award compensation in appropriate cases. It clarified that the infringement of the fundamental right must be gross and patent i.e., incontrovertible and ex facie glaring. It observed that the instant applications for compensation are for the enforcement of the fundamental right to life enshrined in Article 21 and hence, they are maintainable under Article 32.

Absolute (no-fault) liability: Impact of the Judgement: This judgement led to the expansion of the ambit of Environmental Law in the country. It introduced the new principle of absolute liability (no-fault liability) in the place of the earlier principle of strict liability.

Kihoto Hollohan Case (1992)

Name of the Case	Kihoto Hollohan vs. Zachillhu
Year of Judgement	1992
Popular Name	Defection case
Related Topic/Issue	Validity of anti- defection law
Related Article/Schedule	368 & Tenth Schedule

Paragraph 7 invalid – rest of Tenth Schedule upheld: **Supreme Court Judgement:** It declared paragraph 7 of the Tenth Schedule (which was inserted by the 52nd Amendment Act, 1985) as unconstitutional for violating the provision under Article 368(2). It held that paragraph 7 required to be ratified by at least half of the State Legislatures for excluding the jurisdiction of the Supreme Court under Article 136 and the High Courts under Article 226. However, the court upheld the validity of the remaining part of the Tenth Schedule.

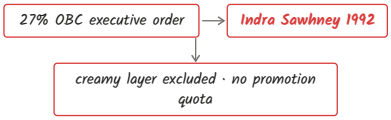
Landmark Judgements – 7 (1992–1993)

Indra Sawhney Case (1992)

Name of the Case	Indra Sawhney vs. Union of India
Year of Judgement	1992
Popular Name	Mandal case
Related Topic/Issue	Reservation for OBCs in government jobs
Related Article/Schedule	16

27% OBC quota – with conditions: **Supreme Court Judgement:** It upheld the validity of the impugned executive order which provided 27% reservation of jobs to the OBCs under the provision of Article 16(4), with certain conditions like exclusion of creamy layer, no reservation in promotions, maximum reservation should not exceed 50%, ceiling of 50% on reservation in backlog vacancies, no relaxation in qualifying marks for promotions and so on. On the other hand, it invalidated another impugned executive order which provided 10% additional reservation of jobs for other economically backward sections who are not covered by any existing schemes of reservation.

Creamy layer & National Commission for BCs: **Impact of the Judgement:** This judgement led to the following: (i) Appointment of the Ram Nandan Committee to identify the creamy layer among the OBCs; (ii) Establishment of the statutory National Commission for BCs[13] to examine the complaints of under-inclusion, over-inclusion or non-inclusion of any class of citizens in the list of BCs; and (iii) Enactment of five amendment acts, namely, the 76th Amendment Act, 1994 that has placed the Tamil Nadu reservation act in the Ninth Schedule; the 77th Amendment Act, 1995 that has nullified the ruling with regard to reservation in promotions; the 81st Amendment Act, 2000 that has nullified the ruling with regard to backlog vacancies; the 82nd Amendment Act, 2000 that has provided for relaxations in qualifying marks and standards of evaluation in matters of reservation in promotions; and the 85th Amendment Act, 2001 that has provided for consequential seniority in matters of promotion by virtue of rule of reservation for the SCs and STs.



Mohini Jain Case (1992)

Name of the Case	Mohini Jain vs. State of Karnataka
Year of Judgement	1992
Popular Name	Capitation Fee case
Related Topic/Issue	Right to education
Related Article/Schedule	21 & 41

Right to education under Art. 21: **Supreme Court Judgement:** It ruled that the right to education is a fundamental right under Article 21. In fact, it declared that this right extends up to any level including the professional education like engineering and medicine. It observed that the right to life under Article 21 and the dignity of an individual cannot be assured unless it is accompanied by the right to education. It argued that without making right to education under Article 41 a reality, the fundamental rights enshrined under Part III shall remain beyond the reach of the large majority which is illiterate. It thus declared that the right to education is concomitant to the fundamental rights. It further observed that the state is under a constitutional mandate to provide educational institutions at all levels for the benefit of the citizens. It declared that charging capitation fee for admission amounted to a patent denial of a citizen's right to education and is wholly arbitrary and as such violative of Article 14. It described the capitation fee as nothing but a price for selling education. It opined that the concept of "teaching shops" is contrary to the constitutional scheme.

Basis for Unni Krishnan: **Impact of the Judgement:** This judgement formed the basis for the later judgement delivered by the Supreme Court in the Unni Krishnan case[14] (1993) that led to the passing of the 86th Amendment Act (2002). In this case, the Supreme Court was asked to examine the correctness of the Mohini Jain's judgement. The petitioners contended that if the Mohini Jain's judgement was followed by the state governments, they would have to close down their engineering and medical colleges. In this later judgement, the Supreme Court party upheld and partly overruled the Mohini Jain's judgement. This is explained below in the next case.

Unni Krishnan Case (1993)

Name of the Case	Unni Krishnan vs. State of A.P.
Year of Judgement	1993
Popular Name	—
Related Topic/Issue	Right to education
Related Article/Schedule	21 & 45

Free education till 14: **Supreme Court Judgement:** It held that the right to education is a fundamental right under Article 21 and that this right directly flows from the right to life. But, it declared that only children have right to free education until they complete the age of 14 years. After that age, the obligation of the state to provide education depends on its economic capacity and development. The court also said that the state is obliged to follow directions contained in Article 45 which originally (prior to its amendment in 2002) provided for free and compulsory education for all children upto the age of 14 years. The Article 21 is to be construed in the light of Articles 41, 45 and 46 contained in Part IV dealing with the Directive Principles of State Policy. The obligations created by Articles 41, 45 and 46 can be discharged by the state either by establishing its own institutions or by aiding, recognising or granting affiliation to private educational institutions. Further, the court held that the private unaided educational institutions running professional courses like engineering and medical are entitled to charge a higher fee than that of the government institutions. But such a fee cannot exceed the ceiling fixed in this regard and commercialisation of education is not permissible.

86th Amendment – Art. 21A: **Impact of the Judgement:** Subsequent to this judgement, the 86th Amendment Act (2002) was passed. This amendment added a new Article 21A which makes the right to education an independent fundamental right. This Article declares that the state shall provide free and compulsory education to all children of the age of six to fourteen years in such a manner as the state may determine. To give effect to this Article, the Parliament enacted the Right of children to Free and Compulsory Education (RTE) Act, 2009.

Landmark Judgements – 8 (1993–1997)

Supreme Court Advocates-on-Record Association Case (1993)

Name of the Case	Supreme Court Advocates- on-Record Association vs. Union of India
Year of Judgement	1993
Popular Name	Second Judges case
Related Topic/Issue	Appointment of Supreme Court and High Court Judges
Related Article/Schedule	124 & 217

Collegium – CJI primacy: **Supreme Court Judgement:** It overruled its earlier judgement delivered in the S.P. Gupta case[15] (1981) which is popularly known as the First Judges case. It held that the judges of the Supreme Court and High Courts shall be appointed by the President in accordance with the advice tendered by the Chief Justice of India. But the Chief Justice of India shall tender such advice after taking into consideration the views of two of his senior most colleagues. This means that the court has changed the meaning of the word 'consultation' in Articles 124 (2) and 217(1) to that of 'concurrence'. Further, it held that the senior-most judge of the Supreme Court should be appointed as the Chief Justice of India.

Memorandum of Procedure: **Impact of the Judgement:** Consequent to this judgement and also the Advisory Opinion tendered in the Third Judges case[16] (1998), a Memorandum of Procedure for appointment of judges to the Supreme Court and the High Courts was formulated, and is being followed for appointment. This procedure, invented by the judiciary, is known as the "collegium system".

S.R. Bommai Case (1994)

Name of the Case	S.R. Bommai vs. Union of India
Year of Judgement	1994
Popular Name	—
Related Topic/Issue	President's rule
Related Article/Schedule	356

Judicial review of President's Rule: **Supreme Court Judgement:** It upheld the constitutional validity of the imposition of President's rule under Article 356 in Madhya Pradesh, Himachal Pradesh and Rajasthan in 1992. On the other hand, it declared the imposition of President's Rule in Nagaland in 1988, Karnataka in 1989 and Meghalaya in 1991 as unconstitutional and invalid. Further, it laid down the following propositions with respect to Article 356: (a) The validity of the proclamation issued by the President under Article 356(1) is subject to judicial review; (b) Burden lies on the Union Government to prove that the relevant material existed to justify the proclamation; (c) Article 74(2) is not a bar against the scrutiny of the material on the basis of which the President had arrived at his satisfaction; (d) If the proclamation issued by the President is held invalid, then notwithstanding the fact that it is approved by both the Houses of Parliament, it will be open for the court to restore the Legislative Assembly and the Ministry; and (e) Secularism is a part of the basic structure of the constitution and hence, the anti-secular acts of a State Government can lawfully be deemed to be a ground for the imposition of the President's Rule.

Check on misuse of Art. 356: **Impact of the Judgement:** This judgement placed a check on the arbitrary exercise of power under Article 356 by the Centre for the purpose of imposing President's Rule in the States.

Vishaka Case (1997)

Name of the Case	Vishaka vs. State of Rajasthan
Year of Judgement	1997
Popular Name	—
Related Topic/Issue	Sexual harassment of women at workplace
Related Article/Schedule	15 & 21

Sexual harassment violates Arts. 15 & 21: Supreme Court Judgement: It held that the sexual harassment of women at the workplace is a violation of Articles 15 and 21. It said that it is the duty of the employer or other responsible person in workplaces or other institutions, whether public or private, to prevent sexual harassment of working women. It gave detailed directions on the subject, whose guidelines are to be strictly observed by all employees, public or private, until suitable legislation is enacted on the subject.

Vishaka Guidelines: Impact of the Judgement: By laying down a set of guidelines (which came to be known as the 'Vishaka Guidelines'), this judgement filled the legislative vacuum on the subject. Till this time, there was no domestic law to address this issue except a few provisions of the Indian Penal Code. Later, the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 was enacted to provide protection against sexual harassment of women at workplace and for the prevention and redressal of complaints of sexual harassment.

Landmark Judgements – 9 (1997–2002)

Vineet Narain Case (1997)

Name of the Case	Vineet Narain vs. Union of India
Year of Judgement	1997
Popular Name	Jain Hawala case
Related Topic/Issue	Autonomy and efficient functioning of CBI
Related Article/Schedule	—

CVC supervision of CBI: Supreme Court Judgement: It directed that statutory status should be conferred upon the Central Vigilance Commission (CVC). It also issued directions to make the Central Bureau of Investigation (CBI) an autonomous body so that it can function effectively and efficiently and is viewed as a non-partisan agency. It issued the similar directions with respect to the Enforcement Directorate (ED). Further, it also struck down the validity of the arbitrary provision of Single Directive that required the CBI to obtain the prior permission of the Central Government before conducting an investigation against the officers of the rank of Joint Secretary and above.

CVC Act 2003: Impact of the Judgement: This judgement led to the enactment of the CVC Act, 2003 that conferred the Statutory Status upon the CVC. Under this Act, the superintendence of the CBI in so far as it relates to the investigation of corruption cases has been vested in the CVC. Further, this Act also reinstated the provision of Single Directive that was again declared invalid by the Supreme Court in 2014 on the ground that it is violative of Article 14.

Association for Democratic Reforms Case (2002)

Name of the Case	Union of India vs. Association for Democratic Reforms
Year of Judgement	2002
Popular Name	Poll Reforms case
Related Topic/Issue	Criminalization of politics
Related Article/Schedule	19

Voters' right to know: Supreme Court Judgement: It held that a voter has a right to know about the antecedents including criminal past of his candidate as part of his right under Article 19(1)(a) i.e., freedom of speech and expression. Voter's speech or expression in case of election would include casting of votes, that is to say voter speaks out or expresses by casting vote. For this purpose, information about the candidate to be selected is a must. Democracy cannot survive without free and fair elections, without free and fairly informed voters. Therefore, the court directed the Election Commission to make it mandatory for the candidates to furnish information on the following aspects: (a) Whether the candidate is convicted/acquitted/discharged of any criminal offence in the past – if any, whether he is punished with imprisonment or fine; (b) Prior to six months of filing of nomination, whether the candidate is accused in any pending case, of any offence punishable with imprisonment for two years or more, and in which charge is framed or cognizance is taken by the court of law. If so, the details thereof; (c) The assets (immovable, movable, bank balance, etc.) of a candidate and of his/her spouse and that of dependents; (d) Liabilities, if any, particularly whether there are any over dues of any public financial institution or government dues; and (e) The educational qualifications of the candidate.

Candidate disclosure order (2003): Impact of the Judgement: As a sequel to this judgement, the Election Commission issued in 2003 an order[17] directing every candidate seeking election to the Parliament or a State Legislature to furnish on his nomination paper the information on the above (a) to (e) matters. Furnishing of any false information in the affidavit is now an electoral offence.

T.M.A. PAI Foundation Case (2002)

Name of the Case	T.M.A. Pai Foundation vs. State of Karnataka
Year of Judgement	2002
Popular Name	—
Related Topic/Issue	Rights of minority educational institutions
Related Article/Schedule	29 & 30

Minority institutions' autonomy: Supreme Court Judgement: It laid down the following propositions with respect to the rights of and the permissible restrictions upon minority educational institutions (both aided and unaided): (a) Linguistic and religious minorities are covered by the expression "minority" under Article 30. Since reorganization of the states in India has been on linguistic lines, therefore, for the purpose of determining the minority, the unit will be the State and not the whole of India. Thus, religious and linguistic minorities, who have been put at par in Article 30, have to be considered state-wise; (b) Article 30(1) gives religious and linguistic minorities the right to establish and administer educational institutions of their choice. The use of the words "of their choice" indicates that even professional educational institutions would be covered by Article 30; (c) Admission of students to unaided minority educational institutions, cannot be regulated by the State government or the university (except for providing the qualifications and minimum conditions of eligibility in the interest of academic standards); (d) The right to administer, not being an absolute one, there could be regulatory measures for ensuring educational standards and maintaining excellence thereof; (e) The moment aid is received by a minority educational institution, it would be governed by Article 29(2) and would then not be able to refuse admission on grounds of religion, race, caste, language or any of them. In other words, it cannot then give preference to students of its own community; (f) In the case of aided professional institutions, it can also be stipulated that passing of common entrance test held by the state agency is necessary to seek admission; and (g) A minority institution may have its own procedure and method of admission as well as selection of students, but such procedure must be fair and transparent and selection of students in professional and higher educational colleges should be on the basis of merit.

93rd Amendment – Art. 15(5): Impact of the Judgement: In order to overcome the effect of this judgement and also the judgement delivered in the Inamdar case[18] (2005), the 93rd Amendment Act (2005) was enacted. This amendment inserted a new Clause (5) in Article 15. This clause empowered the state to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the scheduled castes or the scheduled tribes regarding their admission to educational institutions. This provision also includes private educational institutions, whether aided or unaided by the state, except the minority educational institutions under Article 30(1).

Landmark Judgements – 10 (2004–2006)

Naveen Jindal Case (2004)

Name of the Case	Union of India vs. Naveen Jindal
Year of Judgement	2004
Popular Name	—
Related Topic/Issue	Right to fly the national flag
Related Article/Schedule	19

Flag hoisting – Art. 19(1)(a): Supreme Court Judgement: It held that the right to fly the national flag freely with respect and dignity is a fundamental right of a citizen within the meaning of the freedom of speech and expression guaranteed by Article 19(1)(a). This right is an expression and manifestation of a citizen's allegiance and feelings and sentiments of pride for the nation. However, it cannot be used for commercial purpose or otherwise.

Prakash Singh Case (2006)

Name of the Case	Prakash Singh vs. Union of India
Year of Judgement	2006
Popular Name	—
Related Topic/Issue	Police reforms
Related Article/Schedule	—

Police reforms – seven directives: Supreme Court Judgement: It issued seven directives to the central government, state governments and union territories aimed at bringing in police reforms to ensure that the police machinery functions without any political interference. These are: (i) constitution of a State Security Commission; (ii) Selection of the DGP from amongst the three senior-most officers empanelled by the UPSC for the post and a minimum tenure of two years for the DGP, (iii) a minimum tenure of two years also for the police officers on operational duties, (iv) separation of the investigation police from the law and order police, (v) setting up a Police Establishment Board, (vi) setting up Police Complaints Authority at state and district levels, and (vii) setting up a National Security commission at the central level.

Partial police reforms: Impact of the Judgement: This judgement led to the introduction of police reforms in the country but only partially and not fully. Also, it could not eliminate the political interference in the functioning of the police system, especially in the postings and transfers. Although State Security Commissions and Police Establishment Boards have been set-up in most of the states, they are not very effective in their functioning and lack the authority to make binding recommendations. However, in various cases, the High Courts have issued orders asking the statement governments to comply with the above directives of the Supreme Court.

M. Nagaraj Case (2006)

Name of the Case	M. Nagaraj vs. Union of India
Year of Judgement	2006
Popular Name	—
Related Topic/Issue	Reservation in promotions for SCs and STs
Related Article/Schedule	16 & 335

Promotion quota amendments upheld: **Supreme Court Judgement:** It upheld the constitutional validity of the 77th Amendment Act (1995) the 81st Amendment Act (2000), the 82nd Amendment Act (2000) and the 85th Amendment Act (2001). It said that the impugned Constitutional Amendment Acts by which Article 16(4A) and Article 16(4B) have been inserted flow from Article 16(4). They do not alter the structure of Article 16(4). They retain the controlling factors or the compelling reasons, namely, backwardness and inadequacy of representation which enable the State to provide for reservation keeping in mind the overall efficiency of the State administration under Article 335. These impugned amendments are confined only to Scheduled Castes and Scheduled Tribes. They do not obliterate any of the constitutional requirements, namely, ceiling limit of 50% (quantitative limitation), the concept of creamy layer (qualitative exclusion), the sub-classification between the OBCs on the one hand and the SCs and the STs on the other hand as held in the Indra Sawhney case[19] (1992) and the concept of post-based roster with inbuilt concept of replacement as held in the R.K. Sabharwal case[20] (1995).

Landmark Judgements – II (2007–2013)

I.R. Coelho Case (2007)

Name of the Case	I.R. Coelho vs. State of Tamil Nadu
Year of Judgement	2007
Popular Name	Ninth Schedule case
Related Topic/Issue	Judicial review of the ninth schedule
Related Article/Schedule	31B & Ninth Schedule

Ninth Schedule laws reviewable: **Supreme Court Judgement:** It reaffirmed its judgement delivered in the Waman Rao case[21] (1980). Therefore, it held that the amendments to the Constitution made on or after 24 April 1973 (i.e., the date of verdict in the Kesavananda Bharati case[22]) by which the Ninth Schedule is amended by inclusion of various laws therein would be open to challenge on the ground that they damage or destroy the basic structure of the Constitution. In addition, it laid down certain tests which are to be applied for deciding the validity of those constitutional amendments. The fundamental question before the court was whether on or after 24 April 1973, when basic structure doctrine was propounded, it is permissible for the Parliament under Article 31B to immunize legislations from fundamental rights by inserting them into the Ninth Schedule and, if so, what is its effect on the power of judicial review of the court.

Aruna Ramachandra Shanbaug Case (2011)

Name of the Case	Aruna Ramachandra Shanbaug vs. Union of India
Year of Judgement	2011
Popular Name	—
Related Topic/Issue	Euthanasia
Related Article/Schedule	21

Passive euthanasia allowed: **Supreme Court Judgement:** It held that active euthanasia and assisted death are not permissible and hence, continue to be illegal, whereas passive euthanasia is permissible with certain conditions, safeguards and procedure laid down by the court: (i) A decision has to be taken to discontinue life support either by the parents or the spouse or other close relatives, or in the absence of any of them, such a decision can be taken even by a person acting as a next friend or by the doctors attending the patient; (ii) Even if a decision is taken by the near relatives or doctors or next friend to withdraw life support, such a decision requires approval from the High Court concerned; (iii) When such an application is filed, the Chief Justice of the High Court should forthwith constitute a Bench of at least two Judges who should decide to grant approval or not. Before doing so the Bench should seek the opinion of a committee of three reputed doctors to be nominated by the Bench; and (iv) The High Court Bench shall also issue notice to the State and close relatives e.g. parents, spouse, brothers/sisters etc. of the patient, and in their absence his/her next friend, and supply a copy of the report of the doctor's committee to them. After hearing them, the High Court bench should give its verdict.

People's Union for Civil Liberties Case (2013)

Name of the Case	People's Union for Civil Liberties vs. Union of India
Year of Judgement	2013
Popular Name	NOTA case
Related Topic/Issue	Electoral reforms
Related Article/Schedule	14, 19 & 21

Right not to vote – secrecy: **Supreme Court Judgement:** It held that Rules 41(2) & (3) and 49-O of the Conduct of Election Rules, 1961 (which recognize the right of a voter not to vote) are ultra-vires Section 128 of the Representation of the People Act, 1951 and Article 19(1)(a) of the Constitution to the extent they violate secrecy of voting. Therefore, it directed the Election Commission to provide necessary provision in the ballot papers/EVMs and another button called "None of the Above" (NOTA) may be provided in EVMs so that the voters, who come to the polling booth and decide not to vote for any of the candidates in the fray, are able to exercise their right not to vote while maintaining their right of secrecy. The court made the following observations: (i) In order to protect the right in terms of Section 79(d) and Rule 49-O, viz., "right not to vote", this court is competent to issue directions that secrecy of a voter who decides not to cast his vote has to be protected in the same manner as the Statute has protected the right of a voter who decides to cast his vote in favour of a candidate; (ii) This court is also justified in giving such directions in order to give effect to the right of expression under Article 19(1)(a) and to avoid any discrimination by directing the Election Commission to provide NOTA button in the EVMs; (iii) Article 19 guarantees all individuals the right to speak, criticize, and disagree on a particular issue. It stands on the spirit of tolerance and allows people to have diverse views, ideas and ideologies. Not allowing a person to cast vote negatively defeats the very freedom of expression and the right ensured in Article 21 i.e., the right to liberty; and (iv) Protection of elector's identity and affording secrecy is integral to free and fair elections and an arbitrary distinction between the voter who casts his vote and the voter who does not cast his vote is violative of Article 14.

NOTA option: **Impact of the Judgement:** Subsequent to this judgement, the Election Commission made provision in the ballot papers/EVMs for None of the Above (NOTA) option. The provision for NOTA has been made since General Election to State Legislative Assemblies of Chhattisgarh, MP, Mizoram, NCT of Delhi and Rajasthan in 2013 and continued in the General Election to State Legislative Assemblies of Andhra Pradesh, Arunachal Pradesh, Odisha and Sikkim in 2014 along with the General Elections to the Sixteenth Lok Sabha (2014)[23].

Landmark Judgements – 12 (2013–2014)

LILY THOMAS CASE (2013)

Name of the Case	Lily Thomas vs. Union of India
Year of Judgement	2013
Popular Name	—
Related Topic/Issue	Criminalization of politics
Related Article/Schedule	102 & 191

Sec. 8(4) RPA struck down: **Supreme Court Judgement:** It held that the members of the Parliament and the State Legislatures, who have been convicted for offences, will loose their membership of the House immediately (i.e., the disqualification takes place from the date of conviction). It struck down Section 8(4) of the Representation of the People Act, 1951 and declared the same as unconstitutional. Under this Section, the convicted members of the Parliament and the State Legislatures are given three months time to appeal in the higher court and get a stay on their conviction and sentence by the trial court. The court ruled that the Parliament does not have the power under Articles 102 and 191 to make different laws for a person to be disqualified for being chosen as a member and for a person to be disqualified for continuing as a member of the Parliament or the State Legislature. Hence, the above Section 8(4), which carved out a saving in the case of a sitting member from disqualification, is beyond the powers conferred on the Parliament and is ultra vires the constitution.

Immediate disqualification of convicted legislators: **Impact of the Judgement:** This judgement led to the immediate disqualification of a number of convicted members of the Parliament and the State Legislatures. In order to nullify this ruling of the Supreme Court, the Representation of the People (Second Amendment and Validation) Bill, 2013 was introduced in the Parliament. However, this Bill was later withdrawn by the Government.

T.S.R. Subramanian Case (2013)

Name of the Case	T.S.R. Subramanian vs. Union of India
Year of Judgement	2013
Popular Name	—
Related Topic/Issue	Civil service reforms
Related Article/Schedule	—

Civil service reforms: **Supreme Court Judgement:** It issued various directions to the central government, state governments and union territories aimed at bringing in civil service reforms for the effective, efficient and transparent administration as well as the accountability and stability of civil servants. These are (i) constitution of the Civil Service Boards to guide and advice the governments on transfers, postings, disciplinary action and other service matters, (ii) providing a fixed minimum tenure of service to various civil servants, and (iii) mandating that the civil servants should not act on the basis of verbal or oral instructions, orders, suggestions, proposals and directions and these should be in writing and also formally recorded if given orally.

Cadre Rules amended (2014): **Impact of the Judgement:** This judgement led to the making of amendments in Rule 7 of the IAS, IPS and IFoS (Cadre) Rules vide a notification issued in 2014. For the Central Services, the respective Cadre Controlling Authorities have been directed to implement the above directions of the Supreme Court. However, the Civil Service Boards in the States/UTs are not functioning effectively.

NATIONAL LEGAL SERVICES AUTHORITY CASE (2014)

Name of the Case	National Legal Services Authority vs. Union of India
Year of Judgement	2014
Popular Name	—
Related Topic/Issue	Rights of transgender persons
Related Article/Schedule	14 & 21

Third gender recognised: Supreme Court Judgement: It declared Transgenders along with Hijaras/Eunuchs as 'third gender' and held that the fundamental rights granted under Part III of the constitution are equally applicable to them. It also upheld Transgender persons' right to decide their self-identified gender and directed the Central and State Governments to grant legal recognition of their gender identity such as male, female or as third gender. It also directed the Central and State Governments to take steps to treat them as socially and educationally backward classes of citizens and extend all kinds of reservation in cases of admission in educational institutions and for public appointments. The court held that non-recognition of Transgender denies them equal protection of law under Article 14. If further held that Article 21 protects one's right of self-determination of the gender to which a person belongs. In other words, gender identify is integral to the dignity of an individual and is at the core of 'personal autonomy' and 'self-determination'.

Transgender Persons Act 2019: Impact of the Judgement: This judgement led to the enactment of the Transgender Persons (Protection of Rights) Act, 2019. The objective of this act is to provide for protection of rights of transgender persons and their welfare. This act prohibits discrimination against transgender persons and confers right upon them to be recognized as such, and a right to self-perceived gender identity.

Landmark Judgements – 13 (2015–2017)

Shreya Singhal Case (2015)

Name of the Case	Shreya Singhal vs. Union of India
Year of Judgement	2015
Popular Name	—
Related Topic/Issue	Restrictions on online speech
Related Article/Schedule	19

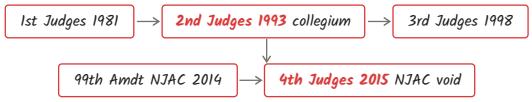
Section 66A struck down: Supreme Court Judgement: It struck down section 66A of the Information Technology Act (2000), which provides punishment for sending offensive messages by any person through a computer resource or a communication device. It held that the section in its entirety is violative of the freedom of speech and expression guaranteed under Article 19(1)(a). It further held that the section is not saved by Article 19(2) as it creates an offence which is vague and over-broad. It also held that the wider range of circulation over the internet cannot restrict the content of the right under Article 19(1)(a) nor can it justify the denial of that right.

SUPREME COURT ADVOCATES-ON-RECORD ASSOCIATION CASE (2015)

Name of the Case	Supreme Court Advocates-on-Record Association vs. Union of India
Year of Judgement	2015
Popular Name	Fourth Judges case or NJAC case
Related Topic/Issue	Appointment of Supreme Court and High Court Judges
Related Article/Schedule	124 & 217

NJAC unconstitutional: Supreme Court Judgement: It declared the 99th Amendment Act (2014) as unconstitutional and void on the ground that it affects the independence of judiciary which is one of the components of the basic structure of the constitution. It also declared the National Judicial Appointments Commission Act (2014) as unconstitutional and void. Further, it declared the earlier 'collegium system' of appointment of judges to the Supreme Court and the High Courts to be operative. It ordered to list the case to consider introduction of appropriate measures, if any, for an improved working of the 'collegium system'.

Collegium revived: Impact of the Judgement: Consequent to this judgement, both the 99th Amendment Act (2014) as well as the National Judicial Appointments Commission Act (2014) became invalid. Therefore, the earlier collegium system of appointment of judges to the Supreme Court and the High Courts was restored.



Shayara Bano Case (2017)

Name of the Case	Shayara Bano vs. Union of India
Year of Judgement	2017
Popular Name	Triple Talaq case
Related Topic/Issue	Divorce in the muslim community
Related Article/Schedule	14

Triple talaq void: Supreme Court Judgement: It declared triple talaq i.e., 'talaq-e-biddat' (the Muslim practice that allows men to instantly divorce their wives) as unconstitutional. It held that this form of talaq is manifestly arbitrary in the sense that the marital tie can be broken capriciously and whimsically by a muslim man without any attempt at reconciliation so as to save it. Therefore, the court held this form of talaq to be violative of the fundamental right contained under Article 14 of the Constitution. Similarly, it declared Section 2 of the Muslim Personal Law (Shariat) Application Act, 1937, as void to the extent that it recognizes and enforces triple talaq. Further, it ruled that triple talaq is against the basic tenets of the Holy Quran and what is held to be bad in the Holy Quran, cannot be good in Shariat and, in that sense, what is bad in theology is bad in law as well. Moreover, the court directed the central government to make a law within six months to govern divorce in the muslim community. Till then, an injunction order of the court against the pronouncement of triple talaq would be in force.

Triple Talaq Act 2019: Impact of the Judgement: This judgement led to the enactment of the Muslim Women (Protection of Rights on Marriage) Act, 2019. This act is popularly known as the Triple Talaq Act. It protects the rights of married Muslim women and prohibits divorce by pronouncing talaq by their husbands.

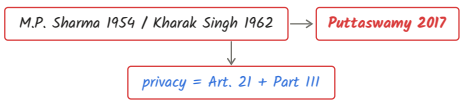
Landmark Judgements – 14 (2017–2018)

K.S. PUTTASWAMY CASE (2017)

Name of the Case	K.S. Puttaswamy vs. Union of India
Year of Judgement	2017
Popular Name	Right to privacy case
Related Topic/Issue	Fundamental right to privacy
Related Article/Schedule	21

Privacy a fundamental right: Supreme Court Judgement: It declared right to privacy as a fundamental right. It ruled that right to privacy is protected as an intrinsic part of right to life and personal liberty under Article 21 and as a part of the freedoms guaranteed by Part III of the Constitution. It said that privacy safeguards individual autonomy and recognizes the ability of the individual to control vital aspects of his life. However, it also stated that the right to privacy is not an absolute right and hence, is subject to reasonable restrictions which are placed on fundamental freedoms under Part III of the Constitution. This means that a law which encroaches upon privacy will have to withstand the touchstone of permissible restrictions on fundamental freedoms. In the context of Article 21, an invasion of privacy must be justified on the basis of a law which stipulates a procedure which is fair, just and reasonable. The law must also be valid with reference to the encroachment on life and personal liberty under Article 21. An invasion of life or personal liberty must meet the three-fold requirement of: (i) legality, which stipulates the existence of law; (ii) need, defined in terms of a legitimate state aim; and (iii) proportionality, which ensures a rational nexus between the objects and the means adopted to achieve them.

Overruled M.P. Sharma & Kharak Singh: Impact of the Judgement: This judgement over-ruled the two earlier judgements delivered in M.P. Sharma case[24] (1954) and Kharak Singh case[25] (1962). In both the cases, the Supreme Court had held that the right to privacy is not protected by the Constitution. This judgement also clarified that the various judgements subsequent to Kharak Singh, which have recognized the fundamental right to privacy, lay down the correct position of law. Further, this judgement influenced the later judgements delivered by the Supreme Court in Indian Young Lawyers Association case26(2018), Joseph Shine case[27] (2018), Navtej Singh Johar case[28] (2018) and other cases. Based on this judgement, the Supreme Court delivered (in 2018) a separate judgement on the validity of Aadhaar law. This judgement is popularly known as the Aadhaar judgement or Puttaswamy-II judgement. In this judgement, the Supreme Court upheld the constitutional validity of the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016. It ruled that the requirement under the Aadhaar Act to give one's demographic and biometric information does not violate the fundamental right of privacy. It said that the Aadhaar Act does not create an architecture for pervasive surveillance and provides protection and safety of the data received from individuals. However, the court struck down certain provisions of the Act and suggested changes. Accordingly, the Aadhaar and Other Laws (Amendment) Act, 2019 was enacted.



INDIAN YOUNG LAWYERS ASSOCIATION CASE (2018)

Name of the Case	Indian Young Lawyers Association vs. State of kerala
Year of Judgement	2018
Popular Name	Sabarimala case
Related Topic/Issue	Women's entry into Sabarimala temple
Related Article/Schedule	14, 21 & 25

Sabarimala – women's entry: **Supreme Court Judgement:** It held that the women of all ages can enter into the Sabarimal temple and worship Lord Ayyappa. It declared that the ban on the entry of women of the age group of 10-50 years into the temple, is unconstitutional. It held that the ban violates the right to equality under Article 14, the right to personal liberty under Article 21 and the right to freedom of religion under Article 25. Accordingly, it struck down Rule 3(b) of the Kerala Hindu places of Public Worship (Authorisation of Entry) Rules, 1965 which prohibits the entry of women into the temple.

Protests and resistance: **Impact of the Judgement:** This judgement led to the protests and hartals by lakhs of devotees of Lord Ayyappa in Kerala. On the other hand, some women made attempts to enter the temple. But they faced strong resistance from the devotees as well as temple priests and authorities. However, there were some successful attempts also. In November, 2019, the five-judge Sabarimala Review Bench has referred this case to a larger bench for adjudication. Subsequently, a nine-judge Bench was constituted to conduct the hearing on this reference.

JOSEPH SHINE CASE (2018)

Name of the Case	Joseph Shine vs. Union of India
Year of Judgement	2018
Popular Name	—
Related Topic/Issue	Decriminalisation of adultery
Related Article/Schedule	14, 15 & 21

Adultery decriminalised: **Supreme Court Judgement:** It decriminalised adultery and struck down section 497 of the Indian Penal Code. It declared that this section dealing with the criminalization of adultery, is unconstitutional. It held that this section violates Articles 14, 15 and 21. Further, the court declared that the Section 198(2) of the Code of Criminal Procedure, is also unconstitutional to the extent that it is applicable to the offence of adultery. It observed that when the substantive provision goes, the procedural provision has to pave the same path.

Adultery only a civil wrong: **Impact of the Judgement:** This judgement has overruled all the previous judgements which had upheld the above Section 497 as constitutionally valid. After this judgement, adultery is no longer a criminal offence attracting up to 5 years' imprisonment. However, it can be considered as a civil wrong and it is a ground for the dissolution of marriage.

Landmark Judgements – 15 (2018-2020)

Navtej Singh Johar Case (2018)

Name of the Case	Navtej Singh Johar vs. Union of India
Year of Judgement	2018
Popular Name	—
Related Topic/Issue	Decriminalisation of homosexuality
Related Article/Schedule	14, 15, 19 & 21

Section 377 read down: **Supreme Court Judgement:** It decriminalized homosexuality and partly struck down Section 377 of the Indian Penal Code which criminalized carnal intercourse against the order of nature. It held that this Section is unconstitutional in so far as it criminalizes consensual sexual acts of adults of the same sex. It declared that this Section violates the right to equality under Article 14, the right to non-discrimination under Article 15, the right to freedom of expression under Article 19(1)(a) and the right to live a life of dignity and privacy under Article 21. It said that the LGBT (lesbian, gay, bisexual and transgender) persons are entitled to the same fundamental rights as others.

Overruled Suresh Kumar Koushal: **Impact of the Judgement:** This judgement overruled the earlier judgement delivered in the Suresh Kumar Koushal case[29] (2013). In this case, the Supreme Court had upheld the constitutional validity of the above Section 377. Before this judgement, the members of the LGBT community were compelled to live a life full of fear of reprisal and persecution. Now, they are legally permitted to engage in consensual sexual conduct. Notably, the provisions of the above Section 377 will continue to govern non-consensual sexual acts against adults, all acts of carnal intercourse against minors and acts of bestiality.

M. Siddiq Case (2019)

Name of the Case	M. Siddiq vs. Mahant Suresh Das
Year of Judgement	2019
Popular Name	Ayodhya case
Related Topic/Issue	Ram Janmabhoomi-Babri Masjid land dispute
Related Article/Schedule	—

Disputed land to Ram Lalla: **Supreme Court Judgement:** It awarded the entire 2.77 acres of the disputed land in Ayodhya to the deity Ram Lalla virajman. It gave the following directions: (i) It directed the Centre to formulate a scheme for the setting-up of a trust for the construction of a Ram Mandir at the disputed site where the centuriesold Babri Masjid stood before its demolition in 1992; (ii) It directed the Centre and UP government to allot an alternative 5 acres of land to the UP Sunni Central Waqf Board at a suitable prominent place in Ayodhya for the construction of a mosque; (iii) It directed that in framing the scheme for the setting-up of the trust, an appropriate representation may be given to the Nirmoni Akhara in such manner as the Centre deems fit. The suit filed by the Akhara claiming shebaiti rights has been held to be barred by limitation and shall accordingly stand dismissed.

End of Ayodhya dispute – temple trust: **Impact of the Judgement:** This judgement has put an end to the more than a century-old dispute that has shook the communal harmony dimension of the Indian society. Subsequent to this judgement, the Centre announced the formation of the Ayodhya temple trust called as the Shri Ram Janmabhoomi Teerth Kshetra. Similarly, the UP government announced the allocation of 5 acres of land to the UP Sunni Central Waqf Board in Dhannipur, Ayodhya. Further, this judgement has overturned the 2010 Allahabad High Court judgement. The High Court had equally divided the disputed land between the three parties, viz., one-third for Ram Lalla Virajman, one-third for UP Sunni Central Waqf Board and one-third for Nirmohi Akhara.

Anuradha Bhasin Case (2020)

Name of the Case	Anuradha Bhasin vs. Union of India
Year of Judgement	2020
Popular Name	—
Related Topic/Issue	Suspension of internet services
Related Article/Schedule	19

Internet & proportionality: **Supreme Court Judgement:** It held the following: (i) The freedom of speech and expression and the freedom to practice any profession or carry on any trade, business or occupation over the medium of internet enjoys constitutional protection under Article 19(1)(a) and Article 19(1)(g). The restriction upon such fundamental rights should be in consonance with the mandate under Article 19(2) and (6), inclusive of the test of proportionality; (ii) An order suspending internet services indefinitely is impermissible under the Temporary Suspension of Telecom Services (Public Emergency or Public Safety) Rules, 2017. Suspension can be utilized for temporary duration only; (iii) Any order suspending internet issued under the Suspension Rules, must adhere to the principle of proportionality and must not extend beyond necessary duration.

Right to internet access: **Impact of the Judgement:** This judgement led to the emergence of the right to access to the internet (or right to access to information via the internet) as a fundamental right under the constitution. On the other hand, this judgement also recognized the right of the government to shutdown the internet by adhering to the principle of proportionality. These two situations may create conflicts in the provision of internet services in the country.

Landmark Judgements – 16 (2020)

Rambabu Singh Thakur Case (2020)

Name of the Case	Rambabu Singh Thakur vs. Sunil Arora
Year of Judgement	2020
Popular Name	—
Related Topic/Issue	Criminalisation of politics
Related Article/Schedule	—

Disclose criminal antecedents: **Supreme Court Judgement:** It issued various directions aimed at curbing the growing incidence of criminals in politics. These are: (i) It shall be mandatory for political parties (at the central and state election level) to upload on their website detailed information regarding individuals (with pending criminal cases) who have been selected as candidates. This should include the nature of the offences and relevant particulars such as whether charges have been framed, the concerned court, the case number etc. The parties should also state the reasons for such selection as well as the reasons for such selection as well as the reasons as to why other individuals without criminal antecedents could not be selected as candidates; (ii) The reasons as to selection shall be with reference to the qualifications, achievements and merit of the candidate concerned and not mere winnability at the polls; (iii) This information shall also be published in one local vernacular newspaper and one national newspaper, and on the official social media platforms of the political party, including Facebook and Twitter.

Form C-7: **Impact of the Judgement:** Subsequent to this judgement, the Election Commission sent a communication to all the recognized political parties requiring them to follow the above directions. Further, it also released a new Form C-7 where in the political parties have to provide all the information regarding selected candidates having criminal background.

INTERNET AND MOBILE ASSOCIATION OF INDIA CASE (2020)

Name of the Case	Internet and Mobile Association of India vs. Reserve Bank of India
Year of Judgement	2020
Popular Name	—
Related Topic/Issue	Ban on crypto currency trading
Related Article/Schedule	19

Crypto ban struck down: **Supreme Court Judgement:** It struck down a circular issued by the Reserve Bank of India (RBI) that had directed the banks and financial institutions not to deal in virtual currencies (VCs) nor provide services in relation to VCs. It declared the circular as illegal and unenforceable on the ground of proportionality. It said that the RBI itself had not found that the banks and financial institutions have suffered any loss or adversely effected on account of VC exchanges. Further, it also ruled that the circular violates the freedom to carry on trade under Article 19(1)(g). Hence, it declared the circular as unconstitutional.

Crypto trading resumed: **Impact of the Judgement:** *This judgement removed the ban on crypto currency trading in India. This made the banks and financial institutions to rejoin the virtual currency industry and do the trading. Further, this judgement also brought into focus the need for creating a legal framework for regulating the crypto currency trading and the various issues associated with this industry in India.*

Please check the tables of this chapter once. If a table looks important, study it directly from Laxmikanth, or take a screenshot of it and add it to this page as needed.

CHAPTER 92 Judgements Expanding the Scope of Article 21

Article 21 – "No person shall be deprived of his life or personal liberty except according to procedure established by law" – has been widened by the Supreme Court into a source of many unenumerated rights:

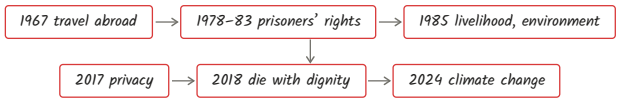


Table 92.1: Judgements declaring various rights as integral parts of the protection of life and personal liberty under Article 21

Sl. No.	Name of the Case	Year of Judgement	Right declared by the Supreme Court as an integral part of Article 21
1.	Satwant Singh Sawhney vs. D. Ramarathnam, Assistant Passport Officer, New Delhi	1967	Right to travel abroad
2.	Sunil Batra vs. Delhi Administration	1978	Right against solitary confinement
3.	Charles Sobhraj vs. Superintendent, Central Jail, New Delhi	1978	Right against bar fetters
4.	M.H. Hoskot vs. State of Maharashtra	1978	Right to free legal aid
5.	Hussainara Khatoon vs. Home Secretary, State of Bihar	1979	Right to speedy trial
6.	Prem Shankar Shukla vs. Delhi Administration	1980	Right against handcuffing
7.	Kishore Singh Ravinder Dev vs. State of Rajasthan	1980	Right against inhuman treatment by the police (use of "third degree" method)
8.	Francis Coralie Mullin vs. Administrator, Union Territory of Delhi	1981	Right to live with human dignity & Right of prisoner to have necessities of life.
9.	Board of Trustees of Port of Bombay vs. Dilip Kumar R. Nadkarni	1982	Right to reputation
10.	T.V. Vatheeswaran vs. State of Tamil Nadu	1983	Right against delayed execution
11.	Sheela Barse vs. State of Maharashtra	1983	Right against custodial violence
12.	Bandhua Mukti Morcha vs. Union of India	1983	Right against bonded labour
13.	Rural Litigation and Entitlement Kendra vs. State of U.P. (popularly known as the Dehradun Quarrying case)	1985	Right to decent environment (Right to a clean and healthy environment)
14.	Attorney General of India vs. Lachma Devi	1985	Right against public hanging
15.	Olga Tellis vs. Bombay Municipal Corporation (popularly known as the Pavement Dwellers case)	1985	Right to livelihood
16.	State of H.P. vs. Umed Ram Sharma	1986	Right to road in hilly areas
17.	Parmanand Katara vs. Union of India	1989	Right to emergency medical aid (Right to Doctor's assistance)
18.	Shantistar Builders vs. N.K. Totame	1990	Right to shelter

Article 21 Judgements – continued

Sl. No.	Name of the Case	Year of Judgement	Right declared by the Supreme Court as an integral part of Article 21
19.	Unni Krishnan, J.P. vs. State of Andhra Pradesh	1993	Right to free education upto 14 years of age
20.	Consumer Education and Research Centre vs. Union of India	1995	Right to health
21.	L.I.C. of India vs. Consumer Education and Research Centre	1995	Right to appropriate life insurance policy
22.	National Human Rights Commission vs. State of Arunachal Pradesh (popularly known as the Chakmas Migrants case)	1996	Right not to be driven out of a state
23.	Paschim Banga Khet Mazdoor Samity vs. State of West Bengal	1996	Right to timely medical treatment in Government Hospital
24.	Police Commissioner, Delhi vs. Registrar, Delhi High Court	1996	Right to fair trial
25.	Vellore Citizens Welfare Forum vs. Union of India	1996	Protection against hazardous industries
26.	Dr. B.L. Wadhera vs. Union of India	1996	Pollution-free water and air
27.	Ashok Kumar Gupta vs. State of U.P.	1997	Right to social and economic justice and empowerment
28.	S.K. Mastan Bee vs. G.M., South Central Railway	2002	Right to family pension
29.	N.D. Jayal vs. Union of India	2003	Right to sustainable development
30.	Noise Pollution, In Re.	2005	Right to freedom from noise pollution
31.	Reliance Energy vs. M.S.R.D.C.	2007	Right to opportunity
32.	Dilip s. Dahanukar vs. Kotak Mahindra	2007	Right of appeal from a judgement of conviction
33.	Ramlila Maidan Incident, In Re.	2012	Right to sleep
34.	K.S. Puttaswamy vs. Union of India	2017	Right to privacy
35.	Common Cause (A Regd. Society) vs. Union of India	2018	Right to die with dignity (Passive euthanasia)
36.	M.K. Ranjitsinh vs. Union of India	2024	Right against the adverse effects of climate change



Please check the tables of this chapter once. If a table looks important, study it directly from Laxmikanth, or take a screenshot of it and add it to this page as needed.